

In the Matter Of:
USTR 301 INVESTIGATION HEARING

HEARING
September 03, 2025



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EXECUTIVE OFFICE OF THE PRESIDENT
OFFICE OF THE U.S. TRADE REPRESENTATIVE

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SECTION 301 INVESTIGATION: BRAZIL'S ACTS,
POLICIES, AND PRACTICES RELATED TO DIGITAL TRADE
AND ELECTRONIC PAYMENT SERVICES; UNFAIR,
PREFERENTIAL TARIFFS; ANTI-CORRUPTION
ENFORCEMENT; INTELLECTUAL PROPERTY PROTECTION;
ETHANOL MARKET ACCESS; AND ILLEGAL DEFORESTATION

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WEDNESDAY
SEPTEMBER 3, 2025

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The Public Hearing convened at the
U.S. International Trade Commission, 500 E Street
SW, Washington, DC, at 10:00 a.m. EDT, Megan
Grimball, Panel Chair, presiding.

PRESENT

MEGAN GRIMBALL, USTR, Panel Chair
VICTOR BAN, USTR
MEGAN PASTOR, USTR
KATE GIBSON, USTR
SARAH BONNER, U.S. Small Business Administration
NICHOLAS VOLTAGGIO, Department of the Treasury
DEVIN ABBOTT, Department of Agriculture
SABINA NEUMANN, Department of Agriculture
ANDREW STEPHENS, Department of Agriculture
JULIA REINITZ, Department of Labor
JILLIAN COTA, Department of Commerce
TOBIAS REYNOLDS, Department of Commerce
MICHELLE SARA KING, Department of Commerce
WILLIAM (STU) HUFFMAN, Department of State
ANNE YU, Department of Health and Human Services

WITNESSES PRESENT

NEIL HERRINGTON, U.S. Chamber of Commerce
ED BRZYTWA, Consumer Technology Association
SEAN MURPHY, Information Technology Industry
Council
AMBASSADOR ROBERTO AZEVEDO, Confederacao Nacional

1 da Industria
2 SUEME ANDRADE, National Confederation of
3 Agriculture and Livestock of Brazil
4 MARCOS ANTONIO MATOS, Brazilian Coffee Exporters
5 Council
6 MELINDA ST. LOUIS, Public Citizen and Data
7 Privacy Brasil
8 GEOFF COOPER, Renewable Fuels Association
9 CHRIS BLILEY, Growth Energy
10 NEIL ROCKSTAD, American Sugarbeet Growers
11 Association and U.S. Beet Sugar Association
12 ANDRÉA VERÍSSIMO, Brazilian Corn Ethanol
13 Association (União Nacional do Etanol de
14 Milho)
15 WELBER BARRAL, União da Indústria de
16 Cana-de-Açúcar e Bioenergia
17 LINDA SCHMID, U.S. Grains & Bioproducts Council
18 KENNETH R. HARTMAN JR., National Corn Growers
19 Association
20 ANJAM AZIZ, Pharmaceutical Research and
21 Manufacturers of America
22 RENÉ GUILHERME DA SILVA MEDRADO, Federation of
23 Industries of the State of São Paulo
24 FABRIZIO PANZINI, American Chamber of Commerce
25 for Brazil
GABRIEL LEONARDOS, Brazilian Intellectual
Property Association
JOE MENCER, Agricultural Council of Arkansas
SHERIDAN McKINNEY, U.S. Cattlemen's Association
KENT BACUS, National Cattlemen's Beef Association
FERNANDO AGUIAR, Brazilian Association of Fishery
Industries (Abipescas)
MARIA ZIEBA, National Pork Producers Council
WILLIAM MURRAY, National Coffee Association
ASHLEY AMIDON, International Wood Products
Association
JOSÉ LUIZ PIMENTA JÚNIOR, Brazilian Furniture
Manufacturers Association
BRITTNEY POWELL, Brazilian Tree Industry
(Indústria Brasileira de Árvores)
PAULO ROBERTO PUPO, Brazilian Mechanically
Processed Wood Industry Association
TIMOTHY BRIGHTBILL, Coalition of American
Millwork Producers
TERRY WEBBER, American Forest & Paper Association
JASON BERNSTEIN, American Chemistry Council
PETER BARRY, WEG Electric Corp.
RICARDO FREIRE VASCONCELLOS, Conservative
Congress of Brazil
DANIEL HICKEY, Embraer, S.A.

1 ALAIS COLUCHI, Brazilian Association of
2 Manufacturers of Ceramic Tiles, Sanitary
3 Ware and Related Products
4 ANDRE GAIDZINSKI, Eliane Ceramic Tiles USA
5 JAMES DURBIN, Portobello America
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1 P-R-O-C-E-E-D-I-N-G-S

2 10:06 a.m.

3 CHAIR GRIMBALL: Good morning, and
4 welcome.

5 The Office of the United States Trade
6 Representative, in conjunction with the
7 Interagency Section 301 Committee, is holding
8 this public hearing in connection with the
9 Section 301 investigation of Brazil's acts,
10 policies, and practices related to digital trade
11 and electronic payment services, unfair
12 preferential tariffs, anti-corruption
13 enforcement, intellectual property protection,
14 ethanol market access, and illegal deforestation.

15 In accordance with the specific
16 direction of the President, the United States
17 Trade Representative initiated this investigation
18 on July 15th, 2025.

19 In the Federal Register Notice
20 published on July 18th, 2025 announcing this
21 initiation, USTR also invited written comments
22 and announced this hearing.

23 The July 18th Notice invited comment
24 on a number of issues going to the question of
25 whether the acts, policies, or practices at issue

1 are actionable under the Statute.

2 Actionable matters under Section 301
3 include acts, policies, and practices of a
4 foreign country that are unreasonable and
5 discriminatory, and burden or restrict U.S.
6 commerce.

7 The July 18th Notice is available on
8 the USTR web page under the Section 301
9 Investigations page and is published in the
10 Federal Register at 90 Fed Reg 34069.

11 The purpose of this hearing is to
12 receive public testimony regarding the issues
13 raised in the July 18th Notice.

14 The Section 301 Committee will
15 carefully consider today's testimony as well as
16 all written comments in response to the Federal
17 Register Notice, including post-hearing rebuttal
18 comments.

19 Because this hearing will last one
20 day, all written comments, including post-hearing
21 comments are due September 10th, 2025.

22 Consistent with the rules and
23 procedures set forth in the July 18th Federal
24 Register Notice, witnesses have provided USTR and
25 the Section 301 Committee with a summary of their

1 testimony in advance of today's hearing.

2 As appropriate, witnesses have been
3 advised in advance that this hearing will not
4 address potential remedies under Section 301,
5 which is a separate inquiry.

6 Nor will this hearing address tariffs
7 that have been separately imposed pursuant to the
8 International Emergency Economic Powers Act, or
9 IEEPA.

10 Specifically, the reciprocal tariffs
11 imposed under Executive Order 14257 and those
12 imposed separately on goods of Brazil under
13 Executive Order 14323.

14 Should witness testimony address
15 issues beyond the scope of this hearing, the
16 Chair will ask the witness to redirect or to
17 conclude their testimony.

18 After the Section 301 Committee has
19 completed its work, the Committee will make a
20 recommendation to the U.S. Trade Representative
21 on whether the acts, policies, and practices are
22 actionable under the statute.

23 If the U.S. Trade Representative
24 determines actionable acts, policies, and
25 practices exist, the U.S. Trade Representative

1 will determine whether action is appropriate, and
2 if so, what action to take, which would involve
3 an additional Notice and comment period.

4 We are please this morning to have
5 international trade and economic experts from a
6 range of U.S. governments and departments.

7 If you could please introduce
8 yourselves?

9 MS. BONNER: Sarah Bonner, the U.S.
10 Small Business Administration, Office of
11 Manufacturing and Trade.

12 MR. VOLTAGGIO: Nicholas Voltaggio,
13 Department of the Treasury, Office of Trade and
14 Investment Policy.

15 MR. ABBOTT: Devin Abbott, Foreign
16 Agricultural Service, Department of Agriculture.

17 MR. BAN: Victor Ban, Office of the
18 United States Trade Representative.

19 MS. REINITZ: Julie Reinitz, U.S.
20 Department of Labor, Office of Trade and Labor
21 Affairs.

22 MS. COTA: Jillian Cota, the
23 International Trade Administration at the U.S.
24 Department of Commerce.

25 MR. HUFFMAN: Stu Huffman, U.S.

1 Department of State, Trade, Policy, and
2 Negotiations.

3 CHAIR GRIMBALL: And I'm Megan
4 Grimball, USTR Chair of the Section 301
5 Committee.

6 Before we proceed with Panel 1, I
7 will provide some procedural and administrative
8 instructions.

9 Please note that no cameras or video
10 or audio recording will be allowed during the
11 hearing.

12 The hearing is scheduled to conclude
13 today, Wednesday, September 3rd.

14 A written transcript of this hearing
15 will be posted on the USTR website as soon as
16 possible after the conclusion of this hearing.

17 We will have six panels of witnesses
18 with 38 individuals scheduled to testify.

19 The provisional schedule has been
20 posted on the USTR website.

21 We will have a brief break between
22 panels and a 45-minute break for lunch, and a 10
23 minute break in the afternoon.

24 Each witness appearing at the hearing
25 is limited to five minutes of oral testimony.

1 The light before you will be green
2 when you start your testimony, yellow means you
3 have one minute left, and red means that your
4 time has expired.

5 After the testimony from each panel
6 of witnesses, the Section 301 Committee will have
7 an opportunity to ask questions. All questions
8 will be from the agency representatives. There
9 will be no questions accepted from the floor.

10 Committee representatives will
11 generally direct their questions to one or more
12 witnesses.

13 Again, post-hearing comments,
14 including any written responses to questions from
15 the Section 301 Committee, are due September
16 10th, 2025.

17 The rules and procedures for written
18 submissions are set out in the July 18th Federal
19 Register Notice.

20 Given the number of witnesses and the
21 schedule, we request that witnesses, when
22 responding to questions, be as concise as
23 possible.

24 We likewise ask witnesses to be
25 understanding when and if the Chair asks a

1 witness to conclude a response.

2 In this regard, witnesses should
3 recall that they had a full opportunity to
4 provide more extensive responses in their
5 post-hearing submissions.

6 With that, we will begin with the
7 first panel.

8 Mr. Herrington, you have the floor.

9 MR. HERRINGTON: Madam Chair, thank
10 you very much.

11 Distinguished panel, the U.S. Chamber
12 very much appreciates the opportunity to appear
13 today to respond to the USTR's investigation
14 under Section 301.

15 I want to recognize my esteemed
16 co-panelists here. It's an honor to be with them
17 as well.

18 Brazil's a very important commercial
19 partner for a broad range of U.S. companies of
20 every size, sector, and state.

21 It represents a dynamic market that
22 is full of potential for continued growth that
23 will benefit American workers, farmers, and
24 companies.

25 Realizing this potential requires

1 concrete steps to ensure fair market access and
2 enhanced regulatory transparency.

3 As we detail in the long form
4 submission, we believe that addressing these
5 trade barriers is not only in the strategic
6 interests of the United States, but also stands
7 to benefit the Brazilian people.

8 At the same time, a more stable and
9 transparent trade environment will support growth
10 and innovation in Brazil to the benefit of both
11 the Brazilian and U.S. firms.

12 The Chamber supports a deliberative,
13 evidence-based approach to addressing concerns
14 relating to Brazil's trade policies and
15 practices.

16 We are concerned that the recent
17 imposition of a legally dubious 50 percent tariff
18 on a significant percentage of U.S. imports from
19 Brazil will have far reaching negative
20 implications for U.S. businesses and workers,
21 adversely impact U.S. supply chains, and could
22 lead to an escalatory cycle of retaliation that
23 undermines the laudable aim of the present
24 investigation to achieve resolution of legitimate
25 commercial concerns.

1 For the same reasons, we urge careful
2 deliberation before USTR imposes additional
3 tariffs on products of Brazil pursuant to this
4 investigation.

5 We also urge that tariff stacking
6 should be avoided for all products subject to
7 sectoral tariffs under Section 232, as this would
8 result in cumulative tariff burdens for U.S.
9 companies and consumers.

10 An ideal outcome to the Section 301
11 process will be comprehensive negotiations
12 between Brazil and the U.S. that place the
13 economic relationship on a more stable,
14 predictable, and prosperous footing.

15 The trade protocol negotiated under
16 the first Trump administration, ATEC, provides a
17 ready platform for economic cooperation that can
18 be expanded to strategic areas such as critical
19 minerals.

20 Let me now briefly highlight a
21 selection of Brazilian trade barriers that
22 Chamber outlined in its long form submission.

23 Brazil's rapidly evolving digital
24 policy landscape has presented challenges for
25 U.S. companies related to transparency,

1 predictability, and discrimination.

2 With regard to content moderation,
3 U.S. companies have been adversely impacted by
4 decisions that appear to exceed Brazil's
5 sovereign and legal jurisdiction.

6 Brazil should not compel moderation
7 of content hosted or transmitted outside of its
8 territory.

9 Regarding electronic payment
10 services, Brazil's PIX system has delivered
11 benefits in areas like financial inclusion, but
12 the Central Bank's dual roles as both operator
13 and regulator has created conflicts of interest
14 tied to mandated integration, access to
15 competitor data, and asymmetric obligations.

16 Brazil should separate roles or
17 subject to independent oversight.

18 Telecom regulator ANATEL has imposed
19 joint liability on platforms and marketplaces and
20 conformity rules for data centers, all of which
21 were adopted without consultation or regulatory
22 impact analysis, raising legality and
23 predictability concerns.

24 Additional proposed regulations
25 governing AI platform rules, video on demand

1 quotas and taxes, network usage fees, and
2 possible digital services tax risks
3 discriminatory effect.

4 Brazil should refrain from measures
5 that selectively target U.S. firms.

6 Regarding intellectual property, the
7 2021 Supreme Court decision eliminating Article
8 40's minimum patent term was applied
9 retroactively in a manner raising concerns under
10 international law.

11 The lack of patent term adjustment,
12 absence of regulatory data protection for human
13 pharmaceuticals, and broad compulsory licensing
14 rules also create uncertainty.

15 Brazil should introduce a statutory
16 PTA guarantee, effective RDP, and ensure that
17 application of sales is consistent with
18 international norms.

19 With regard to ethanol market access,
20 Brazil's 18 percent tariff and challenges in
21 accessing RenovaBio hinder reciprocal trade and
22 collaboration in areas like sustainable aviation,
23 fuel, science-based recognition of environmental
24 standards, and equitable access to programs
25 should be prioritized.

1 In conclusion, securing improvements
2 in the U.S.-Brazil trade relationship by lowering
3 tariff and non-tariff barriers in a reciprocal
4 manner and ending unfair discrimination is a
5 worthy goal that will enjoy broad support from
6 the U.S. business, energy, and agricultural
7 committees -- communities -- excuse me.

8 As such, the Section 301 review
9 provides an important platform for U.S. officials
10 to engage with their Brazilian counterparts in
11 this aim in order to expand opportunities for
12 U.S. companies and realize the full potential of
13 U.S. trade with Brazil while avoiding tariffs
14 that raise the cost of living, harm small
15 businesses, and undermined manufacturing in the
16 United States.

17 I again appreciate this opportunity
18 to testify and look forward to any questions.

19 CHAIR GRIMBALL: Thank you.

20 Mr. Brzytwa, you have the floor.

21 MR. BRZYTWA: Thank you for the
22 opportunity to testify today. I'm Ed Brzytwa,
23 Vice President of International Trade at the
24 Consumer Technology Association, which represents
25 the \$537 billion U.S. consumer technology

1 industry and owns and produces CES, the world's
2 most powerful technology event.

3 CTA appreciates USTR's leadership in
4 launching this investigation. The United States
5 is locked in a global technology competition with
6 China.

7 The U.S. innovation ecosystem is the
8 envy of the world, but winning that competition
9 requires more than domestic innovation.

10 To ensure that American technology
11 and American values can flourish around the
12 globe, we need strategic alignment with our
13 democratic allies.

14 Brazil is one of those allies, and
15 strengthening our relationship with Brazil is in
16 our national interest.

17 To support our foreign policy and
18 national security objectives, American trade
19 policy should bring Brazil closer to the United
20 States, not push the country towards stronger
21 ties with China and other adversaries.

22 Last week, CTA led a trade mission to
23 Brazil to raise awareness of CES, our trade show,
24 and encourage Brazilian Government officials and
25 industry leaders to attend CES 2026 in Las Vegas

1 in January.

2 Greater Brazilian presence at CES
3 would be an excellent step forward in our
4 bilateral relationship. It would foster
5 collaboration, showcase innovation, and deepened
6 commercial ties between our countries.

7 In Brazil, we saw a country rapidly
8 embracing technology. Brazilian startups are
9 leveraging AI, FinTech and hardware to support
10 sustainable growth, and expand financial
11 inclusion, rural development, and access to
12 education and healthcare.

13 In the business community and among
14 consumers, there's a clear preference for U.S.
15 technologies, but also an openness to
16 alternatives. That openness is a vulnerability.

17 If we make it harder or more
18 expensive for Brazil to acquire U.S. made
19 technology, other countries will fill the gap.

20 At one tech startup conference during
21 the trip, we heard calls to diversify supply
22 chains away from the United States due to a
23 riskier trade environment.

24 In this environment, USTR plays a
25 vital role. USTR's investigation into Brazil's

1 barriers to trade and investment is a vital first
2 step towards the free, open, and predictable
3 trade that benefits both sides.

4 Removing trade barriers unlocks new
5 opportunities for U.S. exports and investment,
6 and at the same time, strengthens Brazil's
7 economy and accelerates its innovation. This is
8 a win-win scenario.

9 But let me be clear, tariffs should
10 be a precision tool, not a sledgehammer. These
11 tools of trade policy should be a last resort,
12 not a first response. And when applied they
13 should be targeted and strategic.

14 More, American businesses and our
15 partners abroad need certainty on tariffs.
16 Certainty. A volatile and uncertain tariff
17 landscape pushes our partners away, hurting
18 American technology innovation and the American
19 consumers who love and rely on these products.

20 What we need is meaningful
21 negotiations between the U.S. and Brazilian
22 Governments, coupled with public/private dialogue
23 to ensure that stakeholders can share their
24 views.

25 Government to government

1 conversations are not enough to ensure progress.
2 More, when allies like Brazil make meaningful
3 reforms, the United States must respond with
4 tariff relief.

5 This approach boosts our U.S.
6 innovation, supports U.S. consumers and enhances
7 our soft power, and reinforces our global
8 leadership.

9 Let's use this moment to build
10 bridges, not barriers, and create change that
11 works for American businesses and American
12 families.

13 This investigation is an opportunity
14 to deliver that change through smarter trade
15 policy, deeper investment and shared economic
16 growth.

17 Let's align our policies with our
18 allies like Brazil, and let's lead the global
19 technology race together.

20 Thank you.

21 CHAIR GRIMBALL: Thank you, Mr.
22 Brzytwa. Did I pronounce that correctly?

23 MR. BRZYTWA: I say Brzytwa, but if
24 you want the Polish, it's Brzytwa.

25 CHAIR GRIMBALL: Oh, I may have to --

1 MR. BRZYTWA: It means razor.

2 CHAIR GRIMBALL: -- stick with the
3 former this morning. Thank you for that.

4 Mr. Murphy, you have the floor.

5 MR. MURPHY: Good morning, my name is
6 Sean Murphy. I'm the Executive Vice President of
7 Policy at the Information Technology Industry
8 Council, ITI.

9 ITI is the premier global advocate
10 for the technology industry and represents many
11 of the world's most innovative companies.

12 On behalf of our members --

13 CHAIR GRIMBALL: Could you pull your
14 microphone forward --

15 (Simultaneous speaking.)

16 CHAIR GRIMBALL: -- closer to you?

17 MR. MURPHY: I'm sorry.

18 We engage with governments around the
19 world to help them develop policies that impact
20 the technology, hardware, software services, and
21 related industries.

22 ITI appreciates the --

23 CHAIR GRIMBALL: No cameras, sir. No
24 cameras.

25 Thank you.

1 Sorry, Mr. Murphy, please.

2 MR. MURPHY: Thank you.

3 ITI appreciates the opportunity today
4 to summarize its written submission detailing the
5 challenges our member country -- member companies
6 confront in the Brazilian market.

7 Our longstanding concerns, which
8 predate this investigation include the following,
9 onerous content moderation and platform liability
10 rules, an uneven playing field for digital
11 payment services companies that compete with the
12 government championed alternative, unfair network
13 usage fees and data center certification
14 initiatives, and other measures that favor
15 competitors from third countries, which are
16 aggressively expanding their investments and
17 regulatory influence in Brazil and the
18 hemisphere.

19 Brazil is the largest economy in
20 Latin America and the dominant voice in the
21 Southern common market, also known as MERCOSUL or
22 MERCOSUR.

23 The policy choices that Brazil makes
24 now will determine whether American companies can
25 compete in its technology market and the broader

1 region for decades to come.

2 ITI offers three key recommendations
3 for your consideration.

4 First, we recommend that the United
5 States strengthen its relationship with Brazil.
6 We encourage the administration to leverage and
7 expand existing bilateral channels such as the
8 U.S./Brazil commercial dialogue in order to
9 engage constructively with Brazilian counterparts
10 and address the concerns detailed in ITI's
11 submission.

12 We also encourage you to de-escalate
13 tensions and restore business certainty.

14 And ultimately, we would like to see
15 the bilateral business relationship strengthened.

16 Second, we recommend that the
17 administration develop a comprehensive strategic
18 approach toward Brazil.

19 The challenges in Brazil that our
20 member companies face can best be resolved
21 through cooperative, results-oriented, government
22 to government engagement that is focused on the
23 long-term strategic interest of both sides.

24 This will require sustained
25 coordination within the U.S. Government, with

1 industry stakeholders, and obviously, with
2 Brazilian counterparts.

3 We want the two governments to move
4 past the status quo and work in earnest to
5 address our industry specific concerns and
6 restore predictability, to promote rules and
7 regulations in Brazil that align with
8 international best practices, to position the
9 United States as Brazil's preferred technology
10 partner for the long term, and strengthen
11 longstanding dialogue between U.S. and Brazil for
12 mutual benefit.

13 Third, we recommend that any U.S.
14 trade actions should support and not undermine
15 long-term American strategic interests in Brazil
16 and the region. We are not advocating for more
17 tariffs, but rather for strategic problem solving
18 dialogue.

19 We want to avoid outcomes that could
20 inadvertently reduce overall U.S. business
21 opportunities in Brazil or push Brazil toward
22 deeper cooperation with non-U.S. technology
23 companies or to embrace other regulatory models.

24 In conclusion, we believe that the
25 U.S./Brazil relationship is at a critical

1 inflection point. ITI and our members look
2 forward to working with the United States and
3 Brazilian Government to achieve positive outcomes
4 which include resolving our legitimate business
5 currents -- concerns about market conditions in
6 Brazil.

7 Expanding Brazilian consumers access
8 to our company's products and services,
9 de-escalating tensions, and restoring mutual
10 beneficial commercial ties, strengthening the
11 U.S./Brazilian technology and trade relationship
12 for the long term, and positioning stakeholders
13 in both countries for success in the global
14 digital economy.

15 Thank you, again. I welcome any
16 questions you may have.

17 CHAIR GRIMBALL: Thank you, Mr.
18 Murphy.

19 Ambassador Azevedo, you have the
20 floor.

21 AMBASSADOR AZEVEDO: Well, good
22 morning. I'm Roberto Azevedo, a consultant to
23 CNI, the Brazilian National Confederation of
24 Industry. And as a former Director General of
25 the World Trade Organization, I have a long

1 history of working with the Trump administration
2 on trade issues.

3 CNI is the main representative of the
4 Brazilian industry and represents 27 state
5 federations of industry, over 1,200 trade unions,
6 and almost 700,000 affiliated industries.

7 In the Section 301 Notice of
8 Investigation, the USTR identified six areas of
9 concern and CNI has already submitted detailed
10 comments in writing on each of these topics.

11 First, Brazil does not undermine the
12 competitiveness of U.S. companies engaged in
13 digital trade and electronic payment services.
14 Brazilian laws try to strike a balance between
15 technological innovation and free data flows with
16 individual privacy rights.

17 And Brazil also offers a fast, cost
18 effective, and secure payment system, similar to
19 the FedNow instant payment system created and
20 implemented by the U.S. Federal Reserve Board.

21 This payment system has enhanced
22 financial inclusion, reduced reliance on physical
23 cash, and increased efficiency in retail and
24 e-commerce, heavily benefitting U.S. companies.

25 Second, Brazil's preferential rates

1 are consistent with international agreements
2 ratified and adopted by all members, the United
3 States included, with an effective tariff rate of
4 2.7 percent. U.S. goods are subject to the
5 lowest tariff rates among our trading partners,
6 except MERCOSUR.

7 In fact, almost three-quarters of
8 U.S. goods enter Brazil duty free. These rates
9 are even more beneficial than those accorded to
10 countries like Mexico and India, which are
11 subject to average effective tariff rates of 4.7
12 percent and 3.2 percent, respectively.

13 Third, Brazil enforces its
14 anti-corruption laws. As a matter of fact,
15 ongoing peer reviews at the OECD have praised
16 Brazil's comprehensive legal and institutional
17 framework for anti-corruption.

18 Fourth, Brazil has taken significant
19 intellectual property enforcement actions, which
20 the USTR itself has, of course, encouraged and
21 recognized.

22 Patent rights have been granted in
23 2.9 years, which is aligned with the 2.2 years
24 for patent applications in the United States, and
25 the U.S. companies ranked number one in patent

1 rights in Brazil.

2 Fifth, Brazil does not adopt
3 unreasonable or discriminatory acts, policies or
4 practices concerning ethanol that burden or
5 restrict U.S. commerce. And as the two largest
6 global ethanol producers, the United States and
7 Brazil have a limited need for imports to meet
8 domestic demand.

9 They should be working together to
10 promote the expansion of ethanol blending
11 mandates in foreign countries to increase the
12 demand for ethanol.

13 And finally, the USTR itself has
14 recognized that Brazil has strengthened
15 enforcement of its environmental laws, reducing
16 deforestation rates.

17 Brazil also has a robust control
18 system for the production and commercialization
19 of forest products. It is not true that illegal
20 deforestation undermines the competitiveness of
21 U.S. producers of timber and agricultural
22 products.

23 Now, there is simply no evidence that
24 the acts, policies, and practices at issue
25 discriminate against or unfairly disadvantage

1 U.S. companies.

2 In fact, Brazil consistently ranks
3 among the tenth largest trade surpluses that the
4 United States enjoys with the rest of the world.

5 We are the two largest democracies in
6 this hemisphere and we should be talking to each
7 other, not fighting each other. Any issues
8 should be resolved by continuing dialogue and
9 cooperation.

10 CNI welcomes initiatives that
11 strengthens the ties between the United States
12 and Brazil and promote economic growth and
13 improve market access and market conditions in
14 both countries.

15 I suggest we seize this opportunity
16 to do great things together and thank you again
17 for this opportunity.

18 I noticed that the clock probably was
19 very generous to me. I don't know if it was
20 blocked or something but I hope you are as
21 generous as the clock.

22 Thank you.

23 CHAIR GRIMBALL: Thank you,
24 Ambassador Azevedo.

25 I cannot see the placard, do we have

1 Ms. Andrade or --

2 (Off-microphone comments.)

3 CHAIR GRIMBALL: Oh, yes, okay, thank
4 you, you have the floor.

5 MS. ANDRADE: On behalf of the
6 Brazilian Confederation of Agriculture and
7 Livestock, CNA, I would like to thank you for the
8 opportunity to contribute to this public hearing,
9 reaffirming our commitment to transparency,
10 dialogue, and fair trade between Brazil and the
11 United States.

12 CNA is a private organization that
13 represents and advocates for over 5 million
14 Brazilian farmers across all sectors, including
15 soybeans, coffee, fruit, and honey, and of all
16 sizes, from small family farmers to large scale
17 producers.

18 The competitiveness of Brazilian
19 agriculture has arisen from legitimate
20 foundations, such as rich natural resources and
21 continuous investment in innovation, and not from
22 unfair trade practices.

23 With a limited network of trade
24 agreements, most of Brazil's international trade
25 is not covered by this type of instrument.

1 In the case of the agriculture and
2 livestock sector, only 5.5 percent of Brazilian
3 agri business exports benefit from preferential
4 rates that are currently in place.

5 Some examples are the preferential
6 agreement signed with Mexico and India, which
7 represent just 1.9 percent of Brazilian imports
8 and which do not disadvantage the competitiveness
9 of North American products in the Brazilian
10 market.

11 More than 90 percent of our imports
12 follow the most favored nation principle,
13 ensuring equal treatment for North American
14 products.

15 In 2024, Brazil imported 17 times
16 more ethanol from the United States than from
17 India, while imports from Mexico were
18 insignificant.

19 In terms of environment, Brazil has
20 one of the strongest regulatory frameworks in the
21 world. The Forest Code establishes a legal
22 requirement for the preservation of native
23 vegetation on private properties.

24 And this legislation ensures that 66
25 percent of the country's territory is currently

1 covered by native vegetation, of which more than
2 33 percent lies within private property, and is
3 maintained by farmers.

4 As regards the Amazon Biome, it is
5 important to note that only 2 percent of its
6 total area is used for agricultural activities,
7 reinforcing Brazil's commitment to environmental
8 conservation and responsible land use.

9 Lastly, it is important to emphasize
10 that Brazil's trade relationship with the United
11 States is mutually beneficial.

12 While the U.S. market is the third
13 largest destination for Brazilian agricultural
14 exports, we are also a significant consumer of
15 inputs, technologies and industrial equipment
16 produced in the United States.

17 In 2024, Brazil imported over 1.1
18 billion U.S. Dollars in fertilizers, agricultural
19 machinery, and seeds from the United States.

20 The partnership between our two
21 countries promotes innovation and generates jobs
22 and income for both Brazil and the United States.

23 CNA rejects any allegations that
24 Brazilian products rely on any improper business
25 or environmental practices to access the American

1 market.

2 Brazilian farmers operate within
3 strict compliance standards, ensuring safety,
4 quality, and transparency for international
5 consumers, including those in the United States.

6 Therefore, we reaffirm the Brazilian
7 agricultural sector's commitments to engage in
8 constructive dialogue and cooperation with the
9 United States, in the certainty that a trade
10 relationship based on evidence, integrity, mutual
11 respect, and common goal is essential in order to
12 address the global challenges of agricultural
13 food security and sustainability.

14 Thank you for your attention.

15 CHAIR GRIMBALL: Thank you, Ms.
16 Andrade.

17 Mr. Matos, you have the floor.

18 MR. MATOS: Thank you for the
19 opportunity to appear today to provide testimony.
20 My name is Marcos Antonio Matos. I am the Chief
21 Executive Officer at Cecafe, the Brazilian Coffee
22 Exporters Council.

23 Coffee holds significant social,
24 economic, and cultural importance for both the
25 United States and Brazil.

1 When it comes to coffee, Brazil and
2 the United States are indispensable to one
3 another.

4 The United States domestic coffee
5 consumption is projected at 25.5 million, sixty
6 kilograms bags. And Brazil accounts for more
7 than 30 percent of the U.S. coffee market, making
8 Brazil its leading supplier.

9 It's important to highlight that USA
10 produces less than 0.3 percent of its total
11 coffee demand.

12 Brazil is the world's largest coffee
13 producer and exporter. Brazilian coffee is
14 produced by around 300,000 farmers, mostly family
15 farmers, in approximately 39 well-established
16 agricultural regions.

17 Brazilian coffee is a key component
18 in the blends offered to American consumers. Its
19 natural attributes, aroma, flavor, body, acidity,
20 sweetness are distinctive and irreplaceable.
21 Coffee drinkers expect these characteristics.

22 As such, longstanding brands, icons
23 of the American economy, could be negatively
24 affected if forced to alter their blends.

25 Brazil is the coffee orange with an

1 organized, efficient and transparency production
2 chain with indicators of social environmental
3 compliance, which is capable of credibly meeting
4 all the needs of North American industry to
5 guarantee its sustainable supply and the daily
6 supply of coffee to the population of the United
7 States.

8 Beyond its recognized importance to
9 Brazil, coffee is also of major relevance to the
10 United States. According to an economic study
11 conducted by NCA, the U.S. National Coffee
12 Association, more than 70 percent of U.S.
13 population consume coffee. Annual spending on
14 coffee and the related products reach \$110
15 billion, \$301 million per day.

16 And coffee accounts for more than 80
17 percent of the total value of the U.S. food
18 service industry.

19 The U.S. coffee industry also
20 supports over 2.2 million jobs and generates more
21 than \$101 billion in wages, benefitting all
22 States and the local communities.

23 For every \$1.00 in spending is spent
24 on imported coffee, an additional \$43 is injected
25 into the U.S. economy. In total, the sector

1 generates \$343 billion annually, equivalent to
2 1.2 percent of the country's GDP.

3 In light of coffee's importance to
4 both American consumers and the U.S. economy, the
5 decision to impose a tariff on Brazilian coffee
6 will result in significant increases in the
7 prices of coffee and inflation, as the added
8 costs will inevitably be passed on to consumers.
9 And coffee prices in the United States are
10 already increasing, as our prices in
11 international coffee exchange.

12 In this regard, we're observing a
13 significant increases in the coffee prices around
14 the world. Take ICE, the Intercontinental
15 Exchange, New York and London as coffee prices
16 referenced in the world.

17 In July 31st, the Coffee C contract,
18 the world benchmark for Arabica coffee, was 284
19 cents per pound.

20 Since then, coffee has -- coffee
21 prices have been rising significantly. Now it's
22 around 308 cents per pound, plus 35 percent.
23 This continuing unprecedented price increasing
24 will impact the U.S. consumers directly.

25 Following the signing of the

1 Executive Order by the U.S. President, Mr. Donald
2 Trump, in July 30, established a 50 percent
3 tariff on imports from Brazil, including coffee,
4 Brazil reiterates its commitment to continue
5 engagement with its U.S. counterparts to advocate
6 for coffee to be recognized as an available,
7 natural resource in the United States with a zero
8 tariff rate so that Americans can continue to
9 enjoy an affordable cup of coffee from Brazil as
10 they have for decades.

11 Thank you again for the opportunity
12 to appear today.

13 CHAIR GRIMBALL: Thank you.

14 Ms. St. Louis or St. Louis, you have
15 the floor.

16 MS. ST. LOUIS: Good morning, and
17 thank you for the opportunity to testify at
18 today's hearing. I'm Melinda St. Louis, the
19 Global Trade Watch Director of Public Citizen, a
20 national consumer public interest organization in
21 the U.S. with more than 500,000 members and
22 supporters.

23 Our submission to the USTR in this
24 matter is co-authored with Data Privacy Brazil, a
25 Sao Paulo based nonprofit organization that

1 carries out research and advocacy related to data
2 protection and digital rights.

3 For the sake of time today, I will
4 focus on two points.

5 First that the USTR should not misuse
6 Section 301 as a fig leaf to implement
7 politically motivated trade sanctions against
8 Brazil.

9 And second, Brazil's general data
10 protections laws, social media regulations, and
11 digital payments regulations are not unjustified,
12 unfair, unreasonable, or arbitrary, and they do
13 not discriminate against U.S. companies.

14 Please see our full written
15 submissions for more details, including on
16 Brazil's intellectual property laws, which we --
17 which provide adequate and effective protection
18 under international obligations and should be
19 respected to protect public health.

20 First, as we know, President Trump
21 announced punitive tariffs on Brazil via a social
22 media post on July 9th, 2025. This was not
23 motivated by any real economic or legal factors,
24 but was, instead, an attempt to interfere in
25 Brazil's domestic judicial processes on behalf of

1 his long-time friend and ally, Jair Bolsonaro,
2 while pushing the de-regulatory agenda of Big
3 Tech companies.

4 The President's letter to Brazil and
5 his Executive Order made clear that the tariffs
6 against Brazil were meant to punish the country
7 over a domestic criminal case. The letter also
8 claimed a U.S. trade deficit as justification for
9 a national emergency --

10 CHAIR GRIMBALL: Ms. St. Louis, I see
11 that you have a bit about the tariffs --

12 MS. ST. LOUIS: Yes.

13 CHAIR GRIMBALL: -- could you please
14 move to your discussion --

15 MS. ST. LOUIS: Yes, the current --

16 CHAIR GRIMBALL: -- on digital?

17 MS. ST. LOUIS: Yes, the current
18 proceedings under Section 301 seem to be an
19 attempt to provide the tariffs against Brazil
20 with some measure of post-hoc legality of
21 functioning as a fig leaf to cover the arbitrary
22 and illegal imposition of tariffs on Brazil for
23 matters that are political in nature.

24 We caution the USTR against being
25 used --

1 CHAIR GRIMBALL: Please move --

2 MS. ST. LOUIS: -- as a political --

3 CHAIR GRIMBALL: Please move to the
4 digital discussion.

5 MS. ST. LOUIS: Okay.

6 CHAIR GRIMBALL: Thank you.

7 MS. ST. LOUIS: So, second, Brazil's
8 digital regulations do not discriminate against
9 or otherwise unfairly target U.S. companies.

10 Brazil as a sovereign, democratic
11 nation, is well within its rights in implementing
12 public interest regulation over companies
13 providing services within its territory.

14 Needless to say, all multinational
15 corporations are required to follow the domestic
16 laws of the country they're operating within.

17 The United States expects the same of
18 all foreign companies operating within our
19 territory.

20 The three specific digital regulatory
21 policies named in the investigation, the General
22 Data Protection law, social media regulation, and
23 e-payments regulations, are not unjustified,
24 unfair, unreasonable, or arbitrary, and they do
25 not discriminate against U.S. companies.

1 First, Brazil's data protection law
2 aims to ensure that Brazilian privacy rights are
3 respected, no matter where the data is processed.
4 Numerous countries implement some form of
5 restrictions on cross-border data transfers.

6 The United States itself implements a
7 number of such measures at both the federal and
8 state levels, which are often stricter than those
9 seen in Brazil's data protection law.

10 Thus, any finding that Brazil's
11 regulation of cross-border data transfers
12 violates Section 301 would expose similar U.S.
13 laws to trade challenges, thereby putting U.S.
14 privacy rights and security interest at risk.

15 Second, on social media regulation,
16 there is an emerging global consensus of the
17 urgent need to tackle issues such as online hate
18 speech, misinformation, and violence against
19 women, children.

20 And further, that intermediaries and
21 digital platforms have a role in pushing back
22 against the growth of such illegal content.

23 Countries around the world are
24 increasingly moving away from legal frameworks
25 that confer complete immunity to intermediaries

1 for hosting illegal third-party content to
2 frameworks where platforms are required to adopt
3 appropriate content moderation and takedown
4 processes.

5 Here in the U.S., there's a
6 bipartisan vigorous debate on the need to tackle
7 the harms arising from social media, including
8 through potential revision of Section 230 of the
9 Communications Decency Act.

10 Brazil is no different and,
11 therefore, there's nothing to suggest that its
12 new social media regulations are designed to
13 target only U.S. companies.

14 And finally on e-payments regulation,
15 PIX, the payment system launched by the
16 Central Bank of Brazil serves several important
17 public interest purposes.

18 Not only has PIX enabled greater
19 innovation and competition in the FinTech sector,
20 it has enabled a huge jump in financial
21 inclusion, including to a number of broader
22 social benefits of the ability of previously
23 unbanked and underbanked to access formal
24 financial services.

25 And no evidence has been presented of

1 any discriminatory actions against U.S.
2 companies. The complaints have been only
3 theoretical.

4 In conclusion, by carrying out this
5 unjustified Section 301 investigation against
6 Brazil, the USTR could discredit this important
7 tool and shaking the global faith in the U.S. as
8 a country governed by the rule of law and
9 weakening the case against adversary nations that
10 take similarly illegal actions.

11 Public Citizen and Data Privacy
12 Brazil believe that the current investigation
13 doesn't hold up to legal scrutiny and we
14 encourage the USTR to close its investigation
15 into Brazil's supposed illegal and unfair
16 practices in the context of digital regulation
17 and intellectual property, without returning
18 finding suggesting a breach of Section 1 by
19 Brazil -- Section 301 by Brazil.

20 Thank you.

21 CHAIR GRIMBALL: Okay, thank you.

22 At this point, we're going to move to
23 questions from the government panel to the
24 witnesses.

25 As I said at the top, this hearing is

1 on actionability of matters under Section 301.

2 So, despite perhaps the testimony
3 presented here today, the questions that you will
4 receive from the government panel will address
5 actionability.

6 MR. VOLTAGGIO: The first question is
7 for Mr. Herrington.

8 Your testimony summary and your
9 written comments, as well as your testimony here
10 today, address conflicts that arise from the
11 Brazilian Central Bank's operation and regulation
12 of the government run electronic payment system,
13 or PIX.

14 Could you please expand on these
15 concerns and how specifically they may affect
16 U.S. firms?

17 Thank you.

18 MR. HERRINGTON: Sure, I'll say -- I
19 appreciate the question. I'll say, first of all,
20 I want to -- I'll submit a written rebuttal
21 response just to be very, very thorough.

22 But on the surface, I think,
23 certainly, as I said in my testimony, we agree,
24 and I think our members agree, that PIX has been
25 beneficial for issues like financial inclusion

1 and digital inclusion.

2 The real -- the question becomes,
3 what -- when you work as both regulator and
4 operator. And we believe that there's a lack of
5 transparency and separation in the governance of
6 -- between the -- being a regulator and being an
7 operator in that sense.

8 And obviously, there are other
9 Central Banks around the world that operate in
10 that sphere, but they have, frankly, much more
11 robust governance procedures.

12 So again, it's the division between
13 -- we'd like to see the division between --
14 ensure competitive playing field for private
15 providers, ensuring that the peak system is
16 divided between -- that the responsibilities
17 between operator and regulator are clearly
18 defined and ensure transparency and fair
19 competition.

20 And again, I'll follow up in writing
21 with a more robust answer.

22 MS. COTA: This next question is for
23 Mr. Brzytwa of Consumer Technology Association.

24 Could you please elaborate on your
25 written comment that Brazil's courts continue to

1 press internet platforms to take responsibility
2 for select third-party content. And as a result,
3 companies would likely remove any content that
4 might not come close to violating the law.

5 And how are your member companies
6 currently evaluating whether to take down content
7 or not in Brazil?

8 MR. BRZYTWA: Thank you so much for
9 your question.

10 Look, companies in general want to
11 comply with the regulations they are subject to.

12 And I think it's no different here
13 where companies might overcompensate for the
14 rule. They want to come into compliance and that
15 might have unintended consequences.

16 So, I can't speak to the specific
17 practices of individual companies in this regard,
18 but just as a general matter, and we've seen this
19 across numerous types of regulation, even here in
20 the United States, where companies might say, I
21 need to submit all this documentation because I
22 --- my company, we want to make sure we're in
23 compliance.

24 And it might be too much
25 documentation that might go too far in terms of

1 take down and removing content that otherwise
2 should be, you know, kept online.

3 So, we can follow up in post-hearing
4 about this if you want more detail but, you know,
5 I think the comments stand for themselves.

6 MS. BONNER: This question is for Mr.
7 Murray. Thank you.

8 In your written comments, you state
9 that private players in the digital payments
10 landscape are required to create ecosystems where
11 participation is voluntary.

12 Whereas, PIX receives benefits such
13 as access to competitive information, mandated
14 bank investments in PIX, and regulation dictating
15 priority placement of the PIX icon.

16 Could you please elaborate on how, if
17 at all, electronic payment service providers from
18 the U.S. or elsewhere may be affected by these
19 alleged benefits received by PIX?

20 MR. MURPHY: Thank you very much for
21 the question.

22 Let me begin by saying that
23 Information Technology Industry Council and our
24 members have no issue with government managed
25 payment systems when they compete fairly with

1 private sector payment systems.

2 And as my colleague from the U.S.
3 Chamber said a moment ago, in the case of Brazil,
4 this is not the situation.

5 The Central Bank of Brazil both
6 regulates the financial sector, including many of
7 the measures you just referred to, which are in
8 our long form comments, but also operates a state
9 championed entity that is a competitor to the
10 private sector companies.

11 I'd be happy to take back and provide
12 more written detail, but I think that the
13 position that we stated, which you just
14 summarized, which includes certain preferential
15 elements such as again, I'm sorry, I forgot the
16 name of the word, the -- I'm sorry -- can you
17 tell me what was the you said it was?

18 MS. BONNER: Yes, the PIX icon, it
19 was the priority placement of that?

20 MR. MURPHY: Yes, I'm sorry, thank
21 you for that.

22 So, for example, on digital devices
23 where you would normally access and conduct
24 financial transactions, PIX is given prominent
25 places.

1 For example, if you were -- an
2 equivalent would be if you were to walk into a
3 bricks and mortar store and a competing product
4 that is supported by the government has prime
5 placement in a store and you have to then go
6 search to find other alternatives that are
7 operated by commercial service providers, it is
8 itself, a de facto discrimination, and an
9 impediment to fair access.

10 Again, as I said, I'd be happy to
11 elaborate more in writing, but that is a summary
12 of an example of how we view the situation.

13 MS. BONNER: That's helpful, thank
14 you.

15 MR. BAN: I have a few questions for
16 Ambassador Azevedo.

17 CNI's comment contends that, in 2024,
18 the applied effective tariff on U.S. exports to
19 Brazil is only 2.7 percent, significantly lower
20 than the 11.2 percent average tariff published in
21 the WTO database.

22 Common attributes the lower rate to
23 various special customs regimes and tariff
24 exceptions, and notes that goods of other
25 non-MERCOSUR countries are subject to effective

1 tariff rates higher than 2.7 percent, but still
2 lower than the 11.2 percent average rate.

3 The comment seems to suggest that the
4 sectoral composition of imports matters to the
5 variation between effective rates across
6 countries.

7 What about other factors such as
8 differences in importers' abilities to meet
9 compliance requirements to benefit from many
10 special customs regimes and exceptions?

11 Second, you have provided data for
12 2024. Has CNI calculated effective rates for
13 prior years and how much variation is there from
14 year to year?

15 AMBASSADOR AZEVEDO: All right, well,
16 thank you for the question.

17 And as you can imagine, those numbers
18 came after a number of calculations were made. I
19 mean, it depends very much on how you look at the
20 numbers and the data.

21 I'm more than happy to go a little
22 bit deeper into all of those calculations, the
23 methodology we use to get to those numbers, but
24 in the written comments, we will definitely be
25 doing that.

1 The only thing I can say is that, at
2 least from my personal experience in this
3 particular arena, those numbers didn't surprise
4 me at all. They sound very much like what we had
5 looked at in the past, especially if you look at
6 the numbers of the other trading partners.

7 Those margins of preference, for
8 example for Mexico, India, they are very small
9 and they don't apply to a very significant
10 portion of the imports of Brazilian goods.

11 So again, I'm more than happy to go
12 deeper into the calculations and the methodology
13 that was used. We can break down all the
14 elements, but the numbers, they don't surprise me
15 at all.

16 I don't know if I answered your
17 question properly, but if I didn't, we'll do
18 better with the written comments.

19 MR. BAN: Thank you, Ambassador,
20 written comment would be helpful.

21 AMBASSADOR AZEVEDO: Thank you.

22 MR. HUFFMAN: My question is for Ms.
23 Andrade from CNA.

24 CNA's comments note that the
25 existence of a U.S. trade surplus with Brazil

1 demonstrates that Brazil's preferential trade
2 agreements have a limited impact on bilateral
3 trade.

4 In your opinion, what would be the
5 impact on the U.S. trade surplus with Brazil if
6 U.S. goods could compete on equal footing with
7 goods from India and Mexico?

8 MS. ANDRADE: Thank you for the
9 question.

10 As I mentioned in my statement,
11 Brazil has a very limited network of trade
12 agreements.

13 In our sector, for example, the
14 agricultural sector, our main partner is, in
15 terms of exports, is Asia. And we have zero
16 trade agreements with them.

17 So, I think that's Brazilian agri
18 business sector, it's so competitive in the
19 international market, not because of preferential
20 rates.

21 So, I think that in terms of the
22 trade relationships between Brazil and the United
23 States, if we have, like we do today, we have a
24 fair in trade bilateral relationship, our -- will
25 be -- probably increase our trade.

1 MR. ABBOTT: Mr. Matos, I'd like to
2 focus on Cecafe's comment in the USTR portal
3 relating to the issue of unfair preferential
4 tariffs.

5 You note that preferential agreements
6 signed by the country follow multilateral
7 standards, granting reciprocal and balanced
8 benefits to trade partners without harming
9 competitors from other markets.

10 Could you elaborate on this view,
11 specifically on the position that U.S. firms are
12 not harmed by these agreements?

13 Wouldn't U.S. firms be more
14 competitive in the Brazilian market, absent the
15 preferential tariff treatment that Brazil has
16 granted to its other trading partners, including
17 India and Mexico?

18 MR. MATOS: Thank you very much for
19 these excellent questions.

20 The relationship between Brazil and
21 USA, it's two -- almost two centuries and the
22 companies treat each other very well.

23 As I mentioned, if Brazil is the
24 biggest exporter, USA is the biggest consumer.
25 So, when I say it's irreplaceable, it means

1 because USA is so huge of the global market.

2 And we are in a moment that
3 production faces challenged times in climate
4 anomalies.

5 Brazil, we have a difficult
6 harvesting period for the five last -- five
7 seasons and in the world as well.

8 The stocks, the ending stocks in the
9 world is the lowest since 1990. In the Arabica
10 coffee, that's the majority product we export to
11 USA represent 80 percent and Arabica coffee is
12 the lowest level.

13 So, there is a relationship for a
14 specific characteristics that match consumers in
15 USA and production regions in different
16 production regions in Brazil.

17 So, we export to 120 countries, but
18 for us, USA is the number one, and we understand
19 that it will not change. We will -- can't --
20 it's possible to find a way to solve that,
21 because it cost benefits for U.S. economy.

22 And coffee is the symbol of culture
23 in the United States since the independence
24 times, USA abandoned tea and embrace coffee as a
25 national symbol.

1 So, Brazil is ready to keep that
2 collaboration and this relationship.

3 Thank you very much.

4 CHAIR GRIMBALL: Thank you.

5 And this last question is for Ms. St.
6 Louis.

7 You know, I believe in your written
8 comments that Section 301 confers significant
9 power to the executive to ensure that American
10 trade and commercial interests can be protected
11 when faced with genuine threats.

12 I want to focus on the reference to
13 genuine threats.

14 Can you please explain what you mean
15 by genuine threats and if you are referring --
16 and if that phrase, rather, refers or has any
17 relationship to the acts, policies, and practices
18 that were referenced in the initiation notice for
19 this investigation?

20 MS. ST. LOUIS: We -- yes, thank you
21 for the question.

22 As our submission focused on digital
23 regulations and intellectual property, we believe
24 that there were not justified acts that would
25 impact U.S. workers and U.S. jobs, and that those

1 would -- those are not genuine, genuine threats.

2 And so that was what we focused on.

3 CHAIR GRIMBALL: Okay, thank you.

4 Just a reminder for everyone, you are
5 able to supplement your responses to questions
6 from the panel in your written comments seven
7 days after this hearing.

8 And with that, we release Panel 1.

9 We can take a five or so -- a little
10 bit over five minute break.

11 Let's return with Panel 2 at 11:10.

12 Thank you everyone.

13 (Whereupon, the above-entitled matter
14 went off the record at 11:02 a.m. and resumed at
15 11:13 a.m.)

16 CHAIR GRIMBALL: Thank you. We are
17 joined by some additional government panelists.
18 So, I'll just ask those additional people to the
19 panel, to introduce themselves.

20 MS. NEUMANN: Good morning, I'm
21 Sabina Neumann. I'm with the Foreign
22 Agricultural Service here in Washington, D.C.,
23 U.S. Department of Agriculture, Biofuels.

24 MR. REYNOLDS: And, I'm Tobias
25 Reynolds at the Department of Commerce

1 International Trade Administration.

2 CHAIR GRIMBALL: Okay. And, with
3 that, Mr. Cooper, you have the floor.

4 MR. COOPER: Well, thank you and good
5 morning. My name is Jeff Cooper and I'm the
6 President and CEO of the Renewable Fuels
7 Association. We are the leading trade
8 association for U.S. ethanol producers.

9 I appreciate the opportunity today to
10 voice our support for the Section 301
11 investigation into Brazil's unfair and
12 discriminatory ethanol policies.

13 RFA strongly believes a thorough
14 investigation is justified and necessary. And,
15 we commend the USTR for bringing much needed
16 scrutiny to Brazil's prejudicial and unreasonable
17 actions.

18 Over the past eight years, Brazil has
19 implemented tariff and non-tariff barriers,
20 specifically designed to block U.S. produced
21 ethanol from entering the Brazilian marketplace.
22 These barriers have been highly effective in
23 achieving the outcomes desired by Brazil.

24 After peaking at \$760 million in
25 2018, the value of U.S. fuel ethanol exports to

1 Brazil collapsed to zero by 2023 and remains
2 negligible today.

3 Whereas Brazil was once the world's
4 largest importer of U.S. ethanol, the market has
5 disintegrated over the past five years due to the
6 imposition of numerous barriers.

7 Among the many discriminatory
8 policies implemented by Brazil, two specific
9 barriers stand out as being the most injurious to
10 U.S. ethanol producers and distributors. First,
11 Brazil levies a punitive tariff on U.S. ethanol
12 imports.

13 The tariff rate currently stands at
14 18 percent and has been as high as 20 percent.
15 In 2017, Brazil abandoned its policy of
16 reciprocal duty-free access for U.S. ethanol.

17 As a result, U.S. ethanol exports to
18 the country rapidly deteriorated. Over the past
19 several years, diplomacy efforts by U.S. industry
20 and government to secure the removal of Brazil's
21 tariff have ultimately proven unsuccessful.

22 The second barrier I wish to address,
23 is Brazil's low carbon fuel regulation, known as
24 RenovaBio. Under the program, fuel distributors
25 must achieve annual reductions in the carbon

1 intensity of the fuels supplied to the
2 marketplace.

3 Certified producers of low carbon
4 fuels receive valuable credits that may be sold
5 to other parties who must comply with the
6 program's requirements.

7 Through an opaque process, Brazil's
8 government has certified nearly all Brazilian
9 ethanol facilities for participation in the
10 RenovaBio program.

11 However, not a single U.S. ethanol
12 facility has been certified or otherwise allowed
13 to participate in the program.

14 U.S. ethanol is blocked from
15 accessing the RenovaBio program via Brazil's use
16 of questionable life cycle carbon intensity
17 modeling and the imposition of inequitable and
18 unfeasible feedstock tracking requirements.

19 U.S. officials have repeatedly
20 encouraged Brazil to adopt the same land use and
21 feedstock tracking approach that we use here in
22 the United States for our renewable fuel
23 standard.

24 The EPA applies what it calls an
25 aggregate compliance approach, and they apply

1 that to Brazilian imports as well.

2 We have encouraged the Brazilian
3 Government to adopt that same approach, and they
4 have so far steadfastly refused to adopt an
5 equitable approach for feedstock tracking.

6 Adding insult to injury, Brazilian
7 ethanol has had virtually unfettered access to
8 the U.S. market for the past 14 years, facing
9 only a 2.5 percent ad valorem duty.

10 In fact, policies like the RFS and
11 State Low Carbon Fuel Programs actually give
12 preferential treatment to Brazilian sugarcane
13 ethanol imports over U.S. grain-based ethanol.

14 In closing, we are confident that the
15 Section 301 investigation will provide
16 indisputable evidence that Brazil's unfair
17 policies have severely injured U.S. ethanol
18 producers and farmers.

19 Thus, we support the following
20 actions to ensure U.S. producers are protected
21 against the deleterious effects of Brazil's
22 policies.

23 One, continue negotiations focused on
24 permanently removing the Brazilian tariff on
25 imported ethanol. Two, work with Brazil to

1 eliminate the unfeasible barriers that block U.S.
2 ethanol producers from participation in the
3 RenovaBio program.

4 Three, collaborate with EPA to
5 implement their proposed adjustments to RFS
6 compliance credit values for ethanol imported
7 from Brazil. Four, remove Brazil's generalized
8 system of preferences or GSP designation.

9 And, five, until the Brazilian tariff
10 on U.S. ethanol is removed, strictly enforced the
11 reciprocal tariff on Brazilian ethanol imports
12 recently enacted by the Trump administration.

13 Thank you again for providing the
14 U.S. ethanol industry an opportunity to share our
15 perspective, and I look forward to your
16 questions.

17 CHAIR GRIMBALL: Thank you, Mr.
18 Cooper. Mr. Bliley, you have the floor.

19 MR. BLILEY: Thank you. My name is
20 Chris Bliley and I'm the head of Regulatory
21 Affairs for Growth Energy.

22 Growth Energy is the nation's largest
23 association of biofuel producers collectively
24 representing more than half of our country's
25 ethanol production.

1 Our written comments provide
2 additional details on ethanol market access,
3 preferential tariffs, and deforestation.

4 But, above all, I want to emphasize
5 that we want three things, fairness in our
6 bilateral trade with Brazil, fair deals that
7 support the United States as the ethanol supplier
8 of choice around the world, and equal treatment
9 and accuracy in how international modeling treats
10 U.S. ethanol.

11 Brazil has not treated U.S. ethanol
12 and U.S. agriculture fairly. The country's
13 actions have led to the imposition of unfair and
14 misguided requirements on U.S. agriculture by
15 other nations.

16 For too long, Brazil has restricted
17 U.S. access to their ethanol market by using
18 discriminatory practices on tariffs, as well as
19 restrictive measures under their low carbon fuel
20 program, RenovaBio. We applaud USTR for taking
21 action to level the playing field.

22 Among our requests on preferential
23 tariffs, we ask that USTR seek equal access for
24 U.S. ethanol into the European Union. Fair
25 treatment that is no less favorable than what

1 Brazil will potentially secure in the yet to be
2 approved MERCOSUR EU Trade Agreement.

3 On deforestation, we ask USTR to
4 expand the section scope to look more broadly at
5 Brazil's agricultural and land use to ensure U.S.
6 ethanol and American agriculture are not
7 restricted globally because of Brazil's
8 practices.

9 Today, inaccurate life cycle
10 assessments by some international organizations
11 artificially favor Brazilian ethanol over U.S.
12 ethanol.

13 Brazil's questionable sustainability
14 claims are already restricting our export market
15 potential, and this continued imbalance will
16 jeopardize our ability to expand exports and seek
17 new uses for ethanol, including in the maritime
18 and aviation sectors.

19 On ethanol market access, Brazil has
20 actively sought unfettered access to the U.S.
21 market and cited the need for free and fair trade
22 between our countries.

23 Unfortunately, Brazil's actions to
24 impose one-sided tariffs have made bilateral
25 collaboration on ethanol, largely untenable.

1 Without fairness, Brazil shows other
2 countries that restrictive policies and isolation
3 are the only means for their biofuels industry to
4 flourish. Brazil also emphasizes that both of
5 our countries have minimal need for imports given
6 domestic ethanol production.

7 But, this is exactly why Brazil
8 should remove its tariff and non-tariff
9 restrictions on U.S. ethanol. If domestic
10 production is so strong, then why does Brazil's
11 biofuel industry need protection in the form of
12 unfair trade barriers?

13 Additionally, Brazil's assertion that
14 there is only a slight potential for greater
15 ethanol trade is another reason why USTR should
16 include other goods and scenarios beyond ethanol
17 in its attempt to remedy these trade imbalances.

18 Additionally, the U.S. ethanol
19 industry has worked very closely with Brazilian
20 regulators on RenovaBio, a program designed
21 specifically to meet the needs of Brazilian
22 industry structured very differently than similar
23 programs in the U.S.

24 We appreciate the work done by USTR
25 and the U.S. Department of Agriculture to address

1 the many structural issues associated with U.S.
2 feedstocks and default values under this program.

3 We have patiently waited and worked
4 for years to resolve this, but Brazil has
5 acquiesced to their domestic industry's demands
6 to functionally keep U.S. ethanol from
7 effectively, fairly, and widely participated in
8 their program.

9 Conversely, Brazil can participate
10 unabated within U.S. programs. This conflicts
11 with Brazil's commitments under the WTO, and we
12 urge USTR to take further action.

13 U.S. ethanol exports set a record in
14 2024, nearly two billion gallons valued at \$4.3
15 billion. 2025 is forecasted to be another record
16 year, but it will take bold action by USTR under
17 this investigation to secure the fairness,
18 accuracy, and economic competitiveness that will
19 be vital to maintain the U.S. ethanol global
20 trade surplus.

21 Growth Energy strongly supports this
22 investigation, and we'd be happy to provide
23 additional information at USTR's request. Thank
24 you for the opportunity to appear today.

25 CHAIR GRIMBALL: Thank you, Mr.

1 Bliley. Mr. Rockstad, you have the floor.

2 MR. ROCKSTAD: Good morning. I am
3 Neil Rockstad, a fifth-generation farmer from
4 Ada, Minnesota, and I am the President of the
5 American Sugarbeet Growers Association.

6 I represent 10,000 family farms
7 across the 12 states that raise sugarbeets and
8 the U.S. Beet Sugar Association that represents
9 the eight farmer-owned cooperatives who turn our
10 sugarbeets into sugar.

11 Our industry generates 100,000
12 American jobs and contributes \$13.4 billion
13 annually to the United States economy.

14 The entire U.S. sugarbeet industry is
15 in financial distress due to excessive foreign
16 imports, jeopardizing this nation's food
17 security. We have closed 12 processing plants in
18 the last 25 years, with the most recent one just
19 this year.

20 Thank you for allowing me to testify
21 and work with this committee and the U.S. trade
22 representative to stop this loss of our American
23 industry.

24 Brazil is the world's largest
25 producer of sugar. For 2024, Brazil's tier two

1 out of quota imports amounted to 802,000 metric
2 tons, compared to their initial TRQ of 156,000
3 metric tons. That is 414 percent more tier two
4 than TRQ, leading to the market collapse and
5 current economic crisis.

6 Brazil's actions and policies
7 including illegal deforestation, currency
8 manipulation, ethanol and sugar market
9 subsidization, and third-party manipulation of
10 customs classifications has undermined American
11 sugarbeet farmers and led to an oversupply of
12 Brazilian sugar on the U.S. market, and an
13 unsustainable depressed price for the American
14 farmer.

15 Brazilian sugar production has grown
16 significantly in recent years due to land
17 expansion, with 19 percent attributable to
18 deforestation.

19 As its government lifted the ban on
20 sugarcane cultivation in the Amazon rainforest
21 and central wetlands, the Brazilian sugarcane
22 industry unfairly benefitted by pushing other ag
23 industries into the Amazon basin.

24 Next, the extended depreciation of
25 the Brazilian currency has contributed to

1 Brazil's rise to dominance in global agricultural
2 markets. USDA predicts that the Brazilian
3 Government's deliberate depreciation of its
4 currency could boost Brazil's exports of major ag
5 commodities by 5.6 percent and lead to a decrease
6 in international prices of 2.7 percent.

7 That change will have a detrimental
8 impact on U.S. sugarbeet farmers, including a
9 higher risk of more plant closures and American
10 job losses.

11 The Brazilian ethanol and sugar
12 markets are closely related. Brazil is the
13 world's largest producer of sugarcane ethanol.

14 It engages in a wide variety of
15 nonmarket practices, resulting in the equivalent
16 of at least \$2.5 billion in subsidies to the
17 ethanol market that effectively cross-subsidize
18 their sugar industry and artificially depressed
19 world sugar prices. Combined with weak
20 enforcement efforts, these policies unfairly
21 manipulate global sugar trade, harming U.S.
22 sugarbeet farmers.

23 Finally, a cane sugar refinery
24 outside the U.S. is using cheap subsidized
25 Brazilian sugar to circumvent the tariff system

1 and bypass U.S. import restrictions.

2 Brazilian producers export raw sugar
3 to a third country, where it is minimally
4 processed and exported to the U.S. as so-called
5 sugar molasses and sugar syrups, which are exempt
6 from TRQ and tier two tariffs.

7 After importation, importers are
8 further refining it into sugar, creating a huge
9 price advantage directly injuring American
10 sugarbeet farmers.

11 We recommend three distinct remedies.
12 The current sugar tier two duties on raw and
13 refined sugar no longer reflect the original
14 intent of restricting out of quota volumes.

15 In 2000, the last year in which the
16 quotas were adjusted downward, the tariff was
17 roughly 200 percent of the world refined sugar
18 price, and 300 percent of the world raw sugar
19 price.

20 After 25 years of inflation and
21 depreciation of the Brazilian Real, the duty
22 rates should be more than double to achieve the
23 same intended effect. Farmers need a level
24 playing field to preserve a vibrant American
25 sugarbeet industry.

1 Second, strictly limit Brazil to its
2 minimum TRQ. This practice would prevent Brazil
3 from dumping high volumes of tier two sugar and
4 additional end quota sugar in American markets
5 and injuring American farmers.

6 And third, close the molasses
7 classification loophole scheme that uses Brazil
8 sugar to the detriment of U.S. sugarbeet farmers.

9 This can be achieved through the
10 promulgation of appropriate testing and
11 verification requirements as mandated by Congress
12 in FY2025 and expanded in the FY2026 Senate
13 Appropriations ag legislation that was passed.
14 CBP should issue the final action on the Section
15 1516 Petition following Congress's prescribed
16 testing.

17 I would like to thank the committee
18 and the administration for allowing me to
19 testify. It is time to enforce our trade laws to
20 make Brazil play by the rules, and in doing so,
21 we can reinvigorate America's rural economy,
22 preserve our sugarbeet farm families, and save
23 our industry.

24 CHAIR GRIMBALL: Thank you, Mr.
25 Rockstad. Ms. Almeida, you have the floor?

1 MS. VERISSIMO: Good morning. My
2 name is Andrea Verissimo, Director of
3 International Affairs and Communications for
4 UNEM, the Brazilian Corn Ethanol Association.

5 UNEM is a national advocacy
6 organization that represents the interest of the
7 Brazilian corn ethanol industry. We are grateful
8 for the chance to speak to you today about
9 ethanol trade between Brazil and the United
10 States.

11 The notice of initiation identified
12 ethanol market access in Brazil as an area of
13 concern. UNEM has already submitted detailed
14 comments in writing that clearly demonstrate that
15 Brazil has not adopted X policies or practices
16 that are actionable under Section 301, and United
17 States should instead work alongside Brazil to
18 expand emerging end use markets and address third
19 country market access.

20 The American and Brazilian corn
21 ethanol sectors are highly integrated. The
22 Brazilian ethanol industry is a significant
23 importer of U.S. production equipment, technology
24 and inputs, which generated over \$1 billion in
25 value for the United States.

1 Moreover, there are ethanol producers
2 in Brazil owned by American companies,
3 distributing over \$338 million in dividends to
4 U.S. shareholders.

5 The notice raises concerns about
6 Brazil's current 18 percent MFN tariff on imports
7 of ethanol. It states that the U.S. suffers from
8 higher tariffs on ethanol by Brazil and from
9 imbalanced trade due to Brazil's decisions to
10 change its tariff policies.

11 To be clear, Brazil's trade policies
12 have not harmed U.S. ethanol producers. In 2024,
13 the United States enjoyed record success in
14 production volume and exports.

15 The U.S. production of ethanol was
16 nearly double that of Brazil, and export
17 shipments increased approximately 35 percent from
18 2023.

19 As the two largest global ethanol
20 producers, U.S. and Brazil have a limited need
21 for imports to meet domestic demand, and the
22 majority of each country's production is
23 dedicated to domestic consumption.

24 As a result, bilateral ethanol trade
25 between the U.S. and Brazil represents a small

1 portion of overall trade. From 2015 to 2024,
2 U.S. ethanol exports to Brazil represented only 1
3 percent of total U.S. exports to Brazil.

4 Prior U.S. administrations introduced
5 regulatory barriers such as the Renewable Fuel
6 Standard, which effectively block Brazilian
7 ethanol from accessing the U.S. market on an
8 equal footing, and caused Brazilian ethanol
9 exports to the United States to sharply decline
10 over the last 10 to 15 years.

11 Brazil's 18 percent tariff applies
12 equally to all imports of ethanol, regardless of
13 country of origin, and is significantly lower
14 than the United States' current targeted 52.5
15 percent tariff on ethanol from Brazil.

16 Changes in Brazil's tariffs on
17 ethanol have not had an impact on U.S. ethanol
18 exports to Brazil. In fact, its flow is driven
19 by local supply and demand conditions in Brazil,
20 not tariff adjustments.

21 You can see this trend most clearly
22 in the '22-'23 period when Brazil's tariff on
23 ethanol imports was 0 percent, and U.S. ethanol
24 exports actually decreased.

25 In contrast, U.S. exports to Brazil

1 were higher in the '24-'25 period with the 18
2 percent tariff than in the '22-'23 period when
3 the tariff was 0 percent.

4 Importantly, any linkage between
5 Brazilian ethanol and deforestation is unfounded.
6 Brazilian ethanol producers operate on one of the
7 most rigorous environmental frameworks in the
8 world, the Brazilian Forest Code, which is
9 enforced with strict monitoring systems.

10 Specifically, Brazilian corn ethanol,
11 is produced mainly as an intermediate or
12 multi-cropping crop, which is grown on
13 consolidated agricultural areas.

14 The International Civil Aviation
15 Organization's decision to recognize the
16 environmental benefits of multi-cropping in
17 producing sustainable aviation fuel, only
18 reinforces that the global community recognizes
19 the science and sustainability of the rigorous
20 practices used in the Brazilian ethanol sector.

21 The recommendation was adopted
22 unanimously within the IKO Council with the sole
23 exception of the United States.

24 Finally, it's important to clarify
25 that, contrary to certain claims, the RenovaBio

1 program is not limited to Brazilian producers.
2 U.S. ethanol plants have already been certified,
3 demonstrating that the program is open and based
4 on rigorous technical and environmental criteria
5 that any producer can meet, regardless of country
6 of origin.

7 The continued growth of the U.S. and
8 Brazilian ethanol industries depend on increasing
9 ethanol demand. There is massive potential for
10 the increased use of ethanol in emerging end-use
11 markets, including the sustainable aviation fuel
12 and maritime sectors, which will account for over
13 75 percent of new biofuel demand by 2030.

14 However, U.S. and Brazilian ethanol
15 producers face persistent discriminatory barriers
16 to enter and maintain access in various third
17 country producers, markets, I'm sorry, including
18 the EU, Thailand, and India.

19 The U.S. and Brazil should focus
20 their efforts on collaborating to promote the use
21 of ethanol in emerging end-use markets and
22 open/closed markets.

23 Thank you for your attention.

24 CHAIR GRIMBALL: Thank you. And,
25 just for the record, the witness is not Ms.

1 Almeida, it's Ms. Verissimo. So, just in case
2 you didn't catch it. Thank you.

3 Next, Mr. Barral, you have the floor.
4 Thank you.

5 MR. BARRAL: Yes. Madam Chair,
6 members of this committee, good morning, and
7 thank you for the opportunity to testify. I'm a
8 counsel for UNICA, the Brazilian Sugarcane
9 Bioenergy Industry Association.

10 UNICA represents companies
11 responsible for more than half of Brazil's
12 ethanol, sugarcane, and bioelectricity output.

13 Many of our members are longtime
14 commercial partners of U.S. firms and investors.
15 And, our supply has helped to stabilize the U.S.
16 fuel markets in off season windows.

17 I'd like to advance three points.
18 First of all, Brazil's tariff regime for ethanol
19 is MFN consistent and nondiscriminatory.

20 Second, Brazil's ethanol materially
21 advances U.S. decarbonization goals at
22 competitive cost. And third, there's a
23 constructive path to address perceived
24 asymmetries between, regarding bilateral trade.

25 On the first point, I'd like to

1 emphasize that Brazilian tariff, first we don't
2 have a Brazilian tariff.

3 In fact, we have a MERCOSUR common
4 tariff, and this tariff of 18 percent is within
5 the bound tariffs at the WTO. So, we are
6 consistent with GATT, Article I and II.

7 On the other hand, as of August 2025,
8 the U.S. duties applied to Brazilian ethanol
9 reach 52.5 percent. So, a level that in fact is
10 three times the Brazilian tariff today.

11 Second, regarding the climate on fuel
12 objectives, I'd like to emphasize that the U.S.
13 EPA recognized that the sugarcane ethanols
14 average 61 percent reduction on emissions
15 compared to gasoline.

16 When we talk about the
17 second-generation ethanol, that's 91 percent of
18 reduction in emissions. We also have, in the
19 case of Brazil, an official program since 1975
20 that supplies 45 percent of liquid fuel for
21 Brazil's vehicles and light vehicles.

22 And, in the case of the RenovaBio, we
23 have to clarify some points here. It's an origin
24 neutral certification program. It's based on
25 lifecycle analysis and on verification aligned

1 with the spirit of the renewable fuel standard of
2 the EPA.

3 These measures are also guaranteed
4 and justified under Article XX and also
5 consistent with the famous US - Gasoline case
6 when it recognized the measures to defend the
7 environment.

8 Regarding some of the criticism on
9 the sector, we have shown true, some of them are
10 overstated. We have to understand that first,
11 the trade flows between Brazil and the U.S. that
12 reflect a very complex sector, a complex trade.

13 It involves oil price cycles,
14 blending mandates in Brazil and the U.S., and
15 seasonal complementarities.

16 There is also regulatory asymmetry in
17 the U.S. For example, the EPA by intermediary
18 rule requires full segregation of food stock
19 through export, and that limits the Brazilian
20 access to the local market.

21 And then, when we talk about the
22 linked products on the same value chain, the
23 sugar TRQ caps imports equal to 120 percent ad
24 valorem tariff regularly. So, that underscores
25 that a need for reciprocity is on the other way.

1 Regarding some proposals that we
2 could put here, we'd like to propose a
3 constructive path, and for some opportunities to
4 expand the ethanol market.

5 We have to understand that the
6 ethanol market has a huge challenge in the
7 future, especially regarding the SAF, the
8 sustainable aviation fuel.

9 We should launch a mutual recognition
10 work stream between the Brazilian and the U.S.
11 authorities. That could reduce the applicative
12 certification costs.

13 Yet, we could calibrate some federal
14 rules in the U.S. that could allow multi-buyer
15 pathways with chain of custody assurance that
16 would reduce costs for anyone in the U.S. market.

17 And, regarding the TRQ, we create
18 seasonal TRQs, green windows could destabilize
19 the market and could help the U.S. consumer.

20 In the medium term, we should review
21 the TRQ for sugar and have a more effective
22 administration system. On the other hand,
23 talking about specifically about SAF, the world
24 is going to need a lot of SAF.

25 The U.S. and Brazil could be the main

1 producers. There are natural conditions in both
2 countries and domestic laws should be aligned to
3 allow that.

4 We have also opportunities to urge
5 our governments to create a working group, for
6 example, for MRV interoperability milestones, bio
7 intermediary adjustment options, and seasonal
8 TRQs.

9 Our specific ask and our specific
10 goal, is to terminate the Section 301 action and
11 initiate the regulatory and TRQ pilots above.
12 This approach solves the real friction, preserves
13 U.S. consumer benefits from diversified, lowers
14 CI supply, and respected WTO disciplines.

15 Thank you.

16 CHAIR GRIMBALL: Thank you, Mr.
17 Barral. Ms. Schmid, you have the floor.

18 MS. SCHMID: Thank you for the
19 opportunity to testify on the ethanol market
20 access issues. My name is Linda Schmid, and I
21 manage multilateral ethanol policy for the U.S.
22 Grains and Bioproducts Council.

23 We work to secure market access for
24 our members who produce corn, sorghum, barley,
25 distillers, dried grains with solubles, high

1 protein animal feed, and ethanol.

2 We advance the export interests of
3 our members who include 200,000 farmers on 90
4 million acres in the United States and 200
5 ethanol plants. We work to supply the world with
6 on-road aviation and maritime transport ethanol
7 fuel.

8 In Brazil, we seek the reduction of
9 tariff and non-tariff barriers that inhibit
10 cross-border flows of ethanol.

11 In addition to eliminating the 18
12 percent tariff Brazil imposed in 2024, we seek a
13 pragmatic path forward to amend non-tariff
14 barriers contained in the implementation of
15 Brazil's biofuel policy and associated
16 regulations.

17 American farmers and ethanol
18 producers excel in innovation and production,
19 which makes U.S. corn-based ethanol the most
20 competitively priced high quality fuel blend in
21 the global marketplace.

22 On August 12, the U.S. Department of
23 Agriculture forecast average corn yield at a
24 record high of 188.8 bushels per acre, up 9.5
25 bushels from last year for a total of 16.7

1 billion bushels. Record yields are expected in
2 Idaho, Illinois, Indiana, Iowa, Minnesota,
3 Missouri, South Carolina, South Dakota,
4 Tennessee, Virginia, and Wisconsin in 2025.

5 Ethanol plants experienced a 6.5
6 percent increase in ethanol yield from 2.7 to
7 2.86 gallons a bushel of corn in 2022. Today,
8 record production and historically low commodity
9 prices drive the search for new and expanded
10 markets abroad.

11 USTR can strengthen the economic
12 position of American farmers and ethanol
13 producers by securing cross border flows of
14 ethanol to Brazil under the Section 301
15 investigation.

16 My remarks focus on our members'
17 experience engaging with the Brazilian market and
18 provide a clear path forward in eliminating
19 obstacles to ethanol trade.

20 We highlight the impact of Brazil's
21 tariffs on U.S. ethanol exports, we describe our
22 members' experience grappling with non-tariff and
23 tariff barriers. Brazil's overarching biofuel
24 policy requires refinements to secure
25 nondiscriminatory trade in ethanol.

1 Although provisions of Brazil's
2 biofuel policy under the 2017 law promote the
3 principles of free competition in the market for
4 biofuels and the protection of consumers'
5 interests as to price, quality, and offer of
6 products, consumer -- Brazil's imposition of 18
7 percent tariff on ethanol imports does the
8 opposite.

9 Brazil's 18 percent tariff has
10 limited competition in its domestic market and
11 raised the cost of ethanol, particularly in the
12 north and northeast regions, which experience a
13 consistent seasonal deficit of ethanol.

14 In addition to the tariff, our
15 members contend with significant non-tariff
16 barriers in the implementation of Brazil's
17 biofuel policy. Despite many years of extensive
18 private and public sector consultations with
19 Brazilian regulatory agencies, including exchange
20 of letters, sharing of U.S. laws and regulations
21 on deforestation and demonstration of an on-farm
22 and ethanol production practices, Brazil's
23 biofuel policies retain discriminatory
24 provisions.

25 And, I would direct your attention to

1 the chart that we've provided in our testimony.
2 We've worked very hard to break down the type of
3 discriminatory barriers we face, and how they
4 privilege resilient ethanol producers in their
5 domestic market, and how they discriminate
6 against U.S. producers.

7 Part of the challenge is that the
8 RenovaBio and RenovaCalc policy is so complicated
9 that it's hard to gain market access under the
10 way that it is implemented.

11 The Council urges USTR to work with
12 Brazil to address the shortfalls in the
13 implementation of Brazil's biofuel policies.
14 And, I would like to conclude my remarks with
15 specific recommendations.

16 And, they are that --

17 CHAIR GRIMBALL: Twenty seconds, Ms.
18 Schmid, we're over.

19 MS. SCHMID: The USTR should
20 negotiate permanent removal of the 18 percent
21 tariff to ensure a level playing field for U.S.
22 ethanol, which provides a competitive marketplace
23 and delivers on consumers' interests as to price,
24 quality, and offer of products; negotiate
25 amendments to Brazil's non-tariff barriers;

1 eliminate non-tariff barriers.

2 USTR should seek mutual recognition
3 of the U.S. industries --

4 CHAIR GRIMBALL: Please conclude.
5 Please conclude.

6 MS. SCHMID: I will. I'm just --

7 CHAIR GRIMBALL: You're over 38
8 seconds.

9 MS. SCHMID: Yes.

10 CHAIR GRIMBALL: Please conclude.

11 MS. SCHMID: I certainly will, madam.
12 USTR in coordination with partner agencies should
13 advance interoperability of carbon accounting
14 methodologies that do not discriminate --

15 CHAIR GRIMBALL: Your time has
16 expired. Your time has expired.

17 MS. SCHMID: Unfairly against --

18 CHAIR GRIMBALL: You can follow up
19 with written comments.

20 MS. SCHMID: Corn-based ethanol.
21 Thank you so much.

22 CHAIR GRIMBALL: Mr. Hartman, you
23 have five minutes.

24 MR. HARTMAN: Can you hear me? Yes.
25 Good morning. Thank you for the opportunity to

1 appear before you today.

2 My name is Kenneth Hartman, Jr., and
3 I am the President of the National Corn Growers
4 Association or the NCGA.

5 The NCGA represents 36,000
6 dues-paying corn growers and the interests of
7 more than a half a million corn farmers who grow
8 corn in the United States. NCGA's mission is to
9 protect and advance the interests of corn
10 growers.

11 Personally, I am a fifth-generation
12 farmer from Waterloo, Illinois and have worked on
13 a farm my whole life. I professionally farm
14 corn, soybeans, and wheat with my wife and my
15 daughters.

16 U.S. corn growers plant and harvest
17 the most high quality efficient corn crop in the
18 world. We depend on export markets for both corn
19 and ethanol so farmers can make a living and feed
20 their families.

21 And, we play by the rules, supporting
22 competition and opposing trade barriers.
23 Unfortunately, Brazil does not value the level
24 playing field and unfairly penalizes U.S. corn
25 growers.

1 Over the past decade, Brazil has
2 taken target trade actions and aimed at
3 evaporating current and future demand for U.S.
4 farmers. In our view, Section 301 investigation
5 into Brazil trade action is deserved and long
6 overdue.

7 U.S. corn growers and ethanol
8 producers used to enjoy a level playing field
9 with Brazil until 2017. In that year, without
10 any reason, Brazil imposed a 20 percent tariff
11 and tariff rate quotas on U.S. ethanol.

12 The tariff was temporarily suspended
13 but later was reinstated at 16 percent. Then,
14 January 1, 2024, Brazil increased the tariff to
15 18 percent once again without any cause.

16 In 2018, the U.S. ethanol exports to
17 Brazil were a value of \$761 million. Brazil was
18 the top market for U.S. ethanol exports by far.

19 But, as soon as the tariff was
20 reimposed, the market was in a free fall decline.
21 This clearly shows how Brazil tariffs led to
22 declining market access for American ethanol
23 exporters.

24 While Brazil was imposing tariffs
25 that resulted in declining American exports,

1 Brazil sugarcane ethanol was being imported in
2 the United States at an increased rate. This
3 export largely went, the exports largely went to
4 California, peaking in 2019 at 195 million
5 gallons.

6 In addition to high tariffs on
7 ethanol, Brazil refused to allow the U.S.
8 producers to obtain approval for the domestic
9 biofuels program called RenovaBio. This is a
10 clear discrimination against U.S. ethanol
11 producers.

12 While the U.S. companies have been
13 allowed to submit applications, none of them have
14 been approved. So, RenovaBio includes stronger
15 incentives for Brazilian ethanol over U.S.
16 ethanol.

17 The United States does not impose
18 such a restriction or participation in our
19 renewable fuel standard, and Brazil companies are
20 allowed to participate.

21 Further, Brazilian international
22 advocacy that claims a lower environmental
23 footprint is nothing short of a gimmick to
24 artificially boost their carbon intensity scores
25 over American farmers.

1 Brazil's claims that its corn is a
2 secondary crop such that inputs and land uses is
3 more minor compared to United States, but this
4 could not be more incorrect, as land conversions
5 from grasslands and rainforest in Brazil is not
6 properly documented.

7 Recently, Brazil's efforts to pay off
8 the International Civil Aviation Organization,
9 ICAO agreed on recommendations that would further
10 cement incentives for the use of Brazilian
11 ethanol over U.S. ethanol in aviation fuel.

12 While the United States opposed the
13 development, more needs to be done to regain the
14 market access to Brazil and ensure an
15 international level playing field for U.S. corn
16 growers.

17 We appreciate the spotlight on Brazil
18 unfair trade actions regarding ethanol, and
19 recommend actions that include a level playing
20 field, removing Brazilian eligibility for trade
21 preference programs, and payment for losses.

22 We have thoroughly documented our
23 views, supported by the evidence in our comments
24 submitted, and stand ready to work with the Trump
25 administration to fix years of economic harm and

1 fight for what we deserve.

2 Thank you for your time and I'm
3 looking forward to any questions. Thank you.

4 CHAIR GRIMBALL: Thank you, Mr.
5 Hartman. Now we will proceed with questions from
6 the government panel.

7 MS. NEUMANN: Thank you so much for
8 your testimony today. My question is for Mr.
9 Cooper.

10 We heard a lot of discussion about
11 trade and the importance of trade today. Can you
12 please describe and give us some context about
13 the export market in Brazil in the period after
14 Brazil lowered its tariff, compared to what
15 happened after it increased it?

16 What effect did the reimposition of
17 tariffs have on U.S. ethanol exports to Brazil?

18 And then, if you could, maybe speak a
19 little bit to what you foresee would be the
20 impact on U.S. export volumes and value if Brazil
21 did lift its tariff. Thank you.

22 MR. COOPER: Yeah, well, thank you
23 very much for the question. And, we did in our
24 more thorough written comments, submit some
25 statistics and charts showing just the tremendous

1 volatility in export volumes and import volumes
2 between our two countries, as Brazil has had this
3 kind of haphazard, sporadic application of its
4 tariff and tariff rate quota programs.

5 I will tell you, and it's been
6 mentioned here a few times already, we saw record
7 exports to Brazil in 2018, of around 500 million
8 gallons. That was our largest market.

9 Brazil had just recently implemented
10 a tariff rate quota that allowed, I believe it
11 was 150 million gallons in tariffs, you know,
12 tariff-free, and then a 20 percent over quota
13 tariff.

14 But, what was happening at that time
15 is Brazil's market was short product. And, even
16 with the TRQ and tariff in place, they needed our
17 volume.

18 You know, this notion that we don't
19 need each other's imports and exports, I think is
20 false. If you look historically, there's been
21 many periods where our market's been short, we've
22 needed product from Brazil and vice versa.

23 Brazil ultimately by 2020, decided to
24 do away with the TRQ and just implement the
25 tariff.

1 And, at that time we saw volumes drop
2 precipitously to the Brazilian marketplace.
3 Again, collapsing from that 500 million gallon
4 number down to, you know, 40, 50 million gallons,
5 ultimately to zero in 2023.

6 And, we've, I think, in the last few
7 years been, you know, roughly in the 30 or 40
8 million gallon range. Again, when it's
9 economical, even with the tariff.

10 You know, I think removal of the
11 tariff longer term, would get us back to a
12 situation where, you know, we're not going to be
13 importing 5, or exporting 500 million gallons
14 every year to Brazil.

15 But, when they have a, you know, a
16 sugarcane crop problem, or we have a drought
17 here, or different issues in our markets, we can
18 exchange products.

19 And, that's the whole benefit of free
20 trade, is it keeps prices low and keeps product
21 flowing for consumers.

22 So, you know, we think long-term,
23 structurally we think Brazil should be, you know,
24 200, 250 million gallon kind of average per year
25 market for our product. Maybe more than that if

1 we get some approvals under RenovaBio.

2 MR. REYNOLDS: This question is for
3 Mr. Bliley. In your testimony, you mentioned
4 restrictive measures for U.S. ethanol exports
5 related to RenovaBio, Brazil's decarbonization
6 credit program.

7 Could you further explain why U.S.
8 ethanol producers have been largely unsuccessful
9 in their efforts to get access to RenovaBio?

10 MR. BLILEY: I mean, I'm not sure I
11 know all the reasons why. I would just say that
12 we understand that one U.S. plant has recently
13 been certified in the program.

14 Contrast that with, you know, more
15 than 300 plants in Brazil that have been
16 certified and participate in the program as of
17 last August, a year ago.

18 And, this is something that we've
19 been working to access as an industry, along with
20 our partners in government as well. You know, we
21 have, as an industry, we have, you know, years,
22 decades of experience within our own renewable
23 fuel standard program, California's low carbon
24 fuel program, and other international programs.

25 So, we've been able to show a great

1 deal of data to Brazilian regulators. But,
2 unfortunately, we just have not had access to the
3 program.

4 Conversely, Brazilian producers have
5 actually gotten preferential treatment. They
6 actually are able to access an advanced Biofuel
7 RIN under our RFS program, and have received
8 pretty, very low carbon scores in California's
9 program.

10 MR. REYNOLDS: Thank you. As a
11 follow up, Mr. Bliley, are you able to share how
12 the calculation of default values and carbon
13 intensity scores affect U.S. exports of ethanol,
14 including in relation to sustainable aviation
15 fuel?

16 MR. BLILEY: Yeah. No, we have a
17 great deal of data in our written comments that
18 we're happy to provide, if you haven't seen them
19 already.

20 But, I mean, essentially a lot of
21 countries have their own climate programs. And
22 so, they look around the world at different
23 models and are really insistent on using various
24 models.

25 You know, as was discussed, the ICAO

1 model, which has been punitive for U.S. corn
2 ethanol. You know, as our friend Kenny Hartman
3 said, our farmers are the best in the world.
4 They're the best stewards of the land.

5 And, as an industry, as an
6 agriculture industry, as a biofuel industry, we
7 continue to get better and better and better
8 improving yields and reducing our impact on
9 greenhouse gas emissions.

10 And, unfortunately, that's not
11 captured in a lot of these international models,
12 because people depend on outdated data. And,
13 ironically, we get penalized for Brazilian land
14 use change, indirect land use change.

15 So, U.S. producers are penalized for
16 actions of other countries. And, at the same
17 time, you know, Brazil has sought preferential
18 treatment for their second crop corn.

19 And so, that is where we are
20 essentially, you know, struck with restricted
21 access into some of these other countries,
22 particularly in aviation and maritime.

23 MR. REYNOLDS: Thank you.

24 MR. HUFFMAN: This question is for
25 the Brazilian Corn Ethanol Association. In your

1 testimony, you noted that U.S. exports of ethanol
2 to Brazil are driven by supply and conditions in
3 Brazil, not Brazil's tariff policies.

4 If you believe this to be the case,
5 would you support removal of Brazil's tariff on
6 imports of U.S. ethanol, and explain why or why
7 not?

8 And, could you also describe the
9 supply and demand conditions in the Brazilian
10 ethanol market?

11 MS. VERISSIMO: Yes. Thank you for
12 your question. The different thing that has
13 happened in Brazil recently was the beginning of
14 the corn ethanol industry, which coincidentally
15 began in 2017.

16 So, we have a new player in the
17 market and that is supplying, and it's continuing
18 to grow. So, perhaps our demand for import is
19 not as much, as important as it was in the past.
20

21 I don't think it's -- it's above my
22 pay grade to be discussing tariff rates. But,
23 honestly, the heart of the matter for us here, is
24 that we believe Brazil and the U.S. are the
25 largest ethanol producers in the world.

1 There's a whole world of countries,
2 about 200 countries, and depending on the source
3 that needs to import biofuels.

4 There are new markets opening up in
5 hard to abate sectors like the aviation sector
6 and the maritime sector. They have to accept our
7 production practices, our sustainability
8 practices.

9 So, we should rather than discuss a
10 trade among ourselves, who are large producers
11 and almost self-supplied, we should be looking at
12 other markets and work together to make sure that
13 we have a place on the table for the new markets
14 that will open up.

15 MS. PASTOR: Thank you. Good
16 morning. The next question is for Mr. Barral.
17 In your remarks, you note that Brazil's RenovaBio
18 program is neutral and nondiscriminatory to
19 foreign producers.

20 I'd like to ask, how would you
21 respond to testimony from others today that have
22 emphasized that the RenovaBio program continues
23 to discriminate against U.S. ethanol producers?

24 MR. BARRAL: Thank you for your
25 question. Well, specifically if I may, I'd like

1 to elaborate and respond to your writing in my
2 next brief and add more information. But just to
3 advance some arguments and some information,
4 RenovaBio is really an important program in terms
5 of complying with Brazilian climate laws, but
6 it's not discriminatory. For example, recently
7 Plymouth Energy, a producer of iron ore obtained
8 the certification in Brazil. You can add that
9 information to the files.

10 And then, I'd also like to mention
11 that what again to emphasize that it's not
12 totally nondiscriminatory, but also we've seen
13 the multilateral rules regarding the protection
14 of the environment. Also, that in the case of
15 the tariff, just to mention the case of the
16 tariff, the tariff is -- we've seen the bound
17 limits of the ICAO that was changed in the GATT
18 1994. So let's remember that in 1994, the U.S.
19 didn't have a surplus of ethanol and the U.S.
20 chose not to negotiate the tariffs then on this
21 sector.

22 So finally, I'd like to emphasize the
23 only case rather than to work with USTR and the
24 U.S. Government should begin all the initiatives
25 that you mentioned that would expand and

1 integrate this market. Thank you.

2 MR. VOLTAGGIO: The next question is
3 for Ms. Schmid from the U.S. Grains and
4 Bioproducts Council.

5 In your written comments, you argue
6 that the bill's actions quote constitute export
7 targeting under Section 301 Part D(3)(b)(2) end
8 quote. Can you expand upon this point and speak
9 more about the particular practices of Brazil
10 that have led you to this conclusion?

11 You also note that Brazil has taken
12 actions that led the International Civil Aviation
13 Organization's Carbon Offsetting and Reduction
14 Scheme for International Aviation or ICAO CORSIA
15 to accept Brazil's carbon accounting methodology.
16 Can you explain what specific actions Brazil has
17 taken to influence the ICAO CORSIA methodology
18 and why you believe Brazil's methodology is
19 flawed? Thank you.

20 MS. SCHMID: In terms of export
21 targeting, I think that the written testimony
22 addresses much of that and that was also drawn
23 from a legal analysis that was done. Essentially
24 because Brazil is inhibiting U.S. imports via its
25 tariffs and its non-tariff treatment of U.S.

1 corn-based ethanol, it is also in foreign market
2 reducing U.S. corn-based ethanol's access due to
3 its actions on the regulatory environment.

4 So let me talk a little bit about the
5 regulatory environment and I think you'll see in
6 my testimony that we go through extensively the
7 provisions of RenovaBio that essentially do not
8 recognize many of the common production practices
9 for traceability that the U.S. uses. In addition
10 to that, it does not recognize the four stations
11 of the program that the U.S. has that was to
12 demonstrate that farmers do protect their land
13 when they're seeking access into our domestic
14 programs for ethanol use. And I would say
15 essentially what has happened is that the
16 RenovaBio program, in terms of its
17 qualifications, are so extreme that no U.S.
18 providers have been able to enter the market.
19 And if you go online and you look at the recent
20 acceptance of ethanol producers into the
21 Brazilian markets, you will see that in some
22 cases less than .1 percent of their production
23 and we checked that yesterday. So that is quite
24 problematic.

25 With regard to ICAO CORSIA, you know,

1 part of the challenge that we have is we have
2 many credible accounting methodologies taking
3 place at the national level and then taking place
4 with the national standard setting bodies. So
5 you have ICAO. You have the IMO and then you have
6 the EU Reg. You have the Canadian regulations on
7 carbon accounting. And for example, with the
8 U.S. and Canada, we have mutual recognition
9 agreements on the way that we produce ethanol and
10 that is identified in my testimony.

11 With ICAO CORSIA, the problem is that
12 it has been essentially captured by the EU
13 because the EU is very good at writing
14 regulations and we're playing a bit of catch up.
15 And I think the U.S. Grains and Bioproducts
16 Council in coordination with our colleagues here,
17 even at the table, has worked very hard to have
18 ICAO CORSIA reevaluate the way that they are
19 undertaking carbon accounting to give greater
20 deference to the way that ethanol is produced in
21 the United States.

22 So because we are so efficient,
23 because we have extremely high yields on the farm
24 and increasing yields at the plant level that
25 continue to increase because of research

1 development and innovation, U.S. corn-based
2 ethanol actually has a very low carbon score.
3 But at the same time, we are seeking the U.S.
4 Government to help us with interoperability
5 between all of these increasing carbon mitigation
6 policies that are impeding the cross border flows
7 of ethanol. You can see it in the EU. You can
8 see it in Brazil.

9 So this is really a challenge that we
10 have and we hope that you will work with us
11 closely to achieve mutual recognition, much like
12 we have done in other industries. If you look at
13 banking, insurance, securities, we have mutual
14 recognition. We have cross-border flows. We are
15 seeking cross-border flows of ethanol and I would
16 just like to reiterate that from the stance of
17 American farmers, we have exceptional yields this
18 year. And we really need to move this corn. We
19 need to process it into ethanol and we need your
20 help restoring robust trade with Brazil. Because
21 at the end of the day, what we seek is robust
22 trade on a competitive playing field. Thank you.

23 MR. VOLTAGGIO: Thank you.

24 MS. BONNER: Mr. Hartman, can you
25 please explain the importance of ethanol

1 production to U.S. corn producers and the role of
2 fair access to export markets to rural
3 livelihoods and family farms? And could you
4 please expand on your public comments on how and
5 on what grounds is Brazil seeking to prevent U.S.
6 corn ethanol from accessing future markets in
7 aviation fuels?

8 MR. HARTMAN: Well, first of all,
9 right now --

10 MR. BURCH: Will you please turn on
11 your microphone?

12 MR. HARTMAN: Oh, sorry. First of
13 all, when it comes to the farmers out here in the
14 Midwest, we do have a record crop coming on. So
15 because of that, you know, 35 percent of our crop
16 does go into ethanol and one of the big
17 opportunities for ethanol and for our corn
18 farmers is basically the whole world of marketing
19 ethanol.

20 As we talked about before, farmers in
21 the United States are very efficient. You know,
22 we've got precision agriculture. We've got plant
23 breeding. We've been between two and three
24 bushels per year, we've been increasing our
25 yields which actually at the same time that helps

1 us be more sustainable and actually helps our CI
2 scores to be lower. So these are all things that
3 the American farmer has done to increase yields
4 to basically try to be profitable because of the
5 fact that there is a big group of corn coming in.
6 You know, we've got a 16.7 billion bushel crop
7 coming in. So because of that, any market that
8 we can have, if it's corn, if it's dried
9 distillers grain, if it's ethanol, it's very
10 important to us. So that's the first answer I
11 think to the question why it is so important to
12 us.

13 The other thing is when we look at
14 sustainable aviation fuel, we have different
15 models. Obviously, in the United States, we have
16 what we call the Greek model which is we call the
17 gold standard which takes in consideration all of
18 those precision agriculture items, efficiencies
19 that we're doing and because of Brazil looking at
20 the other type of models, they're looking at
21 making us throughout the whole world, you know,
22 they're trying to say that their model is better
23 than I'd say that what we are dealing with.

24 And at the same time, I get
25 frustrated with the fact that they talk about the

1 double cropping. Well, when you double crop a
2 product, they say that it's helping them, but at
3 the same time, you still put the seed in, you
4 still have to have fertilizer for that crop. You
5 still got to harvest that crop, so you're doing
6 two crops in one year, but at the same time you
7 have the same environmental costs and costs as
8 far as finances to put both of those crops out.
9 So we don't see where that makes any sense as far
10 as that modeling.

11 Any other questions to that?

12 MS. REINITZ: The next question is
13 for Mr. Rockstad. The U.S. Department of Labor's
14 list of goods produced with child labor or forced
15 labor has identified child labor and forced labor
16 in the production of sugarcane in Brazil.

17 To what extent do these or other
18 labor practices in the Brazilian sugar industry
19 impact the competitiveness of U.S. sugar beet
20 growers and the processors? Would these forced
21 labor or other practices undermine the
22 competitiveness of downstream products such as
23 U.S. ethanol?

24 MR. ROCKSTAD: Thank you for the
25 question. We'll certainly supply some statistics

1 to your question specific to the child labor.

2 As far as the competitiveness, the
3 U.S. is a net importer of sugar. Any time sugar
4 can be produced cheaper using standards that we
5 as Americans don't have for labor or to put it
6 the other way, we have higher labor standards
7 than any country in the world. We have higher
8 environmental standards.

9 So as a farmer, I sit here today
10 producing an American-grown product, 100 percent
11 grown on American soil by American farmers and
12 American taxpayers, using American labor and
13 American labor standards and American
14 environmental standards.

15 And I'm set to harvest a crop in a
16 month that I will not turn a profit on. And at
17 the same time, I'm putting money into next year's
18 crop in the form of land preparation and
19 fertilizers, knowing that if the circumstances in
20 our market don't change, I won't make a profit
21 next year either.

22 So anything, including a benefit to a
23 cheaper labor source that then in turn gets
24 imported into our country at non-restricted or
25 Tier Two Tariff rates that are no longer relevant

1 and not restrictive, gives Brazil a foreign
2 advantage or unfair advantage over the American
3 farmer. I'd like to see America stand up for
4 what American farmers produce. Thank you for the
5 question.

6 CHAIR GRIMBALL: Thank you. Thank
7 you to Panel 2. We are running a little bit
8 ahead of schedule, so we will go ahead and break
9 for 45 minutes for lunch. We'll return with
10 Panel 3 at 1:00 p.m. Thank you.

11 (Whereupon, the above-entitled matter
12 went off the record at 12:12 p.m. and resumed at
13 1:05 p.m.)

14 CHAIR GRIMBALL: Okay. Good
15 afternoon. I hope everyone enjoyed a very short
16 lunch.

17 We'll get started with Panel 3, but
18 before we do, we have a couple of additional
19 faces joining the panel this afternoon, so let's
20 just go around for the record.

21 MS. BONNER: Sarah Bonner, U.S. Small
22 Business Administration, Office of Manufacturing
23 and Trade.

24 MS. YU: Good afternoon, everybody.
25 My name Anne Yu with the U.S. Department of

1 Health and Human Services and our Office of the
2 Secretary, Office of Global Affairs. Thank you.

3 MS. GIBSON: Kate Gibson, Office of
4 U.S. Trade Representative, Office of General
5 Counsel.

6 MS. REINITZ: Julie Reinitz, U.S.
7 Department of Labor, Office of Trade and Labor
8 Affairs.

9 MS. KING: Michelle Sara King, Office
10 of Standards and Intellectual Property at
11 International Trade Administration in the U.S.
12 Department of Commerce.

13 MR. HUFFMAN: Stu Huffman, U.S.
14 Department of State, Trade Policy and
15 Negotiation.

16 CHAIR GRIMBALL: And I'm Megan
17 Grimball from USTR, Chair of the Section 301
18 Committee. And with that we will begin with
19 Panel 3.

20 Mr. Aziz, you have five minutes.

21 MR. AZIZ: Thank you very much. My
22 name is Anjam Aziz and I'm the Senior Director
23 for International Advocacy at the Pharmaceutical
24 Research and Manufacturers of America, PhRMA. On
25 behalf of the U.S. biopharmaceutical innovators,

1 PhRMA appreciates the opportunity to provide
2 testimony before the Section 301 Committee
3 concerning Brazil's acts, policies, and practices
4 related to intellectual property.

5 The U.S. biopharmaceutical industry
6 produces more than half of the world's new
7 molecules, supports nearly five million jobs in
8 the United States, and contributes more than
9 \$1.65 trillion in economic output on an annual
10 basis. This global leadership is not guaranteed.
11 It is sustained by strong intellectual property
12 policies at home and abroad, including patents
13 and regulatory data protection which drive and
14 reward high risk medical innovation, ensure
15 timely access to new treatments, incentivize
16 future breakthroughs that benefit patients
17 globally.

18 Yet, in critical markets such as
19 Brazil, key intellectual property protections are
20 unavailable or undermined. This Section 301
21 investigation is a critical opportunity to
22 address two long standing, systemic, and
23 discriminatory IP barriers in Brazil well known
24 to USTR that burden or restrict U.S. commerce and
25 harm biopharmaceutical innovation.

1 So let's first begin with a lack of
2 regulatory data protection for
3 biopharmaceuticals. Despite clear international
4 obligations, Brazil categorically denies RDP for
5 all pharmaceuticals intended for human use.
6 Brazilian law provides RDP for agricultural,
7 veterinary, and pesticide products while
8 explicitly omitting RDP for medicines for human
9 use. This exclusion is not accidental. It
10 reflects a deliberate, discriminatory policy that
11 violates Brazil's international commitments and
12 tilts the scales to favor its domestic
13 pharmaceutical industry.

14 And what is the result? Brazil
15 authorities routinely allow third parties to rely
16 on U.S. innovative confidential test data to fast
17 track marketing approvals giving local
18 competitors a windfall by forgoing the costs and
19 risks of generating their own data to prove the
20 safety and efficacy of generic or biosimilar
21 products. This practice not only undermines U.S.
22 companies and compromises market access, it also
23 divides innovation and disincentivizes the launch
24 of new medicines in Brazil.

25 Second, let's consider Brazil's

1 historically long patent examination backlog
2 first flagged by USTR in 1999. U.S. applicants
3 filed nearly 30 percent of all patent
4 applications in Brazil. Yet, for
5 biopharmaceutical innovators, average examination
6 timelines exceeded 9.5 years between 2020 and
7 2024, effectively cutting patent terms for
8 biopharmaceuticals in half. To further
9 complicate matters, in 2021, the Supreme Court
10 eliminated a key provision in Brazil's patent law
11 that recognized patents raised in Brazil were
12 egregious and provided a minimum patent term to
13 partially offset these long delays.

14 Even more concerning for
15 biopharmaceutical innovators, the Supreme Court
16 applied this decision retroactively only for
17 biopharmaceutical and other health sector
18 patents, highlighting once again the
19 discriminatory treatment of the biopharmaceutical
20 innovative sector in Brazil.

21 So where do we stand today and what
22 is needed? Brazil currently offers no remedy,
23 recourse, or compensation when its Patent Office
24 is responsible for unreasonable delays in the
25 patent examination process. Despite ongoing

1 efforts including Brazil's participation in
2 patent prosecution of highway programs since 2016
3 and a launch of first ever national intellectual
4 property strategy which covers a period from 2021
5 to 2030, Brazil has yet to deliver a durable,
6 systemic backstop to meaningfully address the
7 patent backlog for biopharmaceutical innovators.

8 Simply put, the need for patent term
9 adjustment or PTA to compensate innovators for
10 time lost during the patenting of initial process
11 through no fault of their own had never been more
12 urgent. PTA not only ensures that innovators
13 receive the full benefits of their patent rights,
14 but also provides the certainty and
15 predictability that innovation-driven sectors
16 depend on.

17 Other Latin American countries,
18 including Chile, Costa Rica, the Dominican
19 Republic, El Salvador, Guatemala, Honduras, and
20 Nicaragua, all provide PTA mechanisms. Brazil is
21 a glaring outlier. Brazil's failure to provide
22 RDP for biopharmaceuticals and PTA results in
23 noncompliance with its international obligation,
24 places it out of alignment with regional peers,
25 and creates a nonreciprocal trade environment

1 with key trading partners including the United
2 States which grants these protections to
3 Brazilian innovators.

4 Therefore, in conclusion, we urge
5 USTR to formally identify Brazil's denial of RDP
6 for biopharmaceuticals in the absence of PTA to
7 address unreasonable patent examination delays as
8 discriminatory practices that burden and restrict
9 U.S. commerce, secure the necessary legislation
10 and regulatory reforms through the consultative
11 process and closely monitor the implementation of
12 negotiated outcomes. We thank you for your
13 attention and for your continued leadership in
14 defending American innovation.

15 CHAIR GRIMBALL: Thank you. Our next
16 witness, Mr. Medrado, you have five minutes.

17 MR. MEDRADO: Thank you very much,
18 Madam Chair. On behalf of the Federation of
19 Industries of the State of Sao Paulo, FIESP, I
20 appreciate the opportunity to address this
21 hearing. FIESP is one of the largest private
22 sector organizations in Brazil representing 131
23 trade associations and more than 130,000
24 industrial companies across the country.
25 Notably, FIESP accounts for more than one third

1 of the country's industrial GDP. FIESP echoes
2 that the United States is a historic and reliable
3 partner in Brazil's industrial development with a
4 bilateral trade flow of \$643 billion over the
5 2015-2024 period.

6 Consequently, FIESP is convinced that
7 constructive dialogue and cooperation is key to
8 address concerns raised by USTR and to foster
9 mutual trust based on premises of predictability,
10 agility, and legal certainty. In that spirit,
11 FIESP expresses its concern over the possibility
12 of additional tariffs being imposed at the
13 conclusion of this investigation.

14 The private sector in Brazil was
15 fully aware of the negative consequences that
16 such measures would bring. Of note, is the fact
17 that these additional costs would not only burden
18 companies operating in Brazil, including those
19 with American equity, but also companies in the
20 United States that depend on Brazilian inputs and
21 services. Ultimately, consumers in both our
22 countries would be adversely affected.

23 While FIESP has addressed issues of
24 preferential treatment and deforestation, this
25 presentation addresses the issues concerning

1 intellectual property. Our presentation focuses
2 on Brazil's significant progress in the
3 protection and enforcement of intellectual
4 property rights over the years. Since the 1990s,
5 Brazil underwent a profound transformation in its
6 intellectual property landscape. Brazil has been
7 consistently implementing legislation and
8 policies, participating in global fora and
9 devoting greater effort in our commitment to meet
10 international standards.

11 Brazil is a long standing and active
12 member of the global IP community. Since the
13 ratification of the Centennial Paris Convention,
14 Brazil has adhered to numerous treaties including
15 the TRIPS, the Patent Corporation Treaty, the
16 Berne Convention, and more recently the Madrid
17 Protocol. These commitments demonstrate the
18 Brazil alignments with the World Intellectual
19 Property Organization and our readiness to
20 advance towards OECD accession where I think
21 enforcement is a key benchmark.

22 Brazil's accession to the Madrid
23 Protocol in 2019 simplified the process for
24 Brazilian companies to protect their trademarks
25 abroad and for foreign companies to register

1 trademarks in Brazil. Now, the National
2 Institute of Industrial Property, INPI, operates
3 as an office of origin, submitting and receiving
4 trademark applications internationally. This
5 ensures that trademarks subject to designations
6 from Brazil receive the same level of protection
7 as those filed directly with INPI. The adherence
8 to the Madrid Protocol reflects Brazil's
9 commitment to facilitating global trade and
10 strengthening the competitiveness of its
11 industries and reinforcing its role as a reliable
12 partner in the international intellectual
13 property system.

14 Industrial property law, combined
15 with corporate law and software law, are the main
16 laws in Brazil to regulate the different issues
17 that may arise. Brazilian legal framework
18 provides severe sanctions against those who
19 commit crimes against intellectual property.
20 Also, the Federal Government, through INPI, has
21 taken concrete measures to make the protection of
22 intellectual property more efficient and
23 transparent.

24 Our written submission details all
25 measures taken in the past years. Specifically,

1 FIESP highlights the example of Sao Paulo's
2 parliamentary investigation on piracy carried out
3 between 2021 and '23 in Brazil's largest
4 commercial district, namely Rua 25 de Março.
5 This extensive investigation led to concrete
6 recommendations for public policies, awareness
7 campaigns, enforcement managers to curb piracy at
8 the municipal, state, and national levels.
9 Altogether, these measures reflect Brazil's
10 multi-layer strategy, combining legislation,
11 enforcement, institutional coordination and
12 social policy to curb piracy and counterfeiting
13 in a view to protect the companies that carry out
14 their business operations legitimately.

15 Like many other countries, FIESP
16 recognizes that there is yet ground to be covered
17 in the strengthening and continuous development
18 of the legislation and enforcement of the IP
19 protection in Brazil, but this to the benefit of
20 all industries in the country with no
21 discrimination including those with American
22 equity which accounts to 25 percent of foreign
23 direct investment in Brazil.

24 FIESP enforces its believe that by
25 working together, we can foster trade,

1 entrepreneurship, innovation to ensure that
2 industry in both our nations continue to thrive
3 in a transparent and fair global market. Thank
4 you.

5 CHAIR GRIMBALL: Thank you. Mr.
6 Panzini, you have five minutes.

7 MR. PANZINI: Thank you for the
8 opportunity to testify today. I represent AmCham
9 Brazil, the largest American chamber of commerce
10 outside the United States. We bring together
11 more than 3.5 thousand companies both American
12 and Brazilian that collectively account for about
13 one third of Brazil's GDP. For over a century,
14 AmCham Brazil has worked to promote trade and
15 investment between our two countries.

16 First, let me stress why this
17 relationship matters. The United States
18 consistently enjoys a trade surplus with Brazil.
19 Over the past decade, the combined surplus on
20 trade and service totaled more than 257 billion
21 U.S. dollars. Our economies are deeply
22 integrated. Nearly one third of bilateral trade,
23 about 32 billion U.S. dollars in 2024, took place
24 between affiliates of the same multi-national
25 corporations. This means lower costs, stronger

1 supply chains and better competitiveness for
2 American companies.

3 Investment flows are also mutually
4 beneficial. Brazilian companies support hundreds
5 of thousands jobs in multiple sectors across the
6 United States. At the same time, the United
7 States is the largest foreign investor in Brazil
8 with U.S. companies remitting more than \$54 U.S.
9 billion in tax-free dividends to U.S.
10 headquarters between 2015 and 2024.

11 Second, I want to acknowledge the
12 importance of addressing legitimate trade
13 concerns in the policy areas found in the Section
14 301 investigation. No economic relationship is
15 without challenge and we fully recognize the need
16 for continuous improvement in Brazil's business
17 environment. However, broad tariffs, such as the
18 recent proposed 50 percent rate in Brazil, carry
19 unintended consequence. The risk raising costs
20 for American business disrupts the supply chain
21 and impacting American workers. In our view,
22 they move us away from solution and they are not
23 effective.

24 Third, let me point to some
25 opportunities for cooperation. On digital trade,

1 we see an opportunity for dialogue to ensure that
2 future regulation in Brazil is fair and
3 transparent, especially given the leading role of
4 U.S.-backed companies in Brazil. On preferential
5 tariffs, why we do not have a preferential trade
6 agreement, U.S. exports already benefit from low
7 tariffs in Brazil, on average 2.7 percent which
8 is below the world average 5.2. Expanding the
9 ATEC framework, for example, could include
10 bilateral market access.

11 On intellectual property protection,
12 Brazil has strengthened comparison enforcement
13 with the U.S. cooperation. Still, there is room
14 to improve. Include tougher penalties for
15 counterfeiting and strong enforcement capacity.

16 On patents, evidence shows that
17 Brazil has lowered its overall backlog, although
18 substantial delays remain, especially in
19 pharmaceuticals. We support both governments to
20 address this challenge.

21 On ethanol, we encourage deeper
22 U.S.-Brazil cooperation to expand international
23 biofuels trade and to promote higher blending
24 rates with both countries. As world largest
25 producers, we stand to gain from developing

1 global markets together.

2 Finally, let me conclude with this
3 point. Constructive dialogue works. We firmly
4 believe that the concerns of the U.S. Government
5 and the private sector are best addressed through
6 bilateral engagement, preserving the mutual
7 benefits that define the relationship between the
8 two largest economies in the Americas. AmCham
9 Brazil remains committed to working with both
10 governments and business leaders on both sides.
11 Thank you for the opportunity.

12 CHAIR GRIMBALL: Thank you. Mr.
13 Leonardos, you have the floor for five minutes.

14 MR. LEONARDOS: Thank you, Madam
15 Chair. I speak on behalf of the Brazilian
16 Association of Intellectual Property, ABPI. We
17 are a not for profit dedicated to the study and
18 advocacy of intellectual property law. We were
19 founded in 1963. Our international experience
20 stems from our creation as the Brazilian chapter
21 of the International Association for the
22 Protection of Intellectual Property.

23 We believe that innovation fostered
24 by a strong IP system is essential to Brazil's
25 social and economic development. Our association

1 enthusiastically advances strong standards of IP
2 protection and we were directly responsible for
3 the successful introduction of pharmaceutical
4 patents in Brazil in 1996. We work closely with
5 several reputable entities that share our goals
6 including those that represent international and
7 United States IP interests in Brazil such as the
8 American Chamber of Commerce, Interpharma, and
9 the United States Patent and Trademark Office
10 representation in Rio de Janeiro.

11 To avoid repeating the comments we
12 already submitted in written form, I will focus
13 my brief testimony on the only two topics that
14 gave cause to this investigation as far as IP is
15 concerned: the fight against counterfeiting and
16 the speed of examination of patent applications
17 in Brazil.

18 Since the institution of the National
19 Council for Combating Piracy, known in Brazil as
20 CNCP, through a presidential decree in October
21 2004, we have been experiencing increasingly
22 sophisticated strategies in the fight against IP
23 counterfeiting in all its forms. There is strong
24 awareness that all levels of government,
25 Executive Branch, Legislative, and Judiciary of

1 the importance of fighting piracy. Frequent
2 raids against IP counterfeiters, and both federal
3 and state police officers working together
4 authorized by judicial orders and often assisted
5 by Customs authorities, I assure you that there
6 is no tolerance or leniency from the authorities
7 regarding counterfeiting activities.

8 Of course, I'm not saying the
9 situation is perfect. Brazil is a huge country
10 with less than optimal resources for law
11 enforcement, especially to patrol our borders as
12 most of the pirated goods come from abroad and
13 enter our country often through smuggling. Our
14 land borders extend for 10,500 miles and for
15 comparison, the U.S. 48 states land borders with
16 Mexico and Canada total only 7,400 miles.

17 With the cooperation in developed
18 countries like the U.S., there is certainly room
19 for improvement and I am positive that the
20 Brazilian authorities would welcome such
21 cooperation.

22 As for the delay in the examination
23 of patent applications by the Brazilian Patent
24 Office, it is important to recognize the
25 significant improvements since 2017 when the

1 program to fight the backlog was initiated.
2 Until then, it was common for patent applications
3 to take between 10 and 15 years from filing to
4 granting in Brazil. This program was possible
5 thanks to a political decision that authorized
6 the examiners of the Brazilian Patent Office to
7 base their examinations of Brazilian patent
8 applications filed by foreign companies on the
9 examination already done abroad by the USPTO, by
10 the European Patent Office, and other patent
11 offices of developed countries. I believe this
12 shows the Brazilian Patent Office's commitment to
13 following international standards of patent
14 examination.

15 The delay that still exists for the
16 examination of patent applications between four
17 and eight years is still high, but hardly
18 catastrophic. The sole reason for this delay is
19 that insufficient funding of the Brazilian Patent
20 Office which annually collects approximately \$300
21 million in fees from the applicants while the
22 Brazilian Government only authorizes the
23 Brazilian Patent Office to spend approximately
24 \$50 million per year on this activity.

25 I know that in a not so distant past,

1 the same type of discussion happened also here in
2 the United States regarding the funding the
3 USPTO. This discussion has been ongoing in
4 Brazil for several decades and it is not a
5 problem created by the current administration.
6 We believe that we are now close to approving the
7 necessary funding for the Brazilian Patent Office
8 that will allow it to speed up even more the
9 examination of patent applications.

10 In closing, I wish to affirm that
11 there is absolutely no bias against U.S.
12 companies or interests in the enforcement or
13 application of intellectual property law in
14 Brazil. From the perspective of the organization
15 I represent, there is no justification for Brazil
16 to face penalties on Section 301 with respect to
17 IP protection. In recent years, we have
18 repeatedly submitted our position to the USTR
19 during the annual review of the Watch List,
20 urging that Brazil be removed from such list.

21 It is important to know that Brazil
22 was included in 1989 in the 301 Watch List and
23 that's prior to the adoption of the trade's
24 agreement by the World Trade Organization and
25 before the enactment of the 1996 Brazilian Patent

1 Act. It is, therefore, in our point of view,
2 long overdue for Brazil to be removed from the
3 Watch List. Thank you for the opportunity to be
4 heard.

5 CHAIR GRIMBALL: Thank you. And now
6 we will proceed with questions from the
7 government panel. In some instances, witnesses
8 may receive one or more questions and in some
9 instances the questions might focus more on your
10 written testimony than perhaps your testimony
11 provided here today. So with those caveats, we
12 will begin.

13 MS. YU: Thanks so much. This
14 question goes to Mr. Aziz from PhRMA. According
15 to the Brazilian IP Association, there has been a
16 lack of resources devoted to Brazilian IP
17 authorities as so noted recently, responsible for
18 patent processing, due to diversion of funds to
19 other unrelated government components.

20 U.S. industries' experience with
21 INPI suggested that the patent backlog is
22 primarily because there's a lack of resources or
23 are there other reasons for the backlog?

24 MR. AZIZ: Thank you very much for
25 the question. The funding issue is one that

1 we've been tracking very, very closely. We fully
2 support a fully funded, functioning NP office
3 which I think will help assist with the backlog
4 issue.

5 There are other reasons for the
6 backlog, so it's not just purely funding. Not so
7 long ago in Brazil, the health authorities had a
8 say in the patentability of products. I think
9 that caused some delays. So there are other
10 things. So that's something that Brazil has done
11 away with, but there are other reasons that
12 helped put this -- put us in the situation that
13 we're in today. Thank you.

14 MS. YU: Thanks so much. And I have
15 one more question for you, Mr. Aziz.

16 Your comment cites to a study that if
17 Brazil were to introduce RDP for human use,
18 pharmaceutical products, it would increase the
19 availability of innovative medicines in the
20 country by 39 percent.

21 How did you organize or evaluate the
22 extent to which the current lapse of RDP
23 discouraged U.S. innovative companies from
24 entering the Brazilian market? And are you able
25 to provide the details of your analysis?

1 MR. AZIZ: Absolutely. Thank you for
2 the question. Absolutely. So a few years ago,
3 it was actually the Brazilian Government that
4 wanted our take on RDP, what does RDP mean for
5 Brazil? So there's an organization called
6 Copenhagen Economics that did this comprehensive
7 study, looked at what impact RDP would have in
8 terms of the number of innovative medicines that
9 are available, what would happen to the generic
10 industry market, what would happen to clinical
11 trials, what would happen to FDI. We have that
12 analysis. We have the methodology and we're
13 happy to submit that as part of doing a
14 post-hearing submission.

15 MS. YU: Thank you.

16 MS. GIBSON: This question is for Mr.
17 Medrado, FIESP. Your written comment notes that
18 persons are subject to 10 to 15 years of prison
19 for a counterfeit-related crime. The various
20 operations that you've summarized with respect to
21 the Rua 25 de Março area, how many persons have
22 been arrested, convicted, or otherwise penalized
23 for their crimes and are you able to provide some
24 statistics or figures on the dispositions of
25 those cases?

1 MR. MEDRADO: Absolutely, we'll be
2 working on those figures for the submission. I
3 don't have those numbers right now, but I'll
4 certainly make sure you have detailed information
5 so that you can work with that in the report.

6 MS. GIBSON: Thanks very much. And
7 if we may ask a follow-up, in your intellectual
8 property section, you mention that there is a
9 need to have new legislation providing for severe
10 penalties for municipal officials who exploit
11 their supervisory authority for personal gain.
12 What is the issue behind that recommendation?

13 MR. MEDRADO: Can you please repeat?
14 It was a little low.

15 MS. GIBSON: Of course, yes. In your
16 intellectual property section, you mention that
17 there is a need to have new legislation providing
18 for severe penalties for municipal officials who
19 exploit their supervisory authority for personal
20 gain. What is the issue behind this
21 recommendation?

22 MR. MEDRADO: The issue involves -- I
23 think this is related to the parliamentary entry
24 that was made with respect who -- I think 25 de
25 Março, what the translation would be, 25 of March

1 Street. And it was, as I mentioned, a large
2 parliamentary investigation to determine what
3 were the causes behind the situation in that
4 street. And then one of the recommendations led
5 to the indication of farther legislation with
6 more severe penalties, especially for municipal
7 authorities. The issues that municipal
8 authorities are responsible to oversee the
9 operation is specifically of municipal commerce
10 and that's why it is a point of attention.

11 Of course, as you can see,
12 representative, we are dealing with issues of
13 coordination, so it's necessary, especially on
14 intellectual property enforcement to coordinate
15 not only federal, state, and also municipal
16 spheres, and of course, that is a complex issue,
17 but the parliamentary investigation was a first
18 step towards that to understanding what were the
19 real causes for the situation of Rua 25 de Março.

20 We'd be happy to provide more information on
21 that aspect in our written submission.

22 MS. GIBSON: Great. This question is
23 for Mr. Panzini. Your comment reports that in
24 2024 INPI hired 130 new staff, 40 of which are
25 dedicated to biopharma and telecom patents. At

1 the same time, the Brazilian intellectual
2 property association, ABPI, notes that there's a
3 division of official fees collected by the BCP0
4 to fund other unrelated expenses of the Federal
5 Government leading to staffing and resource
6 shortage.

7 How do you reconcile this view with
8 your assertion that INPI has expanded?

9 MR. PANZINI: Right. So first of
10 all, let me start by saying that AmCham Brazil
11 is constructively engaging with INPI and all
12 Brazilian Government to address these both
13 concerns.

14 First, I think the new examiners are
15 very welcomed. It's a very old request for
16 Brazilian private sector that we were attending.
17 And then AmCham Brazil when representing American
18 and Brazilian was something that we've been
19 requesting for a long time and I think the
20 results will come out. But as you mentioned, I
21 mean the efforts we have to do doesn't have only
22 to do with examiners. They are important, and
23 they can be targeted, for instance, for
24 pharmaceuticals or other sectors that have more
25 time and standing on that and concessions. But

1 also, we need and we're working on that. There's
2 a bill that my colleague here, Gabriel, has
3 mentioned at the Senate that is working on fixing
4 the budget for INPI. So I think both things
5 together can really make more robust our IP
6 system in the near future.

7 MR. HUFFMAN: My question is for Mr.
8 Leonardos. Your comment asserts that Brazil has
9 accelerated patent examinations to decrease the
10 patent backlog, but the comment also states that
11 quote in the last four years, the number of the
12 BPTO's decisions on the merits, i.e., the notice
13 of allowance and rejections, decreased
14 continuously as a result of the lack of examiners
15 and investment in IP at the BPTO caused by the
16 diversion of official fees collected by the BPTO
17 to fund other unrelated expenses of the Federal
18 Government end quote.

19 Does lack of resources impact the
20 efforts toward alleviation of a backlog? In what
21 specific aspect does the BPTO or INPI lack
22 investments? And what part of the government are
23 these funds being diverted to?

24 MR. LEONARDOS: Thank you for the
25 question. After initial acceleration of the

1 examination, these efforts then lost some
2 traction because of the lack of funding. Even
3 though there were over a hundred new examiners
4 hired last year, we believe that we would need at
5 least another this amount. And not only that, we
6 think that there should be periodical continues
7 at the missions of the examiners, not only once
8 every ten years. That's the problem. There is a
9 lack of regular funding. The funding is oddly
10 enough not really directly diverted to other
11 institutions. It stays in the national treasury
12 under the name of the INPI, but the INPI is not
13 allowed to touch it. And in theory, no other
14 agencies may touch it either. So it just stays
15 there as a sort of last ballast for the other
16 expense of the government.

17 The Brazilian Federal Government has
18 a limitation on spending so the less they spend
19 in some areas, the more they can spend in others.
20 So that's how it is used. And as I said, it's
21 not a recent problem. It goes back for 30 years.
22 So we really need institutional change to change
23 that, but I preface that, everybody suffers from
24 these poor money management policies. Brazilian
25 innovators also suffer so there is nothing

1 directed against U.S. interests.

2 MR. STEPHENS: My name is Andrew
3 Stephens representing USDA and also a follow-up
4 question for Mr. Leonardos. This refers to your
5 written submission. And in that, you raise
6 concerns about potential discriminatory treatment
7 under Federal Law 10603/2022. Please expand and
8 explain how the crucial gap in Brazil's data
9 protection framework for human pharmaceutical
10 products raises the concern about potentially
11 discriminatory treatment.

12 MR. LEONARDOS: Excuse me, you were
13 mentioned about the data package exclusivity.
14 Yes. This submission we made in February of this
15 year at the time of the annual review of the Tier
16 1, if I may, with all due respect, I believe the
17 current investigation is not based on the lack of
18 data package exclusivity. But this matter has
19 already been raised by Mr. Aziz, representing
20 PhRMA and indeed it is a loophole or a shortage
21 in our legislation. We strongly believe that
22 there should be data package exclusivity for
23 pharmaceutical regulatory approval and we are
24 working on that in our association.

25 We believe that this is in the best

1 interest of Brazilians, but such regulation so
2 far has not been introduced. So as far as the
3 largest number of pharmaceuticals that are
4 introduced in the Brazilian market which are
5 innovation based, research based, are
6 pharmaceuticals from international companies, not
7 only U.S. companies. It is clear that, as a
8 matter of fact, these international companies are
9 the ones most hurt back the lack of data package
10 exclusivity. One example is, for example,
11 several European countries also, European
12 countries also suffer from the same shortage or
13 the same defect in our law.

14 MR. STEPHENS: Thank you.

15 CHAIR GRIMBALL: And that concludes
16 the panel's questions for Panel 3. We can take a
17 five-minute break. Return at 1:45 with Panel 4.
18 Thank you.

19 (Whereupon, the above-entitled matter
20 went off the record at 1:39 p.m. and resumed at
21 1:53 p.m.)

22 CHAIR GRIMBALL: Thank you for your
23 patience. We are ready to begin with Panel 4.

24 Mr. Mencer, you have 5 minutes.

25 MR. MENCER: Thank you, Madam

1 Chairman.

2 My name is Joe Mencer. I'm a fourth
3 generation farmer from Lake Village, Arkansas.
4 My family produces soybeans, corn, cotton, rice.

5 Today I appear on behalf of myself,
6 my family operation, and as a voice for the
7 members of the Agricultural Council of Arkansas.
8 It's a nonprofit industry trade organization
9 representing row crop farmers, landowners, and
10 agriculture-related businesses in Arkansas.

11 I have the honor of serving as
12 president of this organization at this time,
13 which was founded in 1939. And I appreciate the
14 opportunity to testify today in this Section 301
15 case examining Brazil's agricultural practices.

16 I want to focus my remarks on unfair
17 trade production, advantages Brazil has
18 cultivated, which has enabled them, supported by
19 China, in the resulting harm these practices
20 influence on U.S. producers in our rural
21 communities.

22 Over the past two-and-a-half decades
23 Brazil has dramatically expanded its crop
24 production, particularly in soybeans, corn, and
25 cotton. Brazil has more than quadrupled its

1 soybean production from 40 million tons to over
2 160 million tons in the last 20 years.

3 They have more than tripled their
4 corn output.

5 And their cotton production has gone
6 from 3 million bales to over 18 million bales
7 this last year.

8 And when it comes to crop acreage,
9 Brazil has expanded their planted acres from 40
10 million acres in 2000 to nearly 120 million.

11 It's truly staggering to consider
12 this growth. And much of this expansion has been
13 achieved through deforestation and land
14 conversion, government policies, and investment
15 from Chinese, and purchasing activities and
16 unfair practices that they force upon the
17 Brazilian industry.

18 The result is a distorted global
19 market where American farmers like me are harmed.
20 Right now it's impossible for an American farmer
21 to survive as costs to farms are far outrunning
22 revenues one can receive from crops produced,
23 even with the highest yields and best management
24 of marketing strategies.

25 This has harmed U.S. farmers,

1 especially in Arkansas, and across the country
2 and in other parts of the world because it's
3 increased our cost of inputs, decreased crop
4 prices, and caused us to lose market share around
5 the world. And just unequal standards of
6 practices that we have to adhere to that they do
7 not have to adhere to.

8 In Arkansas alone our crop producers
9 face an estimated \$1.2 billion in lost revenue
10 this year over operating costs. And that's
11 according to the University of Arkansas
12 economists, and that is a direct result of
13 Brazil's cost advantages and overproduction.

14 The harm to the environment that's
15 created by Brazil is the vast deforestation of
16 land. Some of the most biodiverse and sensitive
17 areas are being destroyed in favor of crop
18 production. Many migratory species from North
19 America are losing habitat.

20 And Brazil is often referred to as
21 the lungs of the world for its carbon cycling
22 capacity which reduces greenhouse gas emissions,
23 creates oxygen, and shapes weather patterns
24 globally.

25 And why we're here today is for a

1 call of action on behalf of myself and the
2 members of the Agricultural Council of Arkansas.
3 We urge USTR, the Trump administration, and
4 Congress to recognize Brazil's practices, coupled
5 with China's investments and involvement, as
6 unfair trade practices under Section 301.

7 We would like to see them impose more
8 trade remedies as far as tariffs, quotas, or
9 other trade countermeasures to level the playing
10 field.

11 Conduct more investigations into the
12 environmental destruction in Brazil and its
13 potential impact on climate, migratory species,
14 and diverse ecosystems.

15 Conduct more investigation into the
16 role of China and any illicit activities they may
17 engage in.

18 Pursue remedies that offset
19 disadvantages faced by American producers,
20 including compensation mechanisms to ensure that
21 American farmers receive the necessary support
22 while broader trade remedies are pursued.

23 Leverage U.S. influence in trade
24 negotiations to ensure that environmental, labor,
25 and transparency standards are enforced globally

1 so that American farmers are not competing on an
2 unlevel playing field.

3 And support initiatives to encourage
4 importers and American businesses to source
5 U.S.-grown commodities rather than commodities
6 grown on land in Brazil that's been deforested
7 since 2000.

8 CHAIR GRIMBALL: Mr. Mencer, if you
9 can conclude, the time has expired. Your time
10 has expired.

11 MR. MENCER: I'm sorry.

12 CHAIR GRIMBALL: That's okay. There
13 will be an opportunity to follow up with
14 questions.

15 MR. MENCER: Okay.

16 CHAIR GRIMBALL: Okay. Now we'll move
17 to our next witness. Mr. McKinney, you have 5
18 minutes.

19 MR. MCKINNEY: Hello, everyone.
20 Thanks for having us here today.

21 My name is Sheridan McKinney and I'm
22 here on behalf of the U.S. Cattlemen's
23 Association who would like to express their
24 appreciation for initiating this Section 301
25 investigation.

1 Like many of the officials in the
2 room today, I am actually a trade lawyer and not
3 a subject matter expert. Yet, as a fellow trade
4 lawyer and a bit of a data nerd what I can hope
5 to do is to maybe point you towards the real
6 experts and help tease out the relevance of what
7 they're trying to convey, and maybe relate a bit
8 of it to this investigation.

9 And for me, while I've been sitting
10 here today and listening to everything that's
11 been presented, I'm reminded of a certain former
12 USTR general counsel.

13 I learned a lot from Tim over the
14 years. I think the most relevant lesson here
15 today would be that if you really want to make a
16 point, what you want to do is call out any
17 broader themes that may be echoing throughout the
18 hearing. It really helps to tie the facts
19 together and kind of make your point.

20 So, here today you've heard a lot of
21 views. You're even hearing different takes on
22 the issues from groups that are representing the
23 same industries.

24 There's also been a star power here.
25 We have a former Director General of the WTO.

1 So, how do you make sense of it all?
2 What's going on here? And what really ties all
3 this together?

4 And I think, from my view, it's
5 rather simple. I think it's time to reset the
6 U.S.-Brazil trade relationship or, at the very
7 least, give it a bit of a facelift. And the
8 Section 301 investigation can. In fact, Section
9 301 is designed to help achieve just such a goal.

10 Now, over the past 30 years a portion
11 of the Amazon rainforest equal to the size of
12 Texas has been deforested. That happened at a
13 speed of more than 13,000 standard football
14 fields every single day.

15 You know what else happened 30 years
16 ago? I think you all know. The WTO agreements,
17 that's the main laws governing the U.S.-Brazil
18 relationship, they went into effect.

19 Look, it's easy to get lost in the
20 numbers. There's been a lot of data and
21 different versions of data today. Also, I find,
22 you know, is it an average rate, is it a change
23 to a rate? What, kind of what does it all mean?
24 So, that could be said of all the different
25 issues as well. The devil, as it turns out, is

1 kind of always in the detail.

2 So, I thought I would just highlight
3 a few numbers that I had picked out myself.

4 Those numbers are 13,000, 80 percent,
5 and 24 percent.

6 So, 13,000, what is that? To be a
7 little more precise, I crunched the numbers and
8 did the math, it's something closer to 13,334 and
9 some repeat decimals standard football fields
10 have been cleared from the Amazon every single
11 day for the past 30 years. And that does equal
12 an area much larger than Texas, as a matter of
13 fact.

14 So, 80 percent? Estimates vary. It
15 depends on which reports you're reading and who
16 you're referencing specifically. But somewhere
17 between 80 and 90 percent of the land cleared in
18 the Amazon gets converted to cattle.

19 Now, if you combine these first two
20 numbers, what you're going to find is that that's
21 about the same area as Texas, minus the
22 waterways, lakes, rivers, so on and so forth.

23 So, 24 percent, what's that stand
24 for? That is the speed of deforestation that was
25 reduced by 24 percent between 2023 and 2024. Not

1 reversed but a reduced rate of the speed of
2 expansion. In other words, it's getting worse
3 more slowly.

4 Some claim that this is due to a
5 government crackdown on illegal deforestation.
6 But all I can really focus on is that I see
7 evidence that when motivated to act, enforcement
8 can in fact be quite effective.

9 And by the way, that reduced 2024
10 number, that accounts for an area approximately
11 the size of Delaware; so, in one year a Delaware.

12 So, when you combine all these
13 numbers together what do you get?

14 Since U.S.-Brazil's individual
15 schedules commitment to the WTO went into effect,
16 Brazil has gained a Texas, one with no cities and
17 few people taking up space, where land is almost
18 exclusively dedicated to competing against U.S.
19 cattle ranchers for domestic and foreign markets.

20 Finally, that when properly
21 motivated, the Brazilian Government has the
22 capacity to slow that rate of expansion. And no
23 one has even been talking about shrinking this
24 Texas-sized, gigantic cattle raising area.

25 So, look, this is not a legislative

1 process, it is an administrative investigation.
2 The imbalances created by runaway deforestation
3 are a problem that we believe you can fix -- you
4 could help to fix by using the tools that you
5 already have at your disposal.

6 Before wrapping up -- I know I'm
7 running out of time here -- I want to highlight a
8 phenomenon, sounds a bit odd: cattle laundering.

9 Look, the industry in Brazil is a
10 multi-layered industry. There are producers
11 shuffling cattle from location to location, from
12 owner to owner. And it's virtually impossible to
13 make sure that none of this cattle, nothing that
14 was raised on illegal deforested land or, for
15 that matter, is free from forced and child labor
16 inputs actually make it into the supply chain.

17 And that last point is a very real
18 concern, one that the United States Government
19 has expressed concern about in the past.

20 So, I'll just stop there. I see I'm
21 out of time. Thank you.

22 CHAIR GRIMBALL: Thank you, Mr.
23 McKinney.

24 Mr. Bacus, you have the floor and
25 have 5 minutes.

1 MR. BACUS: Good afternoon. My name
2 is Kent Bacus. I'm the Executive Director of
3 Government Affairs for the National Cattlemen's
4 Beef Association, the oldest and largest national
5 trade association representing U.S. cattle and
6 beef industry.

7 NCBA has been the trusted leader and
8 definitive voice of the U.S. cattle and beef
9 industry since 1898. And our policies are set by
10 our grassroots membership of 44 states and 3
11 affiliates.

12 NCBA greatly appreciated the
13 opportunity to share our perspective on the
14 pending 301 investigation into Brazil's unfair
15 trade practices.

16 To begin, it's important to recognize
17 the lopsided trade relationship we have with
18 Brazil. And in recent years Brazil has emerged
19 as a leading supplier of lean beef trimmings that
20 are used to meet U.S. demand for ground beef.

21 This represents a small portion of
22 overall beef consumption in the U.S. market. But
23 in the past 5 years Brazil has sold over \$4
24 billion of beef to the U.S., and over \$1 billion
25 in the first 6 months of this year.

1 Brazil has full access to a robust
2 U.S. market with a transparent and consistent
3 regulatory process that allows for market
4 development and investment. Meanwhile, U.S. beef
5 exports face a complex scheme of labeling
6 requirements, facility registrations that
7 discourage Brazilian importers from buying our
8 products.

9 Over the past 5 years our sales to
10 Brazil have only totaled \$21 million, a
11 significant disparity.

12 We appreciate President Trump
13 increasing the reciprocal tariff on Brazilian
14 imports to 50 percent. And when coupled with the
15 other country TRQ, that results in a 76.4 percent
16 tariff on imported Brazilian beef.

17 We believe this is a good start.

18 While the trade deficit should, while
19 the trade deficit should be addressed, our larger
20 concern is the questionable risk that Brazil's
21 access poses to the health of U.S. consumers and
22 U.S. cattle herd.

23 Despite strong opposition from U.S.
24 cattle producers, Brazil gained beef access to
25 the U.S. market in 2016. And in June 2017 USDA

1 suspended Brazilian beef imports after FSI has
2 refused entry to 11 percent of Brazilian fresh
3 beef products. That is substantially higher than
4 the average rejection rate of 1 percent.

5 Likewise, Brazil failed to report
6 several cases of atypical BSE for weeks, months,
7 and years at a time, out of step with their
8 obligations as a member of the World Organisation
9 for Animal Health. This calls into question the
10 integrity of their central competent authority.
11 And no other trade partner with access to the
12 U.S. market has exhibited such inconsistencies.

13 NCBA repeatedly called for USDA to
14 suspend Brazil's market access and conduct
15 thorough audits to verify Brazil's safety
16 standards. Unfortunately, the only time Brazil
17 has shown a willingness to take U.S. standards
18 seriously is when their market access was fully
19 suspended for months and years.

20 For this reason, NCBA continued to
21 call for the full suspension of Brazilian beef
22 imports until USDA can thoroughly audit and
23 verify Brazil's safety standards for animal
24 health and food safety.

25 On the topic of deforestation, some

1 policymakers may prefer to use measures like the
2 European Union's deforestation regulations to
3 restrict beef imports from countries like Brazil
4 instead of using their existing authorities
5 related to animal health and food safety.

6 We are concerned that creating our
7 own European-style regulations will set a
8 dangerous precedent that may be used against U.S.
9 beef and other U.S. agricultural commodities in
10 the future. By substituting deforestation with
11 another subjective term, U.S. cattle producers
12 may become subject to more unfair trade barriers.
13 And it will be farmers and ranchers who bear the
14 additional costs of compliance.

15 It is important that we continue to
16 base our trade rules on objective, science-based
17 standards at all times, and avoid following the
18 European example of subjective trade.

19 Throughout its history NCBA has been
20 a strong proponent of rules-based, science-based,
21 and market-based trade policies. And when those
22 policies are properly enforced, U.S. cattle
23 producers thrive.

24 Unfortunately, in recent years trade
25 has become increasingly imbalanced due to unfair

1 trade practices from countries such as Brazil
2 that have benefitted from unilateral access to
3 the U.S. market. If left unchecked, this
4 imbalance will create a scenario where U.S.
5 farmers and ranchers grow increasingly less
6 competitive in overseas markets and the domestic
7 market.

8 We are not seeking retribution, but
9 we are seeking accountability.

10 Thank you for allowing me to provide
11 NCBA's perspective on this important topic. I
12 look forward to your questions.

13 CHAIR GRIMBALL: Thank you, Mr. Bacus.

14 Next we're going to have Mr. Aguiar.

15 MR. AGUIAR: Hello. Good afternoon to
16 all the members of this commission.

17 My name is Fernando Aguiar. I'm one
18 of the associate members of Abipescas, along here
19 with the Executive Director of Abipescas, Mr.
20 Jairu Gund.

21 Okay. A nonprofit organization,
22 non-partisan, Abipescas is the Brazilian fishery
23 association representing the largest industries
24 in the sector. Our members account for
25 approximately 70 percent of Brazil's formal

1 seafood market, and roughly 90 percent of
2 Brazilian seafood exports.

3 Thank you for allowing us to testify
4 for this Section 301 hearing on Brazil.

5 Abipescas is actively working to
6 promote sustained seafood consumption. The U.S.
7 Government has already exempted many other
8 products from tariffs. And the Section 301
9 investigation has no connection to Brazilian
10 seafood. Therefore, it is reasonable to extend
11 the same exemption to Brazilian seafood.

12 According to the National Fisheries
13 Institute, NFI, the U.S. seafood industries is
14 fundamentally different in that 85 percent of the
15 U.S. consumption depends on imports. According
16 to the Department of Commerce, the seafood trade
17 capacity was \$24 billion in 2022.

18 Brazilian tilapia, rock lobster,
19 snapper, tuna, and croaker have earned a place in
20 the United States market. Our members exported
21 more than 30,000 metric tons of seafood in 2024,
22 representing a growth of more than 30 percent
23 annually. While tilapia exports accounted for
24 more than 40 percent of that growth, Brazil was
25 the second largest supplier of fresh tilapia

1 fillets to the United States.

2 The increased tariffs on Brazilian
3 seafood raised prices for U.S. consumers, making
4 unaffordable and prompting them to opt for lower
5 quality seafood than the one Brazil supplies.

6 Our products are raised and processed in highly
7 technologically advanced environments, meeting
8 the hygienic and sanitary requirements of the
9 United States, as well as demands for commercial
10 quality.

11 Brazil has some of the strictest
12 environmental legislation in the world, and has
13 implemented public policies, including
14 measurement measures, catching quotas, and
15 adjustments to monetary system, as well as
16 efforts to combat illegal, unreported, and
17 unregulated fishing, IUU.

18 Brazil protects 28 percent of its
19 exclusive economic zone, and more than 60 percent
20 of the species are under no catch zones, ensuring
21 their protection and sustainability.

22 Trade map data indicate that over the
23 past 5 years Brazil has become a significant
24 supplier of seafood to the United States,
25 particularly tilapia, demonstrating the Brazilian

1 seafood industry's capacity to strictly meet the
2 U.S. market sanitary and commercial requirements,
3 ensuring traceability, quality assurance, and
4 compliance throughout the production chain.

5 Other benefits to the United States
6 include job creation, supply stability, lower
7 costs for consumers, and a supply chain
8 reliability.

9 In conclusion, applying tariffs to
10 Brazil's seafood products will not only harm
11 bilateral trade but also directly harm American
12 consumers. Brazilian seafood has no place in
13 this Section 301 investigation and should be
14 exempt from any punitive tariffs.

15 Beyond the trade discussions, it is
16 very important to highlight the human side of the
17 decision. Behind every shipment of Brazil
18 seafood there are families, small producers, and
19 communities whose livelihoods depends on this
20 activity. But the impact does not stop in
21 Brazil. The United States is also going to
22 suffer some way.

23 American consumers will face higher
24 prices. And the small U.S. companies that depend
25 on affordable, high-quality seafood, may lose

1 revenues and competitiveness.

2 I promise you all we are not here to
3 sell you fish recipes, although I'm sure everyone
4 wants to try our Brazilian fish will ask for
5 more. At the end of the day, fish is not just
6 about trade, it's about people. And as we say in
7 Brazil, when there is a good fish on the table
8 there's always room for one more friend.

9 So, Brazilian seafood is part of the
10 solution to supplying the U.S. and not the
11 problem.

12 Thank you very much.

13 CHAIR GRIMBALL: Thank you, Mr.
14 Aguiar.

15 Our next witness will be Ms. Zieba.
16 You have 5 minutes.

17 MS. ZIEBA: Good afternoon and thank
18 you for the invitation to testify.

19 I am Maria Zieba, the Vice President
20 of Government Affairs at the National Pork
21 Producers Council. And it is in this capacity in
22 which I am testifying before you.

23 NPPC represents the interests of
24 America's more than 60,000 pork producers. Our
25 industry supports more than 573,000 U.S. jobs,

1 and adds about \$63 billion to the nation's GDP.

2 The U.S. pork industry is dependent
3 on maintaining existing and opening new foreign
4 markets, exporting about a quarter of our total
5 production annually to over 100 countries.
6 Unfortunately, Brazil is not one of these
7 countries.

8 While the U.S. pork producers are all
9 but shut out of the Brazilian market through
10 unfair tariff and non-tariff barriers, the South
11 American country enjoys unfettered market access
12 into the United States for its pork exports.

13 Over the past decade Brazil pork
14 exports to the U.S. have risen more than 1,900
15 percent, increasing from \$5.2 million in 2014 --
16 2014 to more than \$104 million in 2024. It is
17 time for Brazil to reciprocate on pork market
18 access.

19 Brazil ignores international
20 commitments in the WTO's SPS agreement and poses
21 more stringent requirements on imported products
22 than it does on domestic products as a way, it
23 claims, to ensure imports meet an appropriate
24 level of protection for animal health and food
25 safety.

1 The United States' animal health
2 inspection and food safety standards and systems
3 are the gold standard. And as one of the largest
4 exporters of pork in the world, we operate a
5 world class plant inspection and approval system.

6 Brazil's continued failure to
7 recognize the U.S. system and insistence on
8 plant-by-plant approvals are an unacceptable
9 barrier to U.S. pork.

10 Brazil has also failed to finalize an
11 export certificate to allow entry of U.S. pork,
12 despite a decade-plus of negotiations. One
13 concern it has raised is that the U.S.
14 Government's acceptance of regionalization from
15 EU countries that are positive for a foreign
16 animal disease called African swine fever.
17 Brazil does not recognize that regionalization
18 and has raised concerns that recognition would
19 expose Brazilian pork production to foreign
20 animal diseases from third countries.

21 Oddly enough, Brazil submitted a
22 similar regionalization agreement request to the
23 U.S. for foot and mouth disease regionalization,
24 which the U.S. Government recognized, and which
25 has allowed pork to be exported from Santa

1 Catarina to the United States.

2 In other words, while the United
3 States has adhered to international WTO rules,
4 the World Animal Health and Codex Guidelines,
5 Brazil has not followed the same international
6 commitments to allow U.S. pork access to its
7 markets.

8 Another of Brazil's non-tariff
9 barriers is its insistence that U.S. pork be
10 either tested for trichinae for full testing or
11 frozen in accordance with existing federal
12 regulations. Brazil trichinae-related
13 restrictions on U.S. pork violates numerous
14 provisions of the WTO SPS agreement, including
15 the requirement that SPS measures be based on
16 science and legitimate risk assessments.

17 Over the past 30 years the United
18 States has implemented a strong biosecurity
19 program for pork production and has reduced the
20 risk of trichinella in the U.S. swine herd to
21 negligible levels. Trichinella has not been
22 detected in the U.S. commercial swine herd in
23 well over a decade.

24 Although not a trade barrier,
25 Brazil's effort to take advantage of the

1 difficulties U.S. pork producers are having
2 because of California's Proposition 12,
3 non-science based housing requirements that are
4 undermining the U.S. pork industry, in fact,
5 Brazil pork exports to California have increased
6 over the past few years.

7 It is important to note that NPPC
8 does not formally object to Brazil's foreign
9 market access request. The bottom line is Brazil
10 has a de facto ban on U.S. pork that stymies
11 access for reasons that lack scientific
12 justification and violates several international
13 trade commitments.

14 We continue to urge the Brazilians to
15 recognize the standard FSIS pork export
16 certificate, not impose additional testing, not
17 create additional registration through monographs
18 and, most importantly, live up to its
19 international commitments.

20 NPPC welcomes the Section 301
21 investigation on Brazil's trade barriers to U.S.
22 products, and requests that USTR work to
23 eliminate the country's baseless non-tariff
24 barriers so fresh, frozen, and processed U.S.
25 pork may be shipped to Latin America's largest

1 economy.

2 Thank you. And I look forward to
3 your questions.

4 CHAIR GRIMBALL: Thank you, Ms. Zieba.
5 And we will have our last witness.
6 Mr. Murray, you have 5 minutes.

7 MR. MURRAY: Madam Chair, thank you
8 for the opportunity to be here today.

9 My name is Bill Murray. I'm the
10 President and CEO of the National Coffee
11 Association of the United States, the NCA. We
12 represent companies operating across all segments
13 of the U.S. coffee industry and in every U.S.
14 state and territory.

15 The coffee industry adds more than
16 \$343 billion to the U.S. economy every year, and
17 provides more than 2.2 million jobs. Coffee
18 accounts for 8 percent of the overall value of
19 the U.S. food service sector.

20 More than two-thirds of American
21 adults drink coffee each day, or 73 percent each
22 week. With a large majority of Americans
23 reaching for their coffee first thing in the
24 morning, and often making it at home, coffee is
25 the quintessential kitchen table issue -- a daily

1 touchstone in the lives of Americans, a constant
2 in their grocery baskets, and a highly visible
3 indicator of the cost of living.

4 For comparison, consider that only an
5 estimated 10 percent of Americans eat eggs each
6 day.

7 Nearly all that coffee must be
8 imported because it cannot be grown at a large
9 commercial scale in the U.S. We simply do not
10 have the appropriate climate, except in Hawaii
11 and Puerto Rico. While 99 percent of our coffee
12 is imported in the form of unroasted coffee, --
13 known also as "green" coffee -- roasted coffee,
14 decaffeinated coffee, and instant coffee,
15 tremendous value is added right here at home
16 where coffee is stored, cleaned, shipped,
17 roasted, packed, marketed, prepared, and sold.

18 For every \$1 of green and roasted
19 coffee imported there's \$43 generated in economic
20 value here in the U.S.

21 Coffee imports in all categories have
22 previously entered the United States duty-free.
23 The U.S. coffee industry's value to the United
24 States depends on these imports, which have no
25 domestic substitute, making coffee unique from

1 other sectors and from other products involved in
2 your consideration of our trade relations.

3 In 2024, Brazil accounted for more
4 than 20 percent of the total value of coffee
5 imported to the U.S., including green coffee,
6 roasted coffee, decaffeinated coffee, instant,
7 and soluble coffee. In terms of green coffee,
8 Brazil provides 30 to 40 percent of green coffee
9 that American businesses and coffee drinkers rely
10 on.

11 While the coffee we import from
12 Brazil cannot be substituted from domestic
13 sources, and derives tremendous economic value,
14 conversely, coffee only represents about 5
15 percent of the value of Brazil's overall exports
16 to the U.S.

17 Tariffs on coffee will, therefore,
18 hurt the U.S. disproportionately, including by
19 diverting the raw commodity of green coffee away
20 from the U.S., from roasting and process to
21 roasting and processing in third countries,
22 Europe, and China, either for domestic
23 consumption or for further trade.

24 Such supply chain disruptions will
25 increase costs and decrease supply of coffee in

1 the U.S., exacerbating impacts already being felt
2 by U.S. businesses and coffee drinkers.

3 These disruptions would also deprive
4 Americans of coffee's proven health benefits at
5 the time when the Trump administration is
6 revolutionizing our country's approach to
7 preventing chronic disease.

8 Decades of robust, independent
9 research associates coffee drinking with
10 increased longevity, reduced risk of obesity,
11 depression, multiple cancers, Type 2 diabetes,
12 and cardiovascular disease. The administration
13 earlier this year affirmed that coffee of less
14 than 5 calories per serving qualifies as a
15 healthy food.

16 For these reasons we respectfully
17 urge the administration to not include coffee in
18 any proposed tariffs or trade restrictions under
19 the Section 301 review and remove tariffs on
20 coffee from Brazil.

21 Coffee trade is not emblematic of
22 unfair trade practices, has no domestic
23 alternatives, and a disruption of trade would
24 have significant detrimental effects throughout
25 our economy and our society.

1 Thank you. And I am happy to answer
2 any questions that you may have.

3 CHAIR GRIMBALL: Thank you, Mr.
4 Murray.

5 And now we will proceed with
6 questions from the government panel. Again, some
7 of you may receive one or more questions, some of
8 which may focus more on your written submission.

9 MS. BONNER: Thank you.

10 Mr. Mencer, in your written testimony
11 you stated that if left unfettered, we believe
12 American agriculture will be severely damaged,
13 with many farmers forced out of business and many
14 American agriculture companies losing market
15 share in the global market due to unfair and
16 illegal practices.

17 Could you please provide more
18 specific information regarding which unfair and
19 illegal practices of Brazil are among your
20 greatest concerns?

21 MR. MENCER: Just for example, last
22 year we lost about 20 percent of the farmers in
23 the Mid-South because of low commodity prices.

24 This year it's projected to lose
25 another 20 to 40 percent, possibly more. That's

1 from the Farm Credit Administration that operates
2 in the Mid-South.

3 Some of the companies that we think
4 could be hurt globally would be equipment
5 manufacturers, fertilizer manufacturers, and
6 people that produce inputs for the agriculture in
7 Brazil because of the Chinese involvement, and
8 forcing them to, if we're going to buy your
9 product, you need to buy or source your inputs
10 from Chinese-owned companies.

11 And it's really putting -- it's
12 gobbling up the demand for the inputs that we
13 need and are going down there, which creates a
14 shortage which caused our inputs to rise. As our
15 commodity prices fall, those input costs are
16 going up.

17 A lot of this was created during the
18 pandemic when our input price went up 30 to 40
19 percent. Or in some cases fertilizer doubled in
20 cost. But since then our commodity prices fell
21 because of overproduction in the world, and
22 inputs have not come back down.

23 MR. REYNOLDS: Mr. Mencer, I have a
24 follow-up question.

25 Are you able to share the methodology

1 behind the University of Arkansas' estimate for
2 the \$1.1 billion in losses for farmers in
3 Arkansas?

4 MR. MENCER: Yes. We have a copy of
5 that report that the university has given us.
6 And we're waiting on the updated version.

7 We have a copy we'd be happy to
8 submit.

9 MR. REYNOLDS: Thank you.

10 MR. HUFFMAN: My question is for Mr.
11 McKinney.

12 Your testimony notes the use of
13 forced labor and child labor in the Brazilian
14 cattle business. Could you please elaborate on
15 the impact of these practices and other labor
16 practices in the Brazilian cattle industry, and
17 what impact they have on the competitiveness of
18 U.S. cattle producers?

19 MR. MCKINNEY: Yes. I can give you
20 that with the understanding that in our
21 post-hearing we'll submit more information and
22 elaborate on that more fully.

23 The U.S. Department of Labor's ILAB
24 -- that's Bureau of International Labor -- has
25 included the Brazilian cattle and beef industry

1 in their annual report for both forced labor and
2 child labor for a number of years.

3 In addition to that, there has been
4 quite a bit of good work that's been done out of
5 Brazil itself with some nonprofits. And I can
6 pull some of that information together for you.

7 And we've also seen a situation where
8 the -- out of Great Britain there's several
9 different studies have been worked up. And it's
10 actually resulted, at least in the United States
11 supply chain, nothing has really come of it.
12 There's not been much notation, as it were, or
13 action.

14 But what we have seen is that there
15 have been in the corporate world there's been a
16 few companies that have refused to carry, to
17 carry Brazilian beef for this purpose.

18 But we can elaborate on this answer
19 further in the post-hearing.

20 MR. HUFFMAN: Thanks.

21 MR. VOLTAGGIO: This question is for
22 both Mr. McKinney and Mr. Bacus.

23 Has Brazil's practice of illegal
24 deforestation for the purpose of cattle ranching
25 and feed affected U.S. beef competitiveness?

1 And has beef production linked to
2 illegal deforestation hurt U.S. beef exports in
3 foreign markets?

4 Perhaps Mr. McKinney and then Mr.
5 Bacus.

6 MR. McKINNEY: Well, the deforestation
7 phenomenon has resulted in Brazil becoming the
8 world's largest exporter of beef. And in this,
9 in a very sort of, I guess, simplistic way of
10 looking at it, when you have a situation where
11 you grow the amount of beef you're able to
12 produce in this sort of exponential fashion your
13 prices go down, the cost of land goes down, all
14 your inputs become cheaper.

15 And are we seeing impacts? I believe
16 that's true, yes.

17 And we can elaborate on this further
18 in the post-hearing submission. But as a general
19 answer, the answer is yes.

20 MR. BACUS: We did, we did not submit
21 anything specific to that question.

22 But, you know, our views on
23 deforestation, you know, obviously deforestation
24 is not an issue we have here in the United
25 States. We have some of the most stable

1 practices in the world. And so, you know, we
2 continue, we continue to work on that as much as
3 possible.

4 Our bigger concern with trying to use
5 a deforestation angle is, it's really what the
6 European deforestation regulation could mean for
7 U.S. producers. We know that is, you know,
8 really aimed at other countries.

9 But since we're getting caught up in
10 the same net as many others, you know, I think
11 the concern is that if we are, if we are looking
12 to implement these new trade burdens, then those
13 are similar practices that could be placed on us.

14 Right now we're trying to work with
15 USTR to remove beef from the EUDR, at least U.S.
16 beef, because we know that those costs of
17 compliance are going to be passed on to our
18 farmers and ranchers. That's not something that,
19 that the packing companies and feedyards, and
20 others that are further up the chain are going to
21 take on. That will ultimately be passed back to
22 the farm.

23 So, that's why we've been encouraging
24 using existing authorities to restrict trade.

25 MR. VOLTAGGIO: Thank you both for

1 those answers.

2 MR. MCKINNEY: May I add a
3 clarification point?

4 Anything that's said today was not
5 intended to advocate any sort of legislation or a
6 gross change in policy in terms of creating a
7 completely different mechanism.

8 We are also advocating that you use
9 the authority you have, and specifically in the
10 Section 301, to actually figure out a way to
11 address this.

12 Thank you.

13 MR. VOLTAGGIO: Thank you both for
14 adding your thoughts on that.

15 And as a follow-up to both of you,
16 what steps can be taken, in your opinion, to
17 ensure Brazilian beef does not contribute to
18 illegal deforestation?

19 And what role can third party
20 certification schemes or additional traceability
21 requirements play in reducing land use change
22 linked to beef production?

23 MR. MCKINNEY: You're going to hate
24 this answer. And I do apologize, but I am going
25 to have to go completely back to my client before

1 I suggest anything along these lines. I'm
2 outside counsel, and I will have to clear that
3 with them.

4 But we can address it in the
5 post-hearing submission. Thank you for that.

6 MR. BACUS: Yeah, I can't speak to
7 Brazil's practices because I'm not an expert on
8 that. I think, you know, the market, if the
9 market does choose to start focusing on that,
10 then we think that there's going to be increased
11 opportunities for our producers.

12 That has typically been the case with
13 when consumers look at how cattle are raised and
14 look at quality, then that tends to reflect on
15 further premiums for our producers. That is
16 really more of a market-driven angle that we
17 would look to take.

18 But happy to follow up on this in our
19 further comments.

20 MR. VOLTAGGIO: Perfect. Thank you
21 both very much.

22 MS. YU: This question is for Mr.
23 Aguiar.

24 In your testimony you note that in
25 your opinion Brazil adopts trading and

1 environmental practices that are aligned with its
2 international commitments.

3 Could you clarify whether this
4 statement applies to just the fishing industry,
5 or do you consider this to be the case in other
6 sectors relevant to this investigation, i.e.,
7 other agricultural products, timber, ethanol, et
8 cetera? Please explain.

9 Thank you.

10 MR. AGUIAR: Hi. Thank you for your
11 question, Madam.

12 We are here to discuss mostly about
13 the fisheries. I'm not able to discuss about the
14 other sectors. But the fisheries, yes, we do
15 follow.

16 MS. YU: Thank you.

17 MR. AGUIAR: Thank you.

18 MR. ABBOTT: This question is for Ms.
19 Zieba.

20 Can you tell us about the market
21 access for U.S. pork in Brazil?

22 And can you estimate the value of the
23 trades barriers that are currently impacting this
24 market access?

25 MS. ZIEBA: It's hard to put an

1 estimate on market access when you haven't had
2 it. And the biggest potential that we have for
3 U.S. pork into Brazil is on the variety side,
4 those are the pork offals.

5 What I mean by that, for layman's
6 terms, there are many parts of the animal that in
7 the United States we love to eat, for example,
8 ribs and bellies, which we have to import about
9 \$2 billion worth in the U.S. because we just
10 don't produce enough.

11 There are other parts of the animal
12 that, unfortunately, the U.S. consumer is not a
13 big fan of, and that would include kidneys,
14 livers, hearts.

15 The Brazilian market is quite unique.
16 They have a number of traditional dishes that are
17 made in Brazil that use those parts of the
18 animal. And they do have imports of offals.

19 So, we would see that as an
20 opportunity for, for our industry because as we,
21 as we look at U.S. trade policy beyond Brazil we
22 are looking at different markets for those offals
23 that don't make us dependent on the Chinese
24 market. That's currently where most of those
25 products are going to. And we're just looking to

1 be able to diversify as much as possible.

2 MR. ABBOTT: Thank you.

3 And as a follow-up question, to your
4 knowledge has pork production or the production
5 of inputs to pork production, for example feed
6 grains, in Brazil been linked to illegal
7 deforestation?

8 MS. ZIEBA: I wouldn't be able to
9 comment on that. I've lived in Brazil, I've
10 traveled to Brazil many times, but I wouldn't be
11 able to personally comment on the deforestation
12 issues.

13 Now, they do -- they are, I can
14 comment on their competitiveness internationally
15 when it comes to pork production. Brazil has
16 lower costs of production compared to the United
17 States and pretty much every other country out
18 there.

19 And that has to do with various
20 factors including labor costs being much lower in
21 Brazil than, than in the United States and in
22 Europe. That has made them competitive
23 internationally, so that they've become a
24 powerhouse.

25 They've also managed to ink deals

1 with Chinese counterparts where they are
2 supplying pork products to, to China and other
3 Southeast Asian countries where the U.S. had
4 predominance and was exporting to, but we've been
5 edged out and Brazil has taken over those, those
6 market access opportunities.

7 MR. REYNOLDS: I have a couple
8 questions on third party certification for Mr.
9 Murray.

10 Has Brazilian coffee placed on the
11 U.S. market undergone third party certification
12 of deforestation pre-production?

13 What proportion of U.S. imports of
14 Brazilian coffee have undergone certification
15 relative to coffees sourced from other countries?

16 And how have rates of third party
17 certification changed over time for U.S. imports
18 of Brazilian coffee relative to coffee sourced
19 through other markets?

20 MR. MURRAY: So, I will give you some
21 statistics on certification in our post-session
22 submission.

23 With respect to deforestation and
24 coffee, the very concept of deforestation and
25 coffee is, there's a bit of a tension between

1 these concepts. It takes three years for a
2 coffee tree to mature and produce coffee. That
3 tree is then productive for two decades.

4 So, we know that coffee farmers in
5 Brazil are stationary and they're guarding the
6 long-term interests of their crop.

7 Statistics are difficult to come by
8 overall with respect to deforestation and coffee.
9 One study has shown that overall, globally,
10 tropical crops, traditional tropical crops
11 account for less than 5 percent of illegal
12 deforestation. That would include sugar, cacao,
13 and coffee -- all together less than 5 percent.

14 Coffee is grown typically in the
15 states of Minas Gerais, Espirito Santo, Sao Paulo
16 and Bahia, in well-established agricultural areas
17 where the focus is on productivity in those
18 areas.

19 Brazil has long been a leader in the
20 area of addressing deforestation of the coffee
21 sector in particular. And those efforts have
22 accelerated in the last three years as they get
23 ready to comply with the EUDR, the deforestation
24 directive. And Brazil is a leader in the coffee
25 sector which is its active compliance, which is

1 its activity report at the end of this year.

2 I visited myself the Province of
3 Espiritu Santo two years ago. The state
4 government has plotted all the coffee growing
5 farms. In fact, in an impromptu visit one of the
6 coffee farmers complained in front of the state
7 Minister of Agriculture that they didn't let him
8 do what he wanted to with his land.

9 So, we can get you some statistics on
10 certification. But I would simply make the case
11 that there are a lot of different mechanisms that
12 are employed: cooperatives, state supervision,
13 industry work in addition to certification, all
14 of which is leading Brazil to sustainable coffee
15 production.

16 MR. REYNOLDS: Thank you.

17 MS. REINITZ: This is a question to
18 all witnesses on the panel.

19 The Department of Labor's list of
20 goods produced with child labor or forced labor
21 has identified child labor or forced labor in a
22 variety of Brazilian agricultural sectors,
23 including cattle, which has already been
24 mentioned, and as well as coffee and a number of
25 other goods.

1 Are you aware of efforts by Brazilian
2 producers in these or other industries to combat
3 forced labor, child labor, and other unfair labor
4 practices?

5 MR. MURRAY: May I address this on
6 behalf of the coffee sector?

7 First and foremost, there's
8 absolutely no place for forced labor or child
9 labor in the coffee sector. Nearly all of the
10 suppliers in the supply chain have obligations
11 from their suppliers that their suppliers may
12 commit these, the supplied coffee that is
13 complying with all labor standards.

14 In Brazil, efforts to comply with
15 labor relations are enforced through a national
16 work plan. There are actions, there is a list of
17 transgressors who are effectively cut out of the
18 coffee business. And there are industry
19 programs, which Mr. Matos may have referenced in
20 his testimony earlier today for Cecafe,
21 addressing a number of social indicators: health,
22 living income, education, and others.

23 So, there is a commitment within the
24 industry, both here in the U.S., to not procure
25 coffee that is involved in any sort of labor

1 practices that are inappropriate, also in Brazil.

2 MR. McKINNEY: If I could add a little
3 something to that.

4 Look, I'll have to give you more
5 granular information in the post-hearing
6 submission.

7 I am aware, because I have spent a
8 bit of time back in the past looking into this
9 issue, that there are some Brazilian nonprofits
10 that have boots on the ground, that are trying to
11 do work. There are also a variety of
12 environmental groups that get involved in this
13 specific issue. Because there seems to be some
14 sort of crossover there with this particular
15 problem.

16 But, you know, this was what, this
17 was, in fact, what I was getting at when it, when
18 it came to this notion of cattle laundering. One
19 of the persistent problems they have to this day
20 is that you have a situation where the animal
21 might be born in one place, sold to another farm,
22 then sold to yet another farm, and it becomes
23 very difficult to kind of keep track of what the
24 inputs are.

25 And when there's a tainted input like

1 forced labor, like child labor, like illegal
2 deforestation, it's very difficult to keep track
3 of those things. And that's whether or not it's
4 being done intentionally in this notion of
5 laundering or not.

6 All that said, I will take a moment
7 and dig up some of this information from some of
8 these Brazilian nonprofits that have been doing
9 some work on the ground. I think the take-away
10 from it is that that work is good work. They
11 seem to be making some headway. But the problem
12 persists.

13 Thank you.

14 CHAIR GRIMBALL: Do any other
15 witnesses wish to answer this question?

16 MR. MENCER: As to how it is now, I
17 don't know. I went to Brazil back in 2005 on a
18 rice industry trip and we did see women and
19 children working in the drying process of rice,
20 hand labor, out there turning the rice. They
21 didn't have mechanized equipment to dry the rice
22 with at that time.

23 And I know there was child labor and
24 women working in that manual labor part back
25 then.

1 CHAIR GRIMBALL: Thank you.

2 Please.

3 MR. AGUIAR: I'd like to contribute.

4 In Brazil we have the Labor ministry
5 responsible for all the fiscalization inside of
6 our plants, inside of our plant fields. And
7 there's also the collective agreement with the
8 union in each city and each state.

9 So, a part of that for the future we
10 have the fiscalization of the marine Brazil for
11 the fisheries as well to apply with that --
12 comply with that.

13 And also third party auditing
14 companies doing our certifications. For example,
15 even for the fisheries to supply United States
16 they must have BAP standards -- that's
17 agriculture practices.

18 Also, there is other certifications
19 like Codex, if you might have heard. And this
20 is, they are the ones responsible even though to
21 go deep into this kind of questionings. And the
22 company need to, to prove that they are not using
23 forced labor, child labor, and everything.

24 And so, we do have a ministry, a
25 labor ministry responsible and taking actions,

1 fiscalization, and also very active doing all the
2 surprise, surprise audits the majority of the
3 time.

4 So, that is very, it shows that
5 Brazil has a very good, a very good commitment
6 with that.

7 Thank you.

8 CHAIR GRIMBALL: Thank you.

9 If no other witnesses wish to respond
10 to this question we will release Panel 4, take a
11 5-minute break or so, and come back at 3:55 --
12 oh, 2:55, excuse me.

13 (Whereupon, the above-entitled matter
14 went off the record at 2:47 p.m. and resumed at
15 2:59 p.m.)

16 CHAIR GRIMBALL: Thank you. We will
17 now begin with Panel 5.

18 Ms. Amidon, you have the floor and
19 five minutes.

20 MS. AMIDON: Thank you, Chair and
21 Committee members. My name is Ashley Amidon, CEO
22 of the International Wood Products Association.
23 IWPA is the leading trade association for the
24 North American international wood products
25 industry. We advocate for the growth and

1 acceptance of responsible, ethical, and
2 sustainable forest products sourced globally
3 while supporting communities, trade, and
4 consumers.

5 IWPA is committed to working with the
6 U.S. Government and key stakeholders to ensure
7 trade and wood products with Brazil neither
8 contributes to illegal deforestation nor violates
9 the legal sourcing requirements of the Lacey Act.
10 We greatly appreciate this opportunity to testify
11 on Brazilian trade practices, specifically in
12 response to USTR's request for information on
13 illegal deforestation in Brazil.

14 We believe that new processes under
15 existing treaties will best meet the U.S.'s goals
16 to support environmental protection and
17 sustainable agriculture as well as promote
18 reciprocal trade. Brazil's native timber supply
19 chain operates under one of the world's most
20 comprehensive legality assurance frameworks,
21 combining strong legal foundations, advanced
22 monitoring systems, robust enforcement capacity,
23 and innovative deforestation and wildfire
24 prevention programs. This system is effective
25 and has delivered measurable results.

1 Natural deforestation fell 32.4
2 percent in 2024, and clearcutting without fire
3 dropped by 8 percent, which is the lowest level
4 on record. Brazil has developed
5 commodity-specific programs addressing
6 agricultural deforestation risks, including
7 cattle and soy, which I know are industries of
8 particular concern to USTR.

9 For cattle, the Forest Code framework
10 was recently expanded with a national
11 traceability plan requiring individual animal
12 tracking by 2032 with phased implementation
13 benchmarks to ensure steady progress.

14 In the soy sector, voluntary industry
15 initiatives have proven highly effective. The
16 Amazon Soy Moratorium dramatically reduced
17 deforestation linked to soy cultivation. Before
18 the Moratorium, approximately 30 percent of newly
19 planted soy acreage was a conversion from forest.
20 Now it is roughly 1 percent.

21 Given this successful record, IWPA
22 recommends that the United States prioritize
23 bilateral cooperation with Brazil to strengthen
24 supply chain transparency and align monitoring,
25 reporting, testing, and verification mechanisms

1 with both countries' requirements so that U.S.
2 industries can continue to thrive and forests
3 continue to be protected.

4 Globally sourced wood products are
5 critical for maintaining a strong, competitive
6 U.S. manufacturing base. For instance, tropical
7 timber from Brazil is often purchased for its
8 hardness, durability, and moisture resistance
9 because direct domestic alternatives do not
10 exist. Wood is different from most other
11 commodities in that not all species can grow in
12 every country.

13 This geographic and genetic diversity
14 means that American manufacturers in industries
15 as varied as homebuilding, furniture, cabinets,
16 musical instruments, boats, and RVs all rely on
17 competitive access to materials from around the
18 world. If they lose access to imported timber
19 such as that from Brazil, our industries become
20 far less competitive globally.

21 IWPA strongly supports U.S. efforts
22 to combat illegal deforestation and promote legal
23 and sustainable wood trade, but we also believe
24 that wherever possible, the U.S. should partner
25 with nations to fight deforestation by ensuring

1 legitimate trade can continue to build value in
2 standing forests.

3 We therefore recommend using the
4 existing framework of the U.S.-Brazil Agreement
5 on Trade and Economic Cooperation. ATEC created
6 the United States-Brazil Commission on Economic
7 and Trade Relations, mandated to organize expert
8 meetings and establish working groups to study
9 issues of common interest.

10 This would be an ideal body to
11 address U.S. concerns about illegal
12 deforestation, creating regular ongoing dialogue
13 with actionable government plans. USTR should
14 carefully consider actions taken under Executive
15 Order 14323 on Brazilian trade and determine if
16 additional retaliatory actions are still
17 necessary, given the new 50 percent tariff on
18 most Brazilian products.

19 We request further actions taken as a
20 result of this investigation be tailored to
21 American manufacturers' needs, as the executive
22 order did by preserving access to limited types
23 of essential tropical lumber unavailable in the
24 United States.

25 IWPA hopes to partner in this process

1 and requests USTR replicate the additional
2 comment period for proposed actions used in the
3 Chinese shipbuilding Section 301 investigation
4 with successfully addressed significant industry
5 concerns.

6 We look forward to serving as a
7 partner and a resource as this investigation
8 continues. Thank you, and I look forward to
9 answering any questions.

10 CHAIR GRIMBALL: Thank you.

11 Mr. Júnior, you have the floor.

12 MR. PIMENTA: Thank you, Madam Chair.

13 My name is José Luiz Pimenta Júnior.
14 I am a senior foreign trade consultant
15 representing the Brazilian Furniture
16 Manufacturers Association, ABIMÓVEL. I'm
17 grateful for the opportunity to participate in
18 this USTR public hearing.

19 The Brazilian Furniture Manufacturers
20 Association, ABIMÓVEL, represents Brazil's
21 federally licensed furniture manufacturers and
22 exporters, who collectively accounted for 735
23 million U.S. dollars in Brazil's furniture
24 exports and have engaged in Brazilian federal and
25 state authorities' implementing traceability,

1 environmental compliance, and anticorruption
2 measures across the wood and furniture supply
3 chain.

4 Brazil has a robust legal framework
5 aimed at regulating land use and forest
6 management. The Forest Code requires landowners
7 to preserve and restore native vegetation,
8 establish legal reserve percentages ranging from
9 20 percent to 80 percent. Additionally, it
10 designates permanent preservation areas, APP, to
11 protect sensitive areas. The Forest Code also
12 established the Rural Environmental Registry,
13 CAR, a mandatory registry where all properties
14 must be recorded to reference data about their
15 activities, allowing for tree stability and
16 monitoring of land use.

17 Furthermore, in the penal realm, the
18 Environmental Crimes Law establishes penalties
19 for illegal deforestation. Penalties include
20 administrative fines, embargoes on products
21 originating from illegally deforested lands,
22 detention or imprisonment, fines and obligations
23 to repair environmental damage. Additionally,
24 the Atlantic Forest Law prohibits the
25 deforestation of primary forests and establishes

1 rules for the use of the biome.

2 Brazil demonstrates a strong
3 commitment to combating illegal deforestation
4 through substantial enforcement initiatives and
5 significant investments in cutting-edge
6 monitoring and compliance systems, such as PRODES
7 and DETER, which enable real-time deforestation
8 detection.

9 The project for monitoring
10 deforestation in the Brazilian Amazon by
11 satellite, PRODES, is a government annual
12 monitoring program that tracks the removal of
13 native vegetation and produces official maps and
14 data.

15 Additionally, the DETER project
16 real-time deforestation detection system aims to
17 identify and map deforestation and other changes
18 in forest cover in almost real time with a
19 minimal area of approximately one hectare.

20 And lastly, the Deforestation Alert
21 System, SAD, maps the Caatinga, Atlantic Forest,
22 Pantanal, Pampa, and Cerrado. All of this data
23 collected by these monitoring systems are public.

24 In 2024, deforestation in the Amazon
25 reached its lowest level in nearly a decade,

1 achieving the lowest rate in the past nine years.
2 Between 2023 and 2024, the annual deforestation
3 rate in the Legal Amazon experienced a reduction
4 of 30.6 percent. In the same year, there was a
5 42.5 reduction in deforestation in uses with a
6 57.9 reduction in fully protected conservation
7 units.

8 This data further demonstrates the
9 firm and constant measures taken by the Brazilian
10 Government against illegal practice involving the
11 environment. In 2024 alone, the furniture sector
12 producing approximately 40 million pieces of
13 furniture, which brought in revenues 16.2 billion
14 U.S. dollars and provided jobs for more than
15 208,000 workers in Brazil.

16 The United States is the leading
17 destination for Brazilian furniture exports.
18 However, Brazil's share in total U.S. furniture
19 imports remain modest, accounting for only about
20 0.6 percent, roughly 235 million U.S. dollars a
21 year.

22 The sector has significantly elevated
23 its commitment to sustainability. Companies are
24 increasingly adopting international
25 certifications, such as FSC and ISO 14001 to

1 ensure environmentally and operationally
2 responsible practices. A key component of this
3 effort is implementing robust product
4 traceability systems. For Brazilian furniture
5 manufacturers targeting export marketings,
6 obtaining the correct certification is not just
7 beneficial but essential. Traceability and
8 certification have become integral components of
9 standard operational procedures.

10 In the United States, a number of
11 Brazilian companies have established their own
12 retail stores and distribution centers. This
13 direct investment generates employment and
14 fosters economic opportunities within local
15 communities. Given that the U.S. is a
16 strategically vital market for the sector, a
17 growing number of Brazilian companies are
18 exploring opportunities to establish a stronger
19 operational presence there. This includes
20 setting up new distribution networks and
21 manufacturing facilities.

22 ABIMÓVEL strongly believes that
23 international collaboration is key to tackling
24 illegal deforestation and boosting bilateral
25 trade. Therefore, we emphasize that Brazil is

1 dedicated to making sure that furniture producers
2 follow the best sustainable practice, illegal
3 deforestation-free products to the United States.
4 Thank you very much.

5 CHAIR GRIMBALL: Thank you, Mr.
6 Júnior.

7 Ms. Powell, you have five minutes.

8 MS. POWELL: Good afternoon. My name
9 is Brittney Powell. I'm an attorney at the law
10 firm Fox Rothschild here in Washington, D.C., and
11 Counsel to the Indústria Brasileira de Árvores,
12 or, translated, the Brazilian Tree Industry, or
13 IBA for short. On behalf of IBA, we thank the
14 Committee for the opportunity to be heard on this
15 matter.

16 The Brazilian Tree Industry is the
17 national association representing 48 companies
18 engaged in the cultivation of plantation forests
19 and the production of a wide range of products,
20 including pulp and paper, wood panels, and
21 biomass for energy derived from renewable and
22 sustainable sources. Their operations are not
23 linked to deforestation of native forests but
24 instead contribute to environmental protection by
25 reducing pressure on natural forests through

1 preservation and conservation efforts.

2 As sustainable and responsible forest
3 management are core among the values of IBA's
4 advocacy, the organization supports the ongoing
5 and comprehensive national efforts of Brazil to
6 curtail illegal deforestation. Although illegal
7 deforestation is a very serious concern globally,
8 it does not amount to an unfair trade practice in
9 Brazil that is detrimental or restrictive to U.S.
10 commerce as it relates to the plantation
11 forest-based sector.

12 First, I'll briefly discuss the
13 critical role of Brazilian exports of
14 forest-based products, which are complementary
15 rather than detrimental to U.S. commerce. One
16 such export is the bleached eucalyptus kraft
17 pulp. This is the most important short-fiber
18 cellulose pulp product imported into the United
19 States, and Brazil accounted for over 80 percent
20 of U.S. imports of this product in 2024.

21 U.S. reliance on this export is not
22 incidental but the result of over four decades of
23 joint development and innovation between
24 Brazilian producers and U.S. consumer goods
25 companies such as Procter & Gamble and

1 Kimberly-Clark. The outcome has been the
2 creation of highly specialized fibers that form
3 the backbone of American hygiene and household
4 products and are used by some of the most iconic
5 and recognizable brands, brands such as Charmin,
6 Bounty, Kleenex, Cottonelle, among others.

7 The short-fiber eucalyptus pulp from
8 Brazil is critical to impart characteristics that
9 we all desire in hygienic paper products, such as
10 softness and absorbency. But due to climate and
11 geographical conditions, neither the raw
12 eucalyptus pulp fiber nor the processed pulp is
13 commercially available from U.S. sources.
14 Therefore, Brazilian exports are necessary to
15 fill a critical supply gap in the United States.

16 Other critical products exported from
17 Brazil include papers for the printing and
18 packaging segments, industrial sacks, thermal
19 papers, and wood panels. Industrial sacks, for
20 example, are widely used in the construction
21 industry with major companies such as Cemex and
22 LafargeHolcim.

23 With regard to wood panels, half of
24 the U.S. medium-density fiber board consumption
25 is imported, and Brazil plays a strategic role in

1 meeting U.S. market demand. Brazilian MDF panels
2 are sold in major U.S. retail chains, such as
3 Lowe's, for example, with regular and ongoing
4 sales.

5 We urge the Committee to avoid
6 imposing potential tariffs on Brazilian exports
7 of these products, which would destabilize
8 downstream supply chains, increase costs, and
9 even risk shortages of essential goods, echoing
10 the consumer panic seen during the 2020 toilet
11 paper crisis. The administration should seek to
12 avoid these crises and ensure that raw materials
13 critical for consumer and industrial goods are
14 not a casualty of this investigation.

15 It's also important to recognize the
16 significant legal and institutional framework
17 that Brazil has established to monitor and
18 prevent illegal deforestation, including strict
19 compliance with the 2012 Brazilian Forest Code,
20 which you've heard about earlier today. Brazil
21 has also entered into several important
22 international commitments.

23 But these are not merely symbolic
24 gestures. Brazil has demonstrated measured and
25 real progress. According to its sixth annual

1 report on deforestation, the country recorded a
2 more than 30 percent reduction in the
3 deforestation rate between 2023 and 2024. This
4 is just one data point among many that
5 demonstrate Brazil's policies are strong and
6 effective when fully implemented, and contrary to
7 what you heard in the prior panel, the country
8 doesn't need any motivation, external motivation,
9 to combat and prevent illegal deforestation.

10 Due to the plantation-based forest
11 production model in Brazil over several decades,
12 we're confident that our members' products are
13 not sourced from illegally deforested areas. The
14 production model is based on plantation forests
15 established on previously degraded lands
16 operating under a zero illegal deforestation
17 policy, with georeferenced traceability of all
18 forest-based inputs and third-party
19 internationally recognized certifications.

20 As a final point, I note that
21 Brazilian companies operating in the sector
22 comply with existing U.S. law, such as the Lacey
23 Act, which prohibits the trade of illegally
24 sourced plant materials.

25 In conclusion, while illegal

1 deforestation remains a serious global issue, the
2 forest-based industry represented by IBA operates
3 within a legal and monitored sustainable
4 framework, Brazil's ongoing progress and
5 international commitment to demonstrate a genuine
6 and results-oriented approach to combat illegal
7 deforestation. And we respectfully urge the
8 Committee to consider these points in its
9 assessment of Brazil's environmental practices.

10 Thank you again for the opportunity,
11 and I welcome any questions.

12 CHAIR GRIMBALL: Thank you, Ms.
13 Powell.

14 Mr. Pupo, you have five minutes.

15 MR. PUPO: Thank you for the
16 opportunity to testify. My name is Paulo Pupo,
17 and I'm here on behalf of ABIMCI, the Brazilian
18 National Wood Association Industry for wood
19 sector representing over 140 companies that
20 account for the vast majority of Brazilian wood
21 growers and processors. The majority of the
22 sector's forest supply originated from
23 sustainably managed planted forests.

24 ABIMCI and its members are fully
25 committed to sustainable forestry, environment

1 stewardship, and fair trade. It's crucial to
2 understand that Brazilian wood products,
3 particularly those from ABIMCI members, are not
4 made with illegally harvested timber. They've
5 demonstrated this. Over 98 percent of Brazil
6 forestry supply chain outputs comes from planted
7 exotic species like pine and eucalyptus on
8 reforested lands. These are not products logged
9 from rainforest.

10 Our plantations are strategically
11 located in temperate states in an area south of
12 Brazil, far from tropical Amazon Rainforest where
13 most deforestation occurs. Furthermore, these
14 plantations were established decades ago on land
15 previously degraded by ranching and agriculture,
16 meaning their establishment actually led to
17 reforestations, not deforestations. And many are
18 owned and managed by U.S. firms.

19 Brazil maintains some of the world's
20 most comprehensive and stringent forest laws,
21 including the Brazilian Forest Code. These laws
22 strictly regulate the use and conservation of
23 private forest lands, including our plantation
24 estates. Beyond national laws, approximately 7.8
25 million hectares of plantation forest in Brazil

1 are certified as sustainable by globally
2 recognized organizations like FSC or PEFC. This
3 represents about 76 percent of all planted
4 forests in the country.

5 These certifications mandate robust
6 traceability requirements, linking wood material
7 directly to its stand of harvesting, ensuring
8 fair labor practice and respecting local land
9 rights. Importantly, plantations on land
10 deforested after 1994 are ineligible for FSC
11 certifications, a standard even stricter than the
12 European EUDR regulations.

13 Brazilian authorities are actively
14 enforcing these laws. Their efforts, including
15 operations like Operation Amazon Sentinels and
16 Operation Wood at Night, are concentrated in the
17 Amazon basin to combat illegal logging of
18 naturally growing wood. This is distinct from
19 the planted wood species grown on plantations by
20 ABIMCI members in the south of the country.

21 Our products are subject to rigorous
22 document-based oversight nationwide, including
23 Rural Environment Registry mapping, ensuring full
24 traceability and legal compliance. To our
25 knowledge, no Brazilian wood producers have ever

1 been found to have used forced labor in producing
2 timber or lumber products to export to United
3 States, further underscoring our commitment to
4 ethical practices.

5 ABIMCI's exports to U.S. are
6 basically raw materials, not finished goods, and
7 are used by U.S. manufacturers to make furniture,
8 doors, and other products. Many U.S. companies
9 have submitted letters supporting continued
10 access to Brazilian wood, emphasizing the
11 importance for these imports for their
12 competitiveness, especially against finished
13 products from Asia, where standards are lower.

14 Imposing additional tariffs or trade
15 measures on Brazilian wood would not address
16 illegal deforestation, as ABIMCI's supply chain
17 is already legal and sustainable. Such measures
18 would harm U.S. manufacturers, shift demand to
19 less sustainable sources, and undermine the fight
20 against deforestation by penalizing responsible
21 actors.

22 In summary, ABIMCI members are not
23 the source of illegal deforestation. They are
24 partners in a sustainable trade supporting jobs
25 and communities in both Brazil and the United

1 States. We respectfully urge the Committee to
2 exempt Brazilian wood products from any new trade
3 measures under this investigation. Thanks a lot.

4 CHAIR GRIMBALL: Thank you, Mr. Pupo.
5 Mr. Brightbill, you have the floor.

6 MR. BRIGHTBILL: Did you want to go
7 to Mr. Webber first, or --

8 CHAIR GRIMBALL: I switched you up
9 because your seats were switched, but we can go
10 with Mr. Webber first.

11 MR. BRIGHTBILL: Oh, that's fine.
12 No, I'm ready to go. No trouble at all. Thank
13 you.

14 CHAIR GRIMBALL: Whichever you
15 prefer.

16 If you're ready, Mr. Webber, we can
17 go with you.

18 MR. BRIGHTBILL: That's great. I'll
19 go ahead.

20 Go ahead, Section 301 Committee
21 members and staff. I'm Tim Brightbill, partner
22 and Co-Chair at the law firm of Wiley Rein, also
23 an adjunct professor at Georgetown University Law
24 Center. I'm testifying today on behalf of the
25 Coalition of American Millwork Producers, an

1 association of wood mouldings and millwork
2 producers from across the United States.

3 The Coalition represents a
4 quintessential American industry, which you can
5 tell just by looking around this room. We
6 manufacture door frames, window casings, crown
7 mouldings, baseboards, and other wood moulding
8 and millwork products.

9 Thank you for your time today and
10 your hard work on this investigation, as well as
11 all of your efforts to address unfair trade
12 practices in foreign countries, including Brazil.
13 The Coalition submitted prehearing comments a few
14 weeks ago describing many of Brazil's distortive
15 trade acts, policies, and practices that cause
16 harm to the U.S. mouldings and millwork industry.

17 Brazil is the largest importer of
18 wood mouldings and millwork products into the
19 United States. In 2024, Brazilian wood moulding
20 and millwork exports to the United States
21 exceeded \$360 million, comprising more than 34
22 percent of all U.S. imports by value. Through
23 the first half of this year, Brazilian exports
24 have increased another four percent.

25 The aggressive pricing of these

1 imports has harmed U.S. producers for many years.
2 In fact, unfair market conditions and practices
3 in Brazil have allowed Brazilian wood mouldings
4 and millwork exporters to capture a substantial
5 percentage of the U.S. market at the expense of
6 domestic manufacturers, including our Coalition
7 members.

8 Brazil is also a leading exporter to
9 the United States of many other timber and wood
10 products. According to the International Trade
11 Commission, Brazil exported more than 3.6 billion
12 dollars' worth of forest products to the United
13 States last year. The Brazilian Government also
14 actively supports exports with subsidies and
15 other support. For example, just last month, the
16 Brazilian Government announced a plan called
17 Sovereign Brazil in which it will provide \$5.6
18 billion in credits and other support measures to
19 Brazilian companies exporting to the United
20 States.

21 When Brazilian timber and wood
22 products are traded in the United States, they're
23 often sold at below-market prices. In addition,
24 many parts of the Brazilian timber industry are
25 affected by illegal logging and deforestation,

1 driven in part by Brazil's poor management of its
2 timber and wood industries. These unfair prices
3 and practices distort the U.S. mouldings market,
4 which has a direct impact on Coalition members.
5 U.S. moulding and millwork manufacturers, in
6 turn, have to lower their own prices or risk
7 losing sales to low-priced Brazilian imports.

8 The domestic wood moulding and
9 millwork industry has benefitted greatly from
10 U.S. trade measures, including antidumping and
11 countervailing duties on Chinese wood mouldings
12 and millwork products and Section 301 tariffs.
13 These measures have allowed Coalition members to
14 invest millions of dollars in recent years to
15 upgrade their facilities, expand their
16 capacities, and hire new workers. However, U.S.
17 producers have to be able to utilize this new
18 capacity.

19 The effectiveness of existing trade
20 programs and the strength of American wood
21 product manufacturing is jeopardized by the
22 ongoing unfair policies and practices of U.S.
23 trading partners like Brazil. Accordingly, the
24 Coalition supports the administration's efforts
25 to investigate and address Brazil's distortive

1 acts, policies, and practices.

2 Like so many other American
3 industries, the U.S. wood mouldings and millwork
4 industry can compete with anyone, but we are put
5 at a significant disadvantage when competing with
6 Brazilian imports that are unfairly traded or
7 priced.

8 I'll just highlight a few other
9 points before I wrap up. As part of its latest
10 report on child and forced labor, the Department
11 of Labor continues to find forced labor to be
12 prevalent in the Brazilian timber sector.

13 Given Brazil's poor management of its
14 timber and wood industries, it is not surprising,
15 as USTR has recognized, that illegal
16 deforestation is widespread in Brazil. In fact,
17 the Brazilian Government has acknowledged that 90
18 percent of the timber harvested from the Amazon
19 Rainforest is likely done so illegally.

20 And then I will note there is an
21 impact on prices, too. So there is harm due to
22 deforestation. Legal timber prices are estimated
23 to be reduced by between 7 percent and 16 percent
24 due to illegally harvested timber.

25 And then, last, it is commonplace in

1 the Brazilian wood and timber sector for
2 illegally harvested timber to be laundered into
3 global supply chains.

4 With those thoughts in mind, we
5 appreciate your work. Thank you for your time,
6 and I look forward to answering any questions you
7 have. Thank you.

8 CHAIR GRIMBALL: Thank you, Mr.
9 Brightbill.

10 Mr. Webber, you have five minutes.

11 MR. WEBBER: All right. Thank you,
12 Madam Chair.

13 Terry Webber, Vice President,
14 Industry Affairs, for the American Forest & Paper
15 Association. We are the national trade
16 association for America's paper mills. We very
17 much appreciate the opportunity to provide
18 testimony in USTR's Section 301 investigation
19 into Brazil's acts, policies, and practices
20 related in particular to illegal deforestation
21 and to other trade practices. We submitted
22 written comments on August 18.

23 The U.S. forest products industry,
24 including forestry, wood, pulp, and paper,
25 manufactures more than \$435 billion in products

1 annually. Pulp and paper represents over \$244
2 billion of that output, and U.S. exports of pulp,
3 paper, and packaging materials totaled 21 billion
4 in 2024. These exports reduce U.S. bilateral
5 trade deficits with key trading partners around
6 the world.

7 The U.S. forest products industry
8 employs more than 925,000 people, largely in
9 rural America, and ranks as one of the top-ten
10 manufacturing sector employers in 44 states. The
11 industry accounts for approximately 4.7 percent
12 of America's total manufacturing GDP.

13 We are proud of the pulp and paper
14 workers whose mission every day is to ensure a
15 reliable source of essential products for all
16 Americans. Our facilities and workers generate a
17 strong tax base for their communities and support
18 hundreds of small businesses, landowners, and
19 others throughout the forest products industry
20 supply chain. We estimate that each forest
21 products industry job supports 3.25 additional
22 jobs in supplier industries and in local
23 communities across rural America.

24 U.S. tissue manufacturers, in
25 particular, rely on bleached eucalyptus kraft

1 pulp, known as BEK, from Brazil for its unique
2 softness, strength, and absorbency. Quality is
3 not replicable with domestic timber. BEK
4 comprises over 60 percent of the fiber in most
5 retail tissue and toilet paper brands. U.S.
6 climate and corresponding land availability
7 cannot support sufficient eucalyptus growth to
8 meet domestic demand. Brazil's climate makes it
9 an essential supplier.

10 Illegal deforestation in Brazil is
11 also a focus of the Section 301 investigation.
12 AF&PA members source sustainably, procuring 99
13 percent of our wood fiber through certified
14 fiber-sourcing programs such as the Sustainable
15 Forestry Initiative, the Forest Stewardship
16 Council, and the Program for the Endorsement of
17 Forest Certification. Each of these third-party
18 certification verifiers applies strict criteria
19 to safeguard forests' environmental and economic
20 value.

21 Brazilian eucalyptus pulp is sourced
22 from purpose-grown plantations, not native
23 forests, ensuring renewable and responsible fiber
24 supply while preserving conservation areas.
25 Industry demand for certified eucalyptus pulp

1 discourages illegal deforestation and supports
2 sustainable forest management.

3 AF&PA is also a strong supporter of
4 the 2008 amendments to the Lacey Act, which make
5 it unlawful to trade wood, wood products, or
6 other plant materials harvested in violation of
7 the laws of either U.S. state or a foreign
8 country.

9 And on a separate, more general trade
10 front, AF&PA would like to express our support
11 for a proposal from the National Association of
12 Manufacturers known as the Manufacturing
13 Investment Accelerator Program that aims to
14 protect access to critical imported materials
15 that support U.S. manufacturing jobs. AF&PA
16 supports fair and reciprocal trade with Brazil
17 that ensures the Brazilian market is open to U.S.
18 pulp, paper packaging, and tissue manufacturers.

19 In conclusion, U.S. paper companies
20 depend on Brazilian eucalyptus hardwood pulp to
21 produce essential American-made paper products.
22 This pulp cannot be produced in commercially
23 viable quantities in the U.S., meaning U.S.
24 tissue producers have no choice but to import
25 this pulp from Brazil.

1 AF&PA urges USTR not to impose
2 additional tariffs on eucalyptus pulp, HTS Code
3 4703.29, as it would harm U.S. manufacturing and
4 threaten American jobs. AF&PA agrees with
5 Executive Order 143323, which exempted Brazilian
6 wood pulp from the additional IEEPA tariffs on
7 Brazilian goods, and recommends maintaining
8 consistency with that approach.

9 Finally, avoiding tariffs on imports
10 from Brazil under HTS Code 4703.29 would help
11 preserve U.S. competitiveness, support rural
12 jobs, and maintain stable supply chains
13 supporting U.S. manufacturing of essential
14 consumer tissue products.

15 Thank you again for the opportunity
16 to testify, and I look forward to any questions
17 you may have.

18 CHAIR GRIMBALL: Thank you, Mr.
19 Webber.

20 We'll proceed with questions from the
21 government panel.

22 MR. REYNOLDS: Hello. This first
23 question is for Ms. Amidon. What are the current
24 effects of illegal deforestation in Brazil on
25 U.S. competitiveness and the estimated effects of

1 new tariff actions on the competitiveness of U.S.
2 employment?

3 MS. AMIDON: I'm so sorry. I'm
4 struggling to hear the question. It was a little
5 echoey. Could you restate it?

6 MR. REYNOLDS: Of course. What are
7 the current effects of illegal deforestation in
8 Brazil on U.S. competitiveness and the estimated
9 effects of new tariff actions on the
10 competitiveness of U.S. employment?

11 MS. AMIDON: Thank you so much. I
12 appreciate it. And thank you for the question.
13 So the effects -- if I can take your question in
14 reverse order. So the effects to American
15 competitiveness of increased tariffs -- I do
16 think that this would have a negative effect.

17 There are multiple products, as I
18 think you've heard both from other folks on this
19 panel and I'm happy to give specific examples if
20 needed, as well, of products and species that are
21 simply not grown here in the United States and do
22 not have a domestic substitution. And so, if
23 tariffs are placed on some of those products, on
24 some of those species, on some of those HTS
25 codes, then there is no choice but the consumer

1 to have to pay higher prices.

2 In both my spoken and my written
3 testimony, I listed out a laundry list of
4 domestic U.S. industries that depend on imported
5 product, not just from Brazil but from nations
6 around the world. And I won't go through all of
7 them, but the RV industry, the guitar industry,
8 furniture -- I could go on and on.

9 Some products that are imported from
10 Brazil are substitutable; some are not. And so,
11 in cases where there is no substitution, that
12 manufacturing, whether it's an industry, a
13 company -- they will have no choice but to simply
14 pay the higher price and then pass it on to
15 consumers, which ultimately harms those
16 industries and will contribute to significantly
17 lower profits, less ability to invest in their
18 communities, less ability to hire people.

19 There really are, I think, a lot of
20 negative follow-on effects that come from higher
21 prices on inputs that simply cannot be sourced
22 here in the United States.

23 MR. REYNOLDS: Thank you. And as a
24 follow-up question, how do illegal logging and
25 deforestation distort wood product market prices

1 in the United States? Do you have estimates for
2 projected price of wood products and projections
3 on the employment effects in the United States?

4 MS. AMIDON: So I don't have
5 statistics, but I'm happy to do some research and
6 get back to you in the follow-up question -- or
7 in -- follow up a response to the record. But I
8 can talk a little bit about how U.S. importers
9 approach illegality. And again, this is not
10 specific to Brazil but rather to any wood product
11 coming into the United States.

12 As has been mentioned, I think, by
13 just about every speaker, we are bound by the
14 Lacey Act. And IWPA has been very supportive of
15 that. We actually hold a grant from the Animal
16 Plant Health Inspection Service that ended last
17 year. We were responsible for educating any
18 industry covered by the Lacey Act as Phase 7 came
19 in.

20 So I think it's safe to say that we
21 are very much on board with both the spirit and
22 the letter of the Lacey Act. And as part of
23 that, it means that importers have to look at
24 just not an individual shipment or individual
25 product that they are importing into the United

1 States, but a whole supply chain. And so that
2 means looking at the company, looking at where
3 that wood product comes from, from the stump to
4 the port to the time that it comes into the
5 United States and then is furthered down the
6 manufacturing chain.

7 So illegality cannot be tolerated
8 under the Lacey Act. And that means, of course,
9 in violation of either U.S. law or Brazilian law
10 in this particular case. And I'm happy to expand
11 on sort of what that means and give some
12 examples.

13 We have a two-and-a-half-day
14 education course that we teach in person that
15 I've both taken and teach at, so happy to talk in
16 as specific level as you'd like about some of the
17 tips and tricks that we share with people because
18 I -- I will simply close by saying simply
19 checking documents is not enough when it comes to
20 legality.

21 Permits are incredibly important,
22 whether it's Brazil or any other country. But it
23 is about a holistic approach to legality, a
24 holistic approach to sustainability. And so
25 that's something that we strongly emphasize with

1 our members and our industry and our education to
2 every industry covered by the Lacey Act, that
3 compliance is not checking the box or checking
4 off a list, but it is asking the right questions
5 of the right people and going beyond what is
6 required.

7 MR. REYNOLDS: Thank you.

8 MR. ABBOTT: This question is for Mr.
9 Júnior. Could you please provide information on
10 the practices that your members use to ensure
11 that their furniture inputs are made without wood
12 from illegally deforested areas? And how do
13 these practices compare with those furniture
14 makers in the United States?

15 MR. PIMENTA: Thank you for the
16 question. Yeah. All the inputs that we use in
17 Brazil, the companies represented by ABIMÓVEL,
18 have these high-quality standards in terms of all
19 the certification that it needed to be in comply
20 with international but also national standards of
21 sustainability.

22 I can quote, for example, FSC. All
23 of them use FSC in their products, ISO 14001 for
24 a long time. And we have a specific program
25 within the government to comply with and of

1 course reinforce that. And of course, I'll be
2 glad to put more in the post-hearing submission
3 for you and for all the Commission.

4 MR. ABBOTT: Thank you. And as a
5 follow-up question, can you provide additional
6 details about the ways that you have engaged
7 Brazilian federal and state authorities to
8 implement traceability, environmental compliance,
9 and anticorruption measures across the wood and
10 furniture supply chain?

11 MR. PIMENTA: Yeah. Sure. As all my
12 colleagues here have also put, the forest-based
13 approach and also legal approach in Brazil is
14 strictly restricted and we have to comply with.
15 I can cite -- first quote, for example, the
16 permanent preservation area, for example, the
17 Rural Environmental Registry -- they are part of
18 the sector, not only our sector but part of
19 industry, that we have to comply with and deliver
20 good products and high standard product sales.

21 MR. VOLTAGGIO: The next question is
22 for Ms. Powell. How effective are forest
23 certification schemes in Brazil, and what is the
24 extent of loopholes or corruption which impede
25 the ability to detect and trace illegal logging

1 and deforestation in the supply chain? How
2 effective are current remote-sensing and
3 geospatial technologies at detecting and tracing
4 illegal deforestation in Brazil, and what are the
5 challenges that remain?

6 MS. POWELL: Thank you for the
7 question. I will follow up in a more
8 significant manner in our rebuttal comments. As
9 we explained earlier, the plantation-based sector
10 commits to voluntary certifications. There are
11 two primary certification schemes, mentioned
12 earlier. One is the Forest Stewardship Council,
13 and the other is the Program for the Endorsement
14 of Forest Certification.

15 These management certifications
16 provide for chain of custody and traceability
17 certification so that the suppliers are able to
18 certify the sourcing of the wood products that
19 are being supplied and exported to the United
20 States. They apply to forest producers, and they
21 verify their sustainable management practices, as
22 well, including offering the chain of custody
23 certification, which traders rely on to ensure
24 traceability of the wood products through the
25 supply chain.

1 The forest management certifications
2 also ensure compliance with the applicable local
3 and international laws, the social and economic
4 well-being of workers, and the rights of -- and
5 socioeconomic property rights of indigenous
6 people. So it's an all-encompassing
7 consideration of various environmental, social,
8 and governance aspects related to the producers'
9 harvesting of wood products. I'm happy to go
10 into more detail in our rebuttal comments.

11 You had a couple of other questions
12 that, if you don't mind repeating that, I'd be
13 happy to --

14 MR. VOLTAGGIO: Yes, of course.
15 There's a question on the effectiveness of
16 remote-sensing and geospatial technologies to the
17 extent that you have information about that, and
18 of course you can expand in your comments, and if
19 there's any remaining challenges, you think, to
20 insight into loopholes.

21 MS. POWELL: I think that the country
22 has made significant strides in recent years to
23 improve and enhance their monitoring and forest
24 cover satellite-tracking to detect illegal
25 deforestation in real time and on an annual

1 basis.

2 In 2021, they developed an
3 interinstitutional forum which brought together
4 representatives from IBAMA, the Brazilian
5 Institute for Environment and Renewable Natural
6 Resources; the federal police; and various
7 ministries and state environmental agencies.

8 And since that creation, they have
9 coordinated joint operations resulting in a 28
10 percent increase in embargo declarations as a
11 result of their enhanced monitoring and a 22
12 percent increase in criminal referrals related to
13 environmental infractions.

14 In our written submission, on -- I
15 believe it's pages 4 and 5 -- we detail some of
16 the advanced monitoring technologies. I was
17 happy to see that there's one international
18 partnership with the University of Maryland
19 because it's my essentially my neighbor in
20 College Park, Maryland. So they're obviously
21 engaging with international partners to ensure
22 that they're employing -- deploying, rather --
23 the most enhanced technologies. Thank you.

24 MR. VOLTAGGIO: Thank you, Ms.
25 Powell.

1 MS. YU: This next question is for
2 Mr. Pupo. How does ABIMCI respond to reports
3 that suggest that fraud and corruption contribute
4 to illegal deforestation? In your testimony, you
5 note that Brazil is actively enforcing its
6 forestry laws, but we have heard from panelists
7 today who have mentioned continued high rates of
8 illegal deforestation. Could you address those
9 comments, provide further details on why you
10 believe Brazil's enforcement is effective?

11 MR. PUPPO: As ABIMCI we support every
12 time these kind of efforts from our government.
13 You do have support even environment, atmosphere,
14 and technical one, as we basically produce from
15 planted forests. Basically, locating tree
16 estates of South Brazil is easier for us because
17 it's not so -- Brazil is a continental country.
18 It's not easy to respond for a continental
19 country, but from planted forests, we have the
20 system very closed to 100 percent legality. And
21 all the establishment departments and
22 fiscalization is very up to date with all this
23 chain of custody from the forest to the port.

24 And ABIMCI laws is one of the most
25 tough laws in the world. And I think our

1 government is doing a great job improving these
2 operations in every -- every -- kind of the
3 country. Even the north have some good examples
4 from planted forests, tropical woods, and that
5 planted forest like Parica (phonetic) who's doing
6 a good job. I was listening to Ms. Ashley
7 Amidon, the importance of Brazilian supply in
8 these things.

9 And I think it's very clear in the
10 whole process -- documents the whole process and
11 the production process that we support all these
12 legal requirements.

13 MS. YU: Thank you.

14 MS. BONNER: This question is for Mr.
15 Webber. As you noted -- well, as noted this
16 morning, the Committee is seeking comment on the
17 existence of unfair or discriminatory acts,
18 policies, and practices that burden or restrict
19 U.S. commerce.

20 As your comments focus on the impact
21 of potential tariffs on certain Brazilian imports
22 for U.S. pulp, paper packaging, and tissue
23 products, I was wondering if you could also
24 expand your comments to provide information and
25 insight on does your organization have an opinion

1 on the actionability of any of the acts,
2 practices, or policies discussed today, such as
3 illegal deforestation, the existence of loopholes
4 or corruption in certification schemes, or the
5 existence of forced labor, child labor, or other
6 unfair labor practices? Thank you.

7 MR. WEBBER: I think the issues we
8 focused on in our comments speak to our opinion
9 on that question, the procurement that we do from
10 Brazil. We're confident that we are sourcing
11 from third-party certified, sustainable sources
12 that are in compliance with the Lacey Act.

13 I think our industry is very proud of
14 its record in terms of both compliance with the
15 law and our own voluntary sustainability
16 initiatives to increase the sustainability of our
17 fiber procurement.

18 So I want to be clear that our
19 comments are focused on our industry's specific
20 activity in Brazil, and I'm not speaking -- you
21 know, you have to ask the others about other
22 industry practices, but focused on the
23 procurement that we do to the issues that we've
24 commented on in Brazil, we're very confident in
25 both the legality and the sustainability of our

1 industry practices.

2 MR. HUFFMAN: My question is for Mr.
3 Brightbill. In your testimony, you note that the
4 aggressive pricing of Brazilian imports of wood
5 moulding and millwork products have harmed U.S.
6 producers for many years. Could you expand on
7 the ways in which illegal deforestation has or
8 has not contributed to the ability of Brazilian
9 products to be offered at such competitive
10 prices?

11 MR. BRIGHTBILL: Yes. Thank you for
12 the question. As I mentioned in my testimony,
13 when there are practices like deforestation or
14 forced labor or any of these things, it does have
15 an impact because it allows Brazil to harvest and
16 ship here at a lower-than-market price.

17 And the estimate that we gave -- and
18 this came from Congressional Research Service --
19 is that legal timber prices are reduced by 7 to
20 16 percent due to illegally harvested timber.
21 And so you're asking U.S. producers to compete
22 with that pricing in addition to other practices,
23 such as subsidies that I described, which also
24 lower the price of products.

25 So it's not just a pricing issue.

1 Obviously, no one wants a wood moulding or any
2 other product on their home or in their business
3 that is a product of forced labor or child labor
4 or deforestation or other illegal activities.
5 But there are price effects, and those harm U.S.
6 producers. And that's why it's appropriate for
7 you to be conducting this investigation. Thanks.

8 MS. REINITZ: This question is open
9 to all witnesses on the panel. Testimonies have
10 referenced certified programs and other data
11 collection mechanisms that track social standards
12 for forest products, many of which largely rely
13 on the Government of Brazil's dirty list of
14 employers who have been found to subject workers
15 to conditions analogous to slavery.

16 Could you clarify whether these
17 certification schemes track any other sources of
18 information related to the labor conditions under
19 which wood and forest products are produced or
20 utilize other mechanisms to mitigate forced labor
21 risks in exported products? And additionally,
22 are you aware of other efforts by Brazilian
23 producers beyond the use of certification schemes
24 to combat exploitative labor practices in the
25 sector?

1 MS. AMIDON: I can jump in first on
2 this. So I will say I can't speak directly to
3 certification simply because, as a trade
4 association, we do not favor one certification
5 scheme over any others. We are focused on
6 legality and then ask -- require -- the industry
7 to build beyond that and build something that is
8 unique to their supply chain.

9 But what I can talk about is some of
10 the ways that we teach the industry to look for
11 forced labor to keep it out of their supply
12 chains. I would defer to others that might have
13 more expertise on the certification side of
14 things.

15 So we discuss a lot in our education
16 and indeed in our general conferences on how to
17 avoid forced labor, whether that is UFPLA or any
18 other labor standard that might be broken
19 domestically or internationally.

20 And I can say sort of anecdotally a
21 lot of the tips and tricks that we talk about are
22 things like surprise audits, not allowing someone
23 to rail off parts of a manufacturing facility or
24 a forest, bringing your own translators so that
25 you are ensuring that what you are hearing from

1 people is what they're actually saying, making
2 sure that they're robust SOPs that you are
3 checking, and not just doing a planned audit once
4 a year.

5 Obviously, you want to have those
6 things built in, but it's important to go, again,
7 above and beyond the letter of Lacey and really
8 -- you know, it almost gets to a gut instinct,
9 right, of the moment you see something that is
10 even the slightest of not a green flag, digging
11 deeper.

12 And it's also making sure that you're
13 talking to people on the ground. One of the
14 things that IWPA does is we share information --
15 obviously, we're a trade association, but we
16 share information whether we agree with it or
17 not. So the moment an NGO report is published,
18 we're sharing that with our members.

19 We are constantly sharing any sort of
20 government webinars on -- whether it's forced
21 labor or any other topic, because we want every
22 single member of the industry to have a
23 comprehensive look at what is going on on the
24 ground, not just from a document, looking at your
25 computers behind your screen, but actually being

1 there on-site, being able to have conversations.

2 So that, I would say, is probably a
3 more human aspect of compliance and due diligence
4 that isn't specifically outlined in the law but I
5 think is just as important as things like having
6 certification or checking documents.

7 MS. POWELL: This is Brittney Powell
8 on behalf of IBA. I'm aware that the forced
9 management certification schemes take into
10 consideration meeting certain standards related
11 to the social and economic well-being of workers,
12 but I'd be happy to detail in our rebuttal
13 comments exactly how those schemes are
14 implemented, the standards that they're looking
15 at, what those metrics are, and provide those
16 details there. Thank you.

17 MR. BRIGHTBILL: Tim Brightbill,
18 Wiley Rein. We can look more into the -- your
19 question of certification, but I just thought I
20 would also emphasize that you have enforcement
21 issues that go beyond certification. So you had
22 an article from this year quoting a major
23 exporting company in Brazil that said laundering
24 illegal timber is so widespread in the country
25 that exporters struggle to verify the origin of

1 the wood. You do have customs officials in
2 Brazil that are checking exports, but they have a
3 lack of capacity. Penalties are inadequate.
4 Fines are often not collected.

5 So there may be certification issues,
6 but there are also deeper issues throughout the
7 sector. Again, not everyone is engaging in these
8 practices, but it's widespread enough to be a
9 problem that your agencies have all recognized.

10 Thank you.

11 MS. POWELL: If I may just add to my
12 previous comment, the certification schemes also
13 encompass an annual third-party audit to ensure
14 that the mills are compliant on an annual basis.
15 It's not like a one-time certification and they
16 don't go back and check that they're continuing
17 in compliance year after year.

18 MR. PIMENTA: José Pimenta for
19 ABIMÓVEL. In my testimony, I focused more on
20 sustainable certification. And as Brittney said,
21 we are -- sorry.

22 CHAIR GRIMBALL: Can you push your
23 mic back a little bit? He's getting feedback.

24 MR. PIMENTA: Sure. Sorry. Is that
25 okay now? Okay. I'll continue, then. Sorry

1 again.

2 So Jose Pimenta for ABIMÓVEL. In my
3 testimony, I focus on more sustainable
4 certification and good practice that our sector
5 have in Brazil. So I'll be more than glad to, in
6 our rebuttal in post-hearing submission, to
7 clarify more and to -- analysis. And another
8 certification scheme that we have in Brazil to
9 tackle, of course -- forced labor. Okay.

10 CHAIR GRIMBALL: Thank you. And with
11 that, we release Panel 5.

12 Let's return for the last panel of
13 the day at 5:00. Oh, 4:00. Is it really that
14 early? Oh my goodness. We've been making great
15 time -- at 4:00 for our last panel.

16 (Whereupon, the above-entitled matter
17 went off the record at 3:52 p.m. and resumed at
18 4:02 p.m.)

19 CHAIR GRIMBALL: Okay. We are ready
20 to proceed with the final panel of the day.

21 Mr. Bernstein, you have the floor and
22 five minutes.

23 MR. BERNSTEIN: Thank you, Section
24 301 Committee members and staff. My name is
25 Jason Bernstein. I'm testifying on behalf of the

1 American Chemistry Council, a trade association
2 representing America's leading chemical and
3 plastic companies.

4 We support the administration's
5 efforts to protect U.S. manufacturing from unfair
6 policies and practices and create a more fair and
7 balanced trade relationship with Brazil as well
8 as with other countries. We would urge a
9 strategic and targeted approach to this
10 investigation and any resulting actions,
11 prioritizing unfair trading practices while
12 minimizing disruption and uncertainty for U.S.
13 companies.

14 Brazil has an average final bound
15 duty rate in chemicals of 20 percent, with an
16 average applied duty of 6 percent. In
17 comparison, the United States has an applied rate
18 on chemicals of 2.7 percent.

19 The United States is also signatory
20 to the Chemical Tariff Harmonization Agreement,
21 which would be a strong foundation to address and
22 reduce tariff disparities on chemicals between
23 our two countries. However, despite these
24 disparities, the U.S. chemical industry has one
25 of the largest trade surpluses of Brazil -- the

1 fact is one of the largest trade surpluses
2 amongst all commodities -- and has strong Brazil
3 ties in terms of investment, complementary
4 production trains and trade flows.

5 The U.S. chemical industry is a model
6 of what we might call an America-first trade
7 approach with Brazil with a trade surplus valued
8 at almost \$7 billion. Brazil is now the
9 fifth-largest destination for U.S. chemical
10 exports, and many raw material imports from
11 Brazil used in U.S. chemical manufacturing are
12 intercompany transactions between U.S.-based
13 companies donned to protect intellectual property
14 rights and ensure the U.S. chemical industry has
15 a secure and resilient source of imports that are
16 not sourced from nonmarket economies.

17 I might just say that this is
18 actually a little rare because the U.S. has a
19 trade surplus with Brazil in chemicals and all
20 categories of chemical products. Resins,
21 agricultural chemicals, even bulk petrochemical
22 products were facing serious unfair trading
23 practices from eastern hemisphere countries.

24 Brazil should take steps to reduce
25 its tariff and non-tariff barriers to trade.

1 Besides relatively high tariffs in chemicals and
2 practices, Brazil applies federal and state taxes
3 and charges to imports, therefore effectively
4 doubling the cost to import products and making
5 it harder for U.S. chemical and plastic exporters
6 to compete in the Brazilian market.

7 Such barriers could be addressed
8 through a sectoral initiative in chemicals that
9 more effectively address such tariff and other
10 non-tariff barriers while also supporting U.S.
11 production, jobs, and exports and developing
12 common cause and addressing unfair trading
13 practices.

14 A sectoral initiative in chemicals,
15 which has been done before in other trade
16 agreements, could be based on the following core
17 commercial goals that have greater impact
18 addressing the unfair trading practices in the
19 chemical sector, such as enshrining science-based
20 regulatory frameworks that will advantage U.S.
21 production over non-science-based approaches,
22 increasing market access for U.S. exports through
23 streamlined customs procedures and trade
24 facilitation measures, ensuring a level playing
25 field against unfair trading practice from

1 nonmarket economies, and supporting new value
2 chains where the United States has the
3 competitive advantage, including mechanical and
4 advanced recycling. If you don't know what those
5 new recycling techniques are, I can explain that
6 later.

7 The Brazilian Chemical Association,
8 ABIQUIM, is willing to partner with us on such
9 initiatives. In the case of chemicals, this kind
10 of collaboration is more likely to be successful
11 in addressing unfair policies and practices than
12 imposing tariffs or other border measures which
13 may inadvertently harm U.S. manufacturers and
14 make U.S. chemical producers more reliant on
15 inputs for economies where our members do not
16 have strong commercial relationships and less
17 production for intellectual property.

18 This could disrupt our significant
19 trade surplus and competitive advantage with
20 Brazil and shift more chemical production out of
21 the United States. This is not a theoretical
22 concern. We've actually seen in other cases,
23 where we apply tariffs on the wrong products,
24 people are moving total chemical production out
25 of the United States.

1 Since U.S. chemical production is
2 foundational to almost all key supply chains,
3 including fence, semiconductors, pharmaceuticals,
4 and energy and resource mining, these could also
5 disrupt U.S. supply chains critical for national
6 and economic security.

7 ACC and its members have supported
8 addressing unfair trading practices in other
9 Section 301 investigations, sometimes through
10 tariffs or other border measures. To the extent
11 that measures are being considered to address
12 Brazil's unfair acts, policies, and practices, we
13 would urge the administration to ensure that such
14 measures do not undermine the strong trade
15 relationship we have in chemicals -- in fact, I
16 would say the strong and unique trade
17 relationship we have in chemicals.

18 While the United States and Brazil do
19 not share a formal free trade agreement, the
20 Agreement on Trade and Economic Cooperation can
21 provide a strong framework for such chemical
22 sectoral initiative, building upon President
23 Trump's expansion of the ATEC protocol in 2020.
24 Such an initiative would not only be achievable,
25 but it would unlock significant opportunities for

1 both the United States and Brazil.

2 I appreciate the time given. Happy
3 to answer any questions.

4 CHAIR GRIMBALL: Thank you, Mr.
5 Bernstein.

6 Mr. Barry, you have the floor and
7 five minutes.

8 MR. BARRY: Good afternoon. I'm
9 Peter Barry, and I'm the CEO of WEG Electric
10 Corporation. WEG employs more than 2,000 U.S.
11 workers and is the second-largest supplier of
12 industrial electric motors in the United States.
13 We offer a diverse range of products, from small
14 motors to highly engineered large machines that
15 power U.S. manufacturing, agribusiness, mining,
16 oil and gas, and pulp and paper.

17 Our products are also used in
18 critical infrastructure, supporting artificial
19 intelligence and grid stability. U.S. companies
20 in these sectors rely on WEG's U.S.-made products
21 as well as WEG's products imported from Brazil.

22 WEG has nine U.S. manufacturing
23 facilities in Missouri, Minnesota, Indiana,
24 Illinois, Wisconsin, and Georgia. For decades,
25 we've been growing and enhancing multiple

1 businesses and making significant investments in
2 the United States.

3 WEG believes that the trade relations
4 between the United States and Brazil are mutually
5 beneficial and that action under Section 301
6 would not be appropriate. In any event, to the
7 extent that the USTR finds that Brazil's
8 practices are actionable under Section 301, WEG
9 requests that the USTR recommend a scope of
10 remedies that do not include tariffs on imports
11 of electric motors and generators from Brazil.

12 I'll explain how these restrictions
13 on imports of these products hurt the U.S.
14 economy and national security. First, tariffs on
15 motors and generators increase the cost to U.S.
16 companies. U.S. companies in critical sectors
17 rely on these products, but U.S. demand far
18 exceeds U.S. production capacity.

19 Imported motors and generators
20 produced by WEG in Brazil complement the products
21 manufactured by WEG in the United States. Many
22 are highly engineered products that would take
23 many years to move to alternative suppliers.
24 Tariffs would be a burden on U.S. manufacturers
25 that are setting up new plants in the United

1 States or replacing motors and generators in
2 existing plants.

3 Moreover, tariffs on imports of these
4 products from Brazil would increase reliance on
5 imports from Asia, especially China, and increase
6 the costs of motor-driven equipment and make
7 these U.S. manufacturers less competitive.

8 Second, imports of motors and
9 generators are essential to WEG's transformer
10 business. The U.S. suffers from a shortage of
11 transformers that are desperately needed for grid
12 stability projects and the construction of new
13 data centers.

14 WEG has invested heavily in its
15 capacity to produce transformers in the U.S., but
16 more is needed. Tariffs on imports and
17 generators will impair WEG's ability to continue
18 investing in the U.S. manufacturing capacity for
19 transformers. Without these investments, the
20 U.S. energy sector will be unable to replace
21 thousands of transformers in our aging
22 infrastructure and to avoid power outages
23 impacting millions of Americans.

24 In sum, WEG's products, whether
25 manufactured in the United States or imported

1 from Brazil, help the U.S. to build and maintain
2 resilient and efficient operations in critical
3 sectors. This strengthens U.S. competitiveness
4 in the industries pivotal to our economic
5 stability. Brazilian motors and generators play
6 a crucial role in improving the competitiveness
7 of U.S. companies and support WEG's ongoing
8 investments in the U.S. transformer capacity,
9 which are essential to U.S. national security.

10 Thus, WEG respectfully requests that
11 the USTR avoid imposing tariffs or any other
12 restrictions on imports of electric motors and
13 generators from Brazil. WEG remains committed to
14 working collaboratively with USTR to promote
15 outcomes that foster U.S. economic growth, energy
16 independence, technological leadership, and
17 global competitiveness of U.S. companies.

18 Thank you for your consideration, and
19 I welcome your questions.

20 CHAIR GRIMBALL: Thank you, Mr.
21 Barry.

22 Mr. Vasconcellos, you have five
23 minutes.

24 MR. VASCONCELLOS: Good afternoon,
25 Madam Chair and honored members, U.S. Trade

1 Representative and U.S. International Trade
2 Commission. My name is Ricardo Vasconcellos.
3 I'm in behalf of the CCB-USA, Conservative
4 Congress of Brazil USA, in helping this vital
5 proceeding with impact not only the principle of
6 the fair trade but also the integrity of fair
7 elections and global security.

8 I rise today to speak about Brazil.
9 Brazil political environment and trade relations,
10 lack of transparency of elections, have
11 culminated the practice of Section 301 in the
12 Trade Act identified as unreasonable. The law is
13 clear. Under Article I, Section 8, of the U.S.
14 Constitution, Congress possesses indispensable
15 power to regulate both foreign and interstate
16 commerce.

17 Under this Section 301, United States
18 is empowered to act when foreign governments
19 impose unfair, unjustified conditions on American
20 trade. Brazil's actions unequivocally fall in
21 this category.

22 The connection between elections and
23 commerce are incontestable. Brazil's suppression
24 of open debate, lack of public ballot counting,
25 and violate the freedom of speech create the

1 burdens of United States commerce. In addition,
2 U.S. social media firms face disadvantage due to
3 the restrictions imposed in orders from Brazilian
4 Supreme Court Justice.

5 The situation worsens when Brazil's
6 Supreme Court invalidate the Section 19 of
7 Brazil's Civil Marco Rule, granting censorship
8 authority not only to justices but to all 18,000
9 judges to the country. Now, any judge can order
10 the global platform to be silenced speech without
11 the due process of law. The implications for the
12 commerce are profound. U.S. technology
13 organizations now face unpredictable censorship
14 and pose a threat to American liberties.

15 Another issue here is Brazil trade
16 refresher in China. According to Brazil
17 Department of Energy, during the Bolsonaro
18 administration, Brazil imports a slight amount of
19 diesel from Russia. However, under the Lula
20 leadership, Russia supplied 70 percent of the
21 Brazil diesel, well more than \$5 billion.

22 And U.S. refines laws and market
23 share of 20 percent get worse because on August
24 27 this year, Brazil declared possible reciprocal
25 trade measures, imposing 50 percent tariffs in

1 U.S. In this move, potentially shift to China
2 into a more favorable trades and statutes burden
3 U.S. exports.

4 The narrative doesn't stop here.
5 Companies such as BYD, a Chinese electric car
6 manufacturer, are acquiring the major lithium
7 reserves from Brazil, and CMOC Mining Group
8 controls niobium, the mineral that's used to
9 manufacture aerospace ships, missiles, and jets.

10 China is investing \$3.5 billion in
11 mining ventures in 2025 in Brazil, but these
12 jeopardize U.S. supply chains vital to military
13 and defense sectors.

14 What must be done? The United States
15 should reevaluate the prior recognition of Brazil
16 2002 election as illegitimate. Second,
17 recognition of Brazil outcome in election in 2026
18 must be conditioned to measure transparency
19 benchmark to the public of the ballot and the end
20 of censorship of social media, as well, the
21 violations of freedom of speech.

22 Third, if those benchmarks are not
23 met, proportionate remedies must follow,
24 including tariffs and sanctions against the
25 responsible actors and the third-party countries

1 as outlined in the Section 301.

2 In conclusion, the United States must
3 supply the Section 301 sanctions and tariffs to
4 protect American trade commerce and help the
5 threat of the various sectors U.S. defend the
6 freedom of speech. Today, Brazil is suffering
7 these violations. Tomorrow, it can be America.

8 Thank you. I open for questions.

9 CHAIR GRIMBALL: Thank you, Mr.
10 Vasconcellos.

11 Mr. Hickey, you have the floor and
12 five minutes.

13 MR. HICKEY: Thank you.

14 Good afternoon. My name is Dan
15 Hickey. I'm the Vice President of Government
16 Relations in North America for Embraer, a
17 producer of civil and military aircraft and a
18 provider of aviation services. I appreciate the
19 opportunity to appear before you today.

20 My testimony will cover two points
21 that should inform the Section 301 Committee's
22 approach to this investigation and any remedial
23 action that the USTR might recommend.

24 First, I'd like to emphasize that
25 none of the specific acts, policies, and

1 practices at issue in this investigation has any
2 relation to Embraer or its business. Indeed,
3 based on a review of the many comments submitted
4 to your docket, no one has even claimed
5 otherwise.

6 Second, Embraer and its U.S.
7 affiliates provide massive net benefits for the
8 U.S. economy, American workers, and the flying
9 public. These benefits are detailed in our
10 written submissions, so I will highlight just a
11 few key facts.

12 Embraer has major operations in the
13 United States and purchases billions of dollars
14 in goods and services from U.S. companies every
15 year. Embraer currently supports 12,500 jobs in
16 the United States, 2,500 employees who work
17 directly for Embraer, and 10,000 additional jobs
18 at U.S. companies that supply Embraer. Our
19 direct employees work at 17 Embraer facilities in
20 the United States, including aircraft production
21 sites in Florida and service centers in Arizona,
22 Florida, Georgia, Tennessee, and Texas.

23 Absent tariff disruptions, between
24 2025 and 2030, Embraer intends to buy tens of
25 billions of dollars in goods and services from

1 U.S. companies, and most of these purchases would
2 consist of U.S. exports to Brazil. In a
3 zero-tariff scenario, these purchases are
4 projected to exceed Embraer's exports to the U.S.
5 by approximately \$8 billion. In other words,
6 under this scenario, the net effect of Embraer's
7 operations will be to lower the U.S. trade
8 deficit.

9 Embraer aircraft also play a critical
10 role in the U.S. air transportation system.
11 Every year, our aircraft safely transport
12 approximately 100 million passengers in the U.S.
13 Embraer commercial jets account for roughly ten
14 percent of all U.S. air passenger traffic and
15 form the backbone of many U.S. carrier fleets.
16 In fact, over 2,000 Embraer commercial aircraft
17 currently operate in the United States for U.S.
18 airlines such as American, Delta, United, and
19 Alaska.

20 In addition, Embraer supports the
21 U.S. national defense and American air mobility
22 innovation, as detailed in our written
23 submission. I would also add that 88 percent of
24 our shareholders are based in the United States.

25 Put simply, Embraer and its U.S.

1 affiliates are good for America, supporting U.S.
2 aviation production and jobs as well as the
3 broader economy. Using Section 301 to impose
4 tariffs on our products and supply chains would
5 harm American workers.

6 In sum, Embraer generates tremendous
7 benefits to the United States and has no
8 connection to any of the alleged government
9 practices covered by your investigation. These
10 facts strongly support avoiding the imposition of
11 any import restrictions on Embraer's supply
12 chain.

13 Thank you for your attention and
14 professionalism, and I look forward to answering
15 any questions you may have. Thank you.

16 CHAIR GRIMBALL: Thank you, Mr.
17 Hickey.

18 Ms. Coluchi, you have five minutes.

19 MS. COLUCHI: Thank you for the
20 opportunity to testify today. My name is Alais
21 Coluchi, and I represent the Brazilian ceramic
22 tile industry. Do you hear me?

23 CHAIR GRIMBALL: Can you move your
24 mic --

25 MS. COLUCHI: Yeah. Of course.

1 CHAIR GRIMBALL: -- even closer?

2 Maybe --

3 MS. COLUCHI: Closer?

4 CHAIR GRIMBALL: Thank you.

5 MS. COLUCHI: So thank you for the
6 opportunity to testify today. My name is Alais
7 Coluchi, and I represent the Brazilian ceramic
8 tile industry.

9 With respect to the concerns raised
10 in the Notice of Initiation, the Brazilian
11 ceramic tile industry respectfully submits that
12 there is no basis to consider Brazil's tariff
13 treatment in this sector as discriminatory or
14 unfair to U.S. exporters. Brazil does not grant
15 preferential tariffs on ceramic tiles to Mexico,
16 India, or any other extra-MERCOSUR partners.

17 Imports of ceramic tiles into Brazil
18 are subject to a uniform most-favored-nation rate
19 of 12.6 percent regardless of origin. This means
20 that U.S. producers faced the exact same tariff
21 commissions as all other non-MERCOSUR suppliers.
22 In contrast, U.S. tariffs on ceramic tiles are 10
23 or 8.5 percent, depending on the size of the
24 tile, broadly comparable to Brazil's rate.

25 Trade in ceramic tiles between Brazil

1 and the United States is therefore reciprocal and
2 balanced with no evidence of discriminatory
3 treatment or market access distortion. For this
4 sector, there are no acts, policies, or practices
5 that unfairly disadvantage U.S. exporters.

6 At the same time, the U.S.
7 construction sector is heavily dependent on
8 imports to meet demand for ceramic tiles. In
9 terms of volume, in 2024, U.S. tile imports
10 summed approximately 1.93 billion square feet,
11 accounting for 71.5 percent of U.S. domestic
12 consumption. On a value basis, U.S. imported
13 roughly 1.95 billion in 2024.

14 The important point is that U.S.
15 manufacturers cannot supply the full range or
16 volume of ceramic tiles demanded by U.S. market.
17 Brazilian exports play a key role in filling that
18 gap, particularly in providing large format,
19 decorative, and specialty tiles not produced at
20 scale in the United States.

21 Moreover, it's worth mentioning the
22 American capital invested throughout the past
23 years in many Brazilian ceramic tile industries
24 to be specialized for the U.S. requirements. It
25 is also important to note that the ceramic tile

1 industry operates with a high degree of
2 specialization among manufacturers. Our
3 production processes are often complementary
4 rather than competitive.

5 The synergy amongst manufacturers
6 allow to optimize efficiency, reduce costs, and
7 better serve market demands and specific U.S.
8 consumer demands. Imposing additional tariffs or
9 sanctions on Brazilian ceramic products would
10 disrupt the established supply chains and harm
11 consumers without offering an alternative in
12 domestic manufacturing capacity.

13 Imposing additional tariffs on
14 Brazilian tiles, ceramic tiles, would place
15 immediate and disproportionate cost burdens on
16 American businesses and families. In June 2025,
17 building materials dealers generated more than
18 37.5 billion U.S. dollars in retail sales, much
19 of it tied to construction.

20 The industry is dominated by small
21 firms, over 800,000 non-employer businesses, and
22 about 815,000 employee establishments. The
23 medium home builder in the National Association
24 of Home Builders reports an average of six
25 employees. These are the funds that source

1 ceramic tiles from importers and distributors.

2 It's reasonable to argue that small
3 retailers, remodelers, and contractors feel a
4 disproportionate burden from tariff-driven cost
5 increase given their reliance on narrow margins,
6 high fragmentation, and limited capacity to
7 absorb increased material costs.

8 The impact would be felt most acutely
9 in housing affordability. According to the July
10 2025 Matrix Affordable Housing Report, the United
11 States faces a shortage of two to five million
12 homes. More than 22 million renters already
13 spend over 30 percent of their income on housing,
14 and 12.1 million spend over 50 percent.

15 Affordable housing programs,
16 including the Low Income Housing Tax Credit,
17 LIHTC, tax-exempt housing bonds, the Home
18 Investment Partnership Program, HOME, and HUD
19 rental assistance are under pressure as
20 construction costs per unit have increased by
21 more than one-third since 2019.

22 Adding new tariffs on ceramic tiles
23 would only push these costs higher, undermining
24 the ability of federal and state programs to
25 deliver affordable homes to American families.

1 Ceramic tiles currently represent an important
2 part of the total cost of building a new home.
3 Raising tariffs could magnify project costs
4 disproportionately because tiles is a visible
5 finished product that cannot easily be
6 substituted without compromising quality,
7 building durability, or design.

8 CHAIR GRIMBALL: Please conclude.

9 MS. COLUCHI: Yeah. Of course.

10 We respectfully urge the
11 administration to exclude ceramic tiles from any
12 actions under Section 301. Tariffs in this
13 sector would only raise costs for U.S. families,
14 worsen housing affordability, and undermine a
15 fair and mutually beneficial trade relationship.

16 CHAIR GRIMBALL: Thank you.

17 Mr. Gaidzinski, you have the floor
18 and five minutes.

19 MR. GAIDZINSKI: Good afternoon. My
20 name is Andre Gaidzinski. I represent Eliane
21 Ceramic Tiles USA, our U.S. subsidiary.

22 Eliane Ceramic Tiles USA has
23 maintained a continuous presence in the United
24 States since 1994, with its headquarters located
25 in Texas. From its inception, the company has

1 structured its operations around the employment
2 of U.S. professionals and the development of a
3 fully domestic network of clients, suppliers, and
4 logistical partners.

5 This approach has materially
6 contributed to the U.S. economy while
7 consolidating the company's role in the American
8 market. Through its parent company, Mohawk
9 Industries, Eliane also maintains a substantial
10 portfolio of products manufactured in the United
11 States, which constitutes a significant portion
12 of its operations.

13 Nevertheless, given the scale and
14 complexity of the U.S. market, domestic
15 production alone cannot sufficiently meet
16 consumer demand. In this respect, imports from
17 Brazil perform an indispensable role,
18 complementing U.S. collections with greater
19 scale, variety, and innovation.

20 The Brazilian ceramic tile industry,
21 with its globally recognized tradition of
22 technological advancement, design excellence, and
23 production capacity, enhances the offerings
24 available in the United States, ensuring
25 alignment with international design trends while

1 maintaining competitive pricing.

2 Importantly, Brazilian products do
3 not replace those produced in the United States.
4 Rather, they function as a strategic complement
5 by broadening the range of formats, colors, and
6 finishes while also stabilizing costs and
7 mitigating inflationary pressures. This balanced
8 integration of supply strengthens U.S.
9 operations, safeguards employment, diversifies
10 consumer options, and reinforces the global
11 competitiveness of American companies.

12 At the same time, the Brazilian trade
13 regime applicable to ceramics operates in strict
14 adherence to the principles of fairness,
15 transparency, and reciprocity. All foreign
16 suppliers, including those from the United
17 States, are treated equally under
18 most-favored-nation obligations, reciprocal
19 tariffs, and transparent regulations. The
20 relatively limited volume of U.S. ceramic tile
21 exports to Brazil results exclusively from
22 commercial dynamics, not from trade restrictions.

23 Brazil is the world's third-largest
24 producer and consumer of ceramic tiles,
25 sustaining a highly competitive domestic industry

1 while U.S. manufacturers primarily serve the
2 North American market, where logistics costs are
3 more favorable. Moreover, the modest level of
4 import penetration in Brazil reflects inherent
5 transportation and product weight factors rather
6 than protectionist measures.

7 Brazil's tariff framework remains
8 fully consistent with WTO obligations and
9 international trade practice. Accordingly, U.S.
10 suppliers are not placed at any disadvantage in
11 this sector.

12 In light of these facts, any measures
13 under Section 301 targeting ceramic tile imports
14 from Brazil would lack legal and economical
15 justification. Such restrictions would not
16 remedy a discriminatory practice, which does not
17 exist, but would instead impose unnecessary costs
18 on U.S. stakeholders and undermine a mutually
19 beneficial commercial relationship.

20 Accordingly, Eliane respectfully
21 requests that the USTR acknowledge the compliance
22 and good faith of Brazilian ceramic tile sector
23 and ensure that no tariff or non-tariff
24 restrictions are applied to imports of Brazilian
25 ceramics. Thank you for your time.

1 CHAIR GRIMBALL: Thank you, Mr.
2 Gaidzinski.

3 And our last witness on the panel,
4 Mr. Durbin, you have five minutes.

5 MR. DURBIN: Good afternoon, and
6 thank you for the opportunity to testify before
7 you today. My name is Jed Durbin, and I serve on
8 the Board of Directors at Portobello America.

9 I've spent my career in the U.S. tile
10 manufacturing industry, and as a lifelong
11 Tennessean, I have seen firsthand the critical
12 role manufacturing plays in supporting rural
13 communities and creating lasting economic
14 opportunity.

15 Two years ago, Portobello opened a
16 massive, almost one-million-square-foot
17 manufacturing facility in Baxter, Tennessee. It
18 was a \$200 million investment into the U.S.
19 Indeed, our plant is the largest manufacturing
20 investment in Putnam County, Tennessee's,
21 history. It provides over 300 good-paying jobs,
22 and that doesn't include the indirect impact on
23 our community.

24 Like any large plant, we also support
25 local contractors, transportation providers, and

1 suppliers. This facility represents a major
2 commitment to American manufacturing, and we are
3 proud of the role we play in strengthening
4 Tennessee and growing our U.S. production
5 capacity.

6 No ceramic tile plant can produce
7 every design or specialty product from day one.
8 To meet the full range of customer needs, we
9 supplement our U.S. production with a limited
10 number of additional tile shapes and designs
11 produced by our parent company in Brazil,
12 Portobello Group, products that we do not
13 currently produce in Baxter.

14 These imports don't compete or
15 replace our American production tile. Instead,
16 they support our U.S. facility by filling gaps in
17 product portfolio, keeping our product line
18 competitive and making it possible to operate
19 efficiently at scale. Indeed, without the
20 ability to offer these Brazilian tiles along with
21 our Tennessee production, our investment in
22 Tennessee will quickly become unviable.

23 Unfortunately, the 50 percent tariffs
24 imposed on IEEPA have already placed significant
25 cost pressures on these imports. Section 301

1 tariffs on ceramic tile, either on top of or in
2 place of the IEEPA tariffs, would only compound
3 these challenges.

4 These tariffs would not bring new
5 manufacturing jobs to Tennessee or shift
6 production back to the U.S., or at least in the
7 tile sector. Instead, they would threaten a
8 successful high-profile manufacturing investment,
9 reducing sales, weakening operational efficiency,
10 and slowing future growth and hiring. It may
11 also force the delay or even halt the future
12 capital investment and hiring already being
13 planned for our plant in Tennessee for Q3 2026.

14 Portobello's Tennessee facility is
15 exactly the type of investment U.S. trade policy
16 is meant to encourage, a state-of-the-art plant
17 that revitalizes a Tier 3 rural community,
18 strengthens supply chains, and creates hundreds
19 of jobs. We are proud to have brought this
20 investment to the U.S. and are deeply committed
21 to its success.

22 But the additional tariffs on ceramic
23 tile from Brazil would undermine this achievement
24 and harm the very manufacturing capacity
25 policymakers want to promote. We want to keep

1 expanding in Tennessee, adding more production
2 lines and making even more of our products here
3 at home.

4 I respectfully urge USTR to avoid
5 imposing 301 tariffs on ceramic tiles so that
6 companies like Portobello America can continue
7 investing in the U.S., continue growing jobs, and
8 building a stronger future for our communities.

9 Thank you for your time and
10 considering the real-world impact of these
11 measures on American manufacturers. I'll be glad
12 to answer any questions.

13 CHAIR GRIMBALL: Thank you, Mr.
14 Durbin.

15 And now we will proceed with
16 questions from the government panel.

17 MS. BONNER: Mr. Bernstein, in your
18 testimony, you note that chemical manufacturing
19 is key to a variety of supply chains, including
20 defense, semiconductors, pharmaceuticals, energy,
21 and resource mining. Have any of the acts,
22 policies, and practices the Committee has
23 investigated undermined the competitiveness of
24 American chemical producers or impacted American
25 chemical exports to Brazil? Thank you.

1 MR. BERNSTEIN: Thank you for the
2 question. No. However, if we impose tariffs on
3 these products -- these are materials which we
4 don't make here, and in order that -- that could
5 have larger effects on those chemical
6 productions.

7 And specifically, when I mentioned
8 defense semiconductors, some of the three biggest
9 chemical producers and exports that we have,
10 which is the bulk petrochemicals, which is the
11 foundation to almost all chemical production,
12 agricultural chemicals, which are used for
13 fertilizer, and the resins, which are used many
14 times for semiconductor, are such key industries
15 for critical supply chains.

16 And if we put tariffs on the imports
17 of those raw materials used to make here, that
18 would cause severe cost advantages to U.S.
19 producers.

20 MR. STEPHENS: I have a question for
21 Mr. Barry in relation to your manufacturing
22 presence in Brazil. You state in your written
23 testimony that action under Section 301 would not
24 be appropriate. Are you taking a position on
25 whether actionable conduct exists, and would

1 this position be based on your company's
2 experience operating in Brazil? Please explain.

3 MR. BARRY: Yeah. Probably similar
4 to the comments by Embraer, WEG does not have any
5 kind of business in the areas of the sections --
6 specifically the Section 301 investigation. So
7 we definitely see the benefit of a strong
8 relationship with Brazil and the United States.
9 We do think it's beneficial, although our
10 business really has nothing to do with the six
11 areas of the investigation.

12 MR. STEPHENS: Thank you.

13 MR. HUFFMAN: My question is for Mr.
14 Vasconcellos. In your written comments and
15 testimony, you seem to suggest that corruption in
16 Brazil may have commercial and geopolitical
17 effects. Can you please elaborate on any
18 specific incidents of corruption and the
19 resulting impact on U.S.-Brazil trade or U.S.
20 investment in Brazil?

21 MR. VASCONCELLOS: In the case of
22 minerals? Are you saying about the minerals or
23 not?

24 CHAIR GRIMBALL: With respect to any
25 sector.

1 (Simultaneous speaking.)

2 MR. VASCONCELLOS: What?

3 CHAIR GRIMBALL: With respect to any
4 sector.

5 MR. VASCONCELLOS: What?

6 MR. HUFFMAN: Any sector.

7 CHAIR GRIMBALL: Any sector.

8 MR. VASCONCELLOS: Oh. In the case
9 -- here, the minerals situation, the -- China has
10 bought a lot of mines in Brazil since the Lula
11 entered in the president, that higher -- 180
12 percent increase the previous China buys in
13 Brazil are copper and tin and niobium. They have
14 phosphate mines, and they buy diamonds, lithium.

15 This area is owned by the CEO of
16 CMOC. That's the mining group from China.
17 They're buying these since 2022. And the
18 diversification of phosphate to -- for
19 fertilizing, too -- that's increased 50 percent
20 of the market. It burdens U.S. commerce, and
21 they're infiltrating directly to Brazil.

22 And the BYD -- they buy the mines,
23 the lithium, and to build the electric cars and
24 batteries for phones and whatever -- computers.
25 They create, too, 150 square meters, the area.

1 They have a factory of this car that's produced
2 150,000 cars per year, this electric car. The
3 China has the preference to buy this, and they
4 buy it very low value and then increase like
5 \$250,000 this year in the first week.

6 And the media looked for the BYD CEO
7 to answer this question. They didn't answer the
8 question. But they have a higher profit when
9 they're sold and put the shareholders and
10 everything -- they've got a lot of. And this is
11 a very serious situation for United States
12 because in the last government, you don't have
13 this kind of protection to China.

14 And what have right now -- the Brazil
15 is looking for apply 50 percent, the tariffs, to
16 United States to, like, a reciprocal way if
17 United States not change, like blackmail United
18 States. Oh, if you don't do that -- some sectors
19 very important, like this one. We're not saying
20 this is not important. Of course it is. But
21 this is very concerning because this area that
22 you have the niobium -- niobium is -- 70 percent
23 of niobium have the global worth -- is in Brazil.
24 Now China is in this area, controlled this since
25 2023.

1 The China has the niobium mines. And
2 they control the production of this. What
3 niobium do? Alloy for the best spaceships and
4 missiles and protection, defense. That's very
5 concerning. That's the point -- I put the burden
6 of the half in Brazil that -- I'm here since the
7 morning. I don't see any other talk about this
8 measure here. This is the most important point
9 in this matter.

10 MS. REINITZ: The next question is
11 for Mr. Hickey. As noted in Embraer's written
12 comments, the purpose of today's hearing is to
13 receive comments on whether the matters under
14 investigation are actionable rather than
15 potential remedies.

16 Embraer's written comment states,
17 quote, none of these acts, policies, and
18 practices has any relation to Embraer and its
19 business, end quote. To clarify, should the
20 Committee assume that Embraer is not taking a
21 position on existence of any of the acts,
22 policies, and practices under investigation but
23 rather is making a statement regarding specific
24 impacts to Embraer?

25 MR. HICKEY: The Committee has the

1 key facts regarding our major U.S. footprint and
2 contribution to American interests. And as
3 mentioned by Mr. Barry and by us today, Embraer
4 has no relation to the practices under
5 investigation, and we have no comment on how
6 those promises may or may not affect other
7 businesses. Thank you.

8 MS. REINITZ: Thank you.

9 MR. REYNOLDS: I have a group
10 question for Ms. Coluchi, Mr. Gaidzinski, and Mr.
11 Durbin. As noted this morning, the Committee is
12 seeking comment on the existence or unfair
13 discriminatory acts, policies, and practices that
14 burden or restrict U.S. commerce.

15 In your testimonies, you focused on
16 the impact of potential remedy actions by the
17 United States on your industries, which is a
18 separate inquiry. As it relates to issues before
19 the Committee today, have your industries been
20 impacted by any acts, policies, and practices
21 highlighted in this investigation? If so, please
22 explain.

23 MR. DURBIN: For Portobello, it's the
24 same as Mr. Hickey and Mr. Barry. We don't have
25 any issues with the investigation. They're not

1 part of our practice, and we don't have issue
2 with any of that. It's just simply the tariff on
3 ceramic tile into the U.S.

4 MR. GAIDZINSKI: I would -- again,
5 not talking about the entire sector, but
6 representing ourselves, I would agree that we
7 don't believe that any of this investigation has
8 to do with our company and neither to the sector
9 itself.

10 MS. COLUCHI: My comment follows
11 theirs. So we're here to talk about feedback on
12 ceramic tile and unfair and preferential trade.
13 We are not experts on deforestation, digital
14 payment, and any of the other five issues that's
15 being investigated.

16 MR. REYNOLDS: Thank you.

17 CHAIR GRIMBALL: Thank you for your
18 participation, for all the witnesses'
19 participation today over six panels.

20 With that, this concludes our hearing
21 today. As I mentioned at the top this morning,
22 post-hearing comment submissions are due on
23 September 10th, 2025, by 11:00 p.m. So, should
24 you need to supplement any of the answers that
25 you provided to the panel today, please do that

1 using the same portal that that you used to file
2 your written comments.

3 Thank you. Have a good day.

4 (Whereupon, the above-entitled matter
5 went off the record at 4:45 p.m.)
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C E R T I F I C A T E

This is to certify that the foregoing transcript was duly recorded and accurately transcribed under my direction; further, that said transcript is a true and accurate record of the proceedings; and that I am neither counsel for, related to, nor employed by any of the parties to this action in which this matter was taken; and further that I am not a relative nor an employee of any of the parties nor counsel employed by the parties, and I am not financially or otherwise interested in the outcome of the action.

James Cordes

James Cordes

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